BANGLADESH CONSTITUTION: TRENDS AND ISSUES

JUSTICE MUSTAFA KAMAL

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Kamini Kumar Dutta Memorial Law Lectures, 1994

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JUSTICE MUSTAFA KAMAL

UNIVERSITY OF DHAKA

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Preface

It is our pleasure that the prestigious Kamini Kumar Dutta Memorial Law Lecture 1994 has been delivered by Justice Mustafa Kamal. A reputed student of Dhaka University of the early 1950s, Justice Kamal has chosen a topic – **Bangladesh Constitution : Trends and Issues** – which is timely and appropriate. In this fascinating area what the students of Law, Jurisprudence and Social Sciences need most is indepth analyses of the provisions of the Constitution, a detailed article by article commentary with special reference to case laws since its inception. This lecture is not intended to make adequate provisions for all that, but I am confident, Justice Kamal's treatment of the Trends and Issues of Bangladesh Constitution will not only be highly interesting but also greatly instructive to the practising community and the academics.

The constitution has always been dynamic in nature; it grows and grows steadily over time in response to the demands of socio-political life of the society. The highest judicial organ of the country on such occasions acts as the catalytic agent, because almost everywhere constitutional development is but an evolution of the constitution through judicial decisions. The Supreme Court in Bangladesh is no exception; in fact, the Supreme Court in Bangladesh has through a number of authoritative interpretations helped develop the Supreme Law of Bangladesh to its desired direction and height. Focussing attention of the readers to such interpretative role of the Supreme Court, this study will certainly provoke both the academic and legal communities to undertake further inquiries and researches.

Justice Mustafa Kamal, already known for his searching comments on legal issues and lively commentaries on constitutional trends, deserves congratulation for this intensely incisive study.

I wish this work a wider readership.

Emajuddin Ahmad
Vice-Chancellor
University of Dhaka

Dhaka
July, 1994

Introduction

Bismillah-ar-Rahman-ar-Rahim

I have, with pleasure and gratitude, accepted the invitation of the University of Dhaka to deliver the Kamini Kumar Dutta Memorial Law Lecture, 1994. This University is my *alma mater*. I owe a debt to it for whatever good has happened to me. My acceptance is a partial repayment of that irredeemable debt. I find, however, that this debt has increased by this assignment, for it is also an honour bestowed on me, making me feel that to repay its debt upon debt is a hopeless task. I also felt honoured to be able to associate my name with Kamini Kumar Dutta, a giant among lawyers of his time (1879-1959) in whose revered memory this Law Lecture has been introduced. At the end of these Lectures, I have appended a short biography of this legendary legal luminary for the benefit of those whose knowledge and memory of him may have faded or dimmed by lapse of time.

The University has given me the freedom to choose my own subject for these Lectures. Why of all subjects my choice has fallen on the Constitution of Bangladesh needs an explanation.

The Constitution is the Supreme Law of the Republic. The entire legislative, executive and judicial activities of the State are guided and regulated by the Constitution. In all countries where constitutionalism prevails, ordinary men and women are more or less knowledgeable about their country's constitution and are vigilant and vocal to a man to assert and preserve the Constitution and the constitutional rights. They do not leave their Constitution in the hands of constitutional lawyers, Judges and academicians. Each citizen is a defender of the Constitution, so that it becomes almost impossible to make an open breach of it

One cannot expect a vigilante citizenry in a predominantly illiterate population, although Article 21 of the Constitution says that "it is the duty of every citizen to observe the Constitution and the laws, to maintain discipline, to perform public duties and to protect public property". That makes the responsibility of the educated citizenry even greater in knowing, understanding and

observing the Constitution. The level of awareness. Consciousness and understanding of the Constitution and the commitment to defend it among our educated few is painfully dismal. They are ruefully apathetic to constitutional matters. Not to speak of the enlightened population, even the legal community has consigned the Constitution into the hands of a few, pathetically few, constitutional lawyers. Apart from a few text books of some sorts, there does not seem to exist a detailed article by article commentary on the Constitution of Bangladesh specifically with reference to decided cases after 1972. Writers on legal subjects seldom write on constitutional subjects and case-laws. The work of the Supreme Court on the Constitution from 1972-93 has largely remain ignored.

Constitutional development is no doubt an evolution of the Constitution through judicial decisions, but judicial decisions on the Constitution are the outcome of dedicated lawyering backed by intensive academic studies. A purposive and articulate academic community and an ever persistent lawyer community magnify the patent and the latent in the Constitution in all its facets and phases and it is they who by their continuous constitutional quests keep the torch of the Constitution burning even when the Constitution sustains an assault. The role of the Judges is no doubt important, but it is the practising lawyer who opens the multiple keys to the Constitution and shows to the Judge the wealth contained in it. A responsive Judge picks up the wealth thus exposed, although there have been and are Judges in all jurisdictions who need no keys. The wealth of the Constitution is stored in their wisdom. The lawyer has to know to pick it up in bits and pieces.

With intermittent interferences, which I have detailed in these Lectures, this Constitution of ours has been in operation since the last 21 years (1972-93) and a number of provisions of this Constitution has received authoritative interpretation from the Supreme Court in both Divisions. A detailed and systematic study of this accumulated interpretative role of our Supreme Court has not received the analytical attention that is its due.

I selected this subject not with an ambition to fill up the void, but with an humble intention to spur future academic ventures into this vast unexplored field. My effort is that of a starter, hence an incomplete effort. Readers of these Lectures will find several constitutional topics like fundamental rights, *habeas corpus*, *mandamus*, *certiorari*, prohibition and *quo warranto* missing from its pages, primarily because it was not possible to incorporate these relatively known subjects within the limited purview of these Lectures and also because the total work done by the Supreme Court in these fields over the last two decades are considerable enough to merit a separate and full-length treatment.

Readers will find in these Lectures quotations from judgments of the Supreme Court to be copious and lengthy, somewhat unusual in studies of this kind. The choice is deliberate. I wanted to highlight the post-1972 decisions of the Supreme Court on the Constitution. Hence the contents of the judgments feature more than anything else. Studies on any Constitution usually contain frequent references to the sayings of well-known authors and jurists, to U.K., U.S. and Indo-Pak judicial decisions and to the wisecracks of Judges. I have avoided the "parade of familiar learning" for which the Readers may turn elsewhere. I wanted the Readers to know how much (or how little) the Supreme Court has done so far.

Before the Constitution came into force on the 16th December, 1972 Bangladesh was governed, *de jure* from the 26th March, 1971, *de facto* from the 16th December, 1971, by three constitutional documents, the Proclamation of Independence, Laws Continuance Enforcement Order, 1971 and the Provisional Constitution Bangladesh Order, 1972. In Chapter I, these documents have been noted and the few cases on them have been dealt with.

In Chapter II, the salient features of our Constitution have been noted and those case-laws since 1972 have been mentioned and analysed which throw light on these basic features.

The period from 1972 to 1975 may be said to be the first phase of our constitutional journey, which saw as many as four constitutional amendments, the last one changing radically the basic features of the Constitution. A Proclamation of Emergency on the 28th December, 1974 kept certain fundamental rights outside of the jurisdiction of the High Court Division and this state of affairs continued upto the 27th November, 1979. The Constitution was almost throttled in its birth and Chapter III describes the unhappy childhood of the Constitution with some decided cases which highlight its teething troubles.

The First Martial Law in Bangladesh (1975-79) *per force* obliged the Supreme Court to steer its course towards Martial Law Jurisprudence, an unprecedented challenge to any new-born higher judiciary. The success and failure of the Supreme Court during this period is for the Readers to judge, but Chapter IV recreates the duel between constitutionalism and extra-constitutional take-over and the position the Supreme Court takes after an initial stupor.

Chapter V describes the interlude of 1979 to 1982 during which the Constitution was again allowed to have its full play and during which there was a spate of constitutional litigations, followed by the Second Martial Law in 1982 which continued upto 1986. The Supreme Court relapsed into Martial Law Jurisprudence once again. The remnants and fallouts of Martial Law became the concern of the Supreme Court.

With the restoration of thee Constitution in 1986, constitutional litigation reached its peak in 1988, when certain provision of the Eighth Amendment of the Constitution were challengd. The Constitution 8th Amendment case has been discussed in Chapter VI in its essentials.

Chapter VII describes the constitutional development after 1990 when the Parliamentary system was revived and covers the period upto the end of 1993. All constitutional cases of some importance, dealing with one or more provisions of the Constitution, have been noted.

Judicial Review, the soul of the judiciary in a Constitution, is a lionised subject in constitutional studies. I have avoided the beaten track and written about the limitations of this remedy in Chapter VIII.

Finally, in Chapter IX, I have given my perception of the issues looming large in the Constitutional horizon.

Snatching some time away from my day's (and night's) Court work, I have prepared these Lectures all alone in my study. I myself realise the deficiencies of this one-man effort. Readers will find even more. My apologies.

I thank Almighty Allah for His kindness in allowing me to complete the task.

Mustafa Kamal

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Chapter 1

PRE-CONSTITUTIONAL DOCUMENTS

1. The Proclamation of Independence

The Proclamation of Independence in Mujibnagar on the 10th day of April, 1971 heralded the birth of a new country with an old history and long memories. This document, the Proclamation of Independence, is the first constitutional document with which the new country made a constitutional start. It contains in itself the genesis of its creation and it graphically describes the rationale of its birth in the following words :

"THE PROCLAMATION OF INDEPENDENCE

Mujibnagar, Bangladesh

Dated 10th day of April, 1971.

Whereas free elections were held in Bangladesh from 7th December, 1970 to 17th January, 1971 to elect representatives for the purpose of framing a Constitution.

Whereas at these elections the people of Bangladesh elected 167 out of 169 representatives belonging to the Awami League,

AND

Whereas General Yahya Khan summoned the elected representatives of the people to meet on the 3rd March, 1971, for the purpose of framing a Constitution,

AND

Whereas the Assembly so summoned was arbitrarily and illegally postponed for an indefinite period

AND

Whereas instead of fulfilling their promise and while still conferring with the representatives of the people of Bangladesh, Pakistan authorities declared an unjust and treacherous war

AND

Whereas in the facts and circumstances of such treacherous conduct Bangabandhu Sheikh Mujibur Rahman, the undisputed leader of 75 million people of Bangladesh in due fulfillment of the legitimate right of self-determination of the people of Bangladesh, duly made a declaration of independence at Dacca on March 26, 1971, and urged the people of Bangladesh to defend the honour and integrity of Bangladesh

AND

Whereas in the conduct of a ruthless and savage war the Pakistani authorities committed and are still continuously committing numerous acts of genocide and unprecedented tortures, among others, on the civilian and unarmed people of Bangladesh,

AND

Whereas the Pakistan Government by levying an unjust war and committing genocide and by other repressive measures made it impossible for the elected representatives of the people of Bangladesh to meet and frame a Constitution, and give to themselves a Government."

Then comes a clean break from the past, an unshackling of the bondage of a past statehood and a self-proclaimed assumption of all power

AND

Whereas the people of Bangladesh, by their heroism, bravery and revolutionary fervour have established effective control over the territories of Bangladesh.

We, the elected representatives of the people of Bangladesh, as honour bound by the mandate given to us by people of Bangladesh, whose will is supreme, duly constituted ourselves into a Constituent Assembly, and having held mutual consultations, and in order to ensure for people of Bangladesh equality, human dignity and social justice

declare and constitute Bangladesh to be a sovereign People's Republic and thereby confirm the declaration of independence already made by Bangabandhu Sheikh Mujibur Rahman, and

do hereby affirm and resolve that till such time as a Constitution is framed, Bangabandhu Sheikh Mujibur Rahman shall be President of the Republic and that Syed Nazrul Islam shall be the Vice-President of the Republic, and

that the President shall be the Supreme Commander of all the Armed Forces of the Republic,

shall exercise all the Executive and Legislative powers of the Republic including the power to grant pardon,

shall have the power to appoint a Prime Minister and such other Ministers as he considers necessary,

shall have power to levy taxes and expend monies,

shall have the power to summon and adjourn the Constituent Assembly, and do all other things that may be necessary to give to the people of Bangladesh an orderly and just Government.

We, the elected representatives of the people of Bangladesh do further resolve that in the event of there being no President or the President being unable to enter upon his office or being unable

to exercise his powers due to any reason whatsoever, the Vice-President shall have and exercise all the powers, duties and responsibilities herein conferred on the President.

We further resolve that we undertake to observe and give effect to all duties and obligations that devolve upon us as a member of the family of nations and to abide by the Charter of United Nations.

We further resolve that this proclamation of independence shall be deemed to have come into effect from 26th day of March, 1971.

Thus, Bangladesh was born in the wake of a constitutional break. She started being free from any trace of subordination to or any link with the former state of Pakistan. The constitutional instrument of the Proclamation of Independence was given a force of law through its own native authority.

The Preamble to our Constitution, made effective from the 16th December, 1972, brings into sharp focus the native character of this authority.

> "We, the people of Bangladesh, having proclaimed our Independence on the 26th day of March, 1971 and through a (historic war for national independence) (substituted for the words "a historic struggle for national liberation" by Proclamation Order No. 1 of 1977), established the independent, sovereign People's Republic of Bangladesh; ... ...

the source of all power. Article 7(1) of the Constitution makes the point clearer, "All powers in the Republic belong to the people". The people's exercise of their own power is not dependent upon the consent, concurrence or approval of any external agency.

2. Laws Continuance Enforcement Order, 1971 and Provisional Constitution of Bangladesh Order, 1972.

On the 10th April, 1971, along with the Proclamation of Independence, Laws Continuance Enforcement Order was issued, providing that "all laws that were in force in Bangladesh on the 25th March, 1971, shall subject to the Proclamation aforesaid continue to be so in force with such consequential changes as may be necessary on account of the creation of the sovereign independent State of Bangladesh formed by the will of the people of Bangladesh. ... ..."

This was the provisional arrangement made for the governance of the People's Republic of Bangladesh which governed the field till the 10th January, 1972.

On the 11th January, 1972, the President of the People's Republic of Bangladesh, in exercise of powers conferred on him by the Proclamation of independence (namely, the President "shall exercise all the Executive and Legislative powers of the Republic ... ...") promulgated the Provisional Constitution of Bangladesh Order, 1972 providing therein that there shall be a Cabinet of Ministers which will be headed by a Prime Minister who will be a member of the Constituent Assembly and that the President shall in exercise of all his functions act in accordance with the advice of the Prime Minister. The President also promulgated the Constituent Assembly of Bangladesh Order, 1972 (P.O. No. 22 of 1972) on the 22nd March, 1972, making provisions for the functioning of the Constituent Assembly constituted by the Proclamation of Independence.

The President of Bangladesh thus exercised all legislative powers of the Republic, without the legislation being necessary to be debated or voted upon by any Parliament from the 16th December, 1971 (to be more precise, from the 26th March, 1971) till the Constitution came into force on the 16th December, 1972, and as we shall see presently, even after coming into force of the Constitution. These Presidential Legislative Decrees came to be termed as President's Order. The Acting President of Bangladesh (till the return of Sheikh Mujibur Rahman) passed four Acting President's Orders and the President passed as many as 154 Presidents Orders during the period from the 17th January, 1972 to the 15th December, 1972. These legislations are varied and all-embracing in scope and content and may be said to have laid the foundation of the new legal order in Bangladesh.

The Rule by Presidential decree was not, however, over when the Constitution of Bangladesh came into force on the 16th December, 1972. Paragraph 3(2) of the Fourth Schedule to the Constitution authorised the President to legislate as before till Parliament first meets after the first general election. The President promulgated 7 President's Orders in 1972 and 37 President's Orders in 1973 in exercise of that power. Out of these 202 President's Orders in total, some stand repealed, 26 stand protected from challenge under Article 47 read with the First Schedule to the Constitution and the rest are still existing laws of the country, with or without amendments.

Thus a bulk of the laws with which the country is being governed today, was not made by Parliament.

A. The case of A. K. M. Fazlul Hoque v. State, 26 DLR (SC) II. Decided on August 22, 1973.

In this case the Bangladesh Collaborators (Special Tribunals) Order, 1972, was challenged as a nullity, not being promulgated by an authority competent to do so.

It was argued that the Proclamation of independence envisaged a Presidential system of Government, but the Provisional Constitutional Order sought to alter the same to a Parliamentary or Cabinet system. It was contended that the President could have no authority to make constitutional provisions at least of the nature of clauses (5) to (8) of the Provisional Constitutional Order bringing about an alteration in the system of government, which resulted not only in violation of the mandate contained in the Proclamation but also in the self-effacement of the President himself and abdication of power by him in favour of the Prime Minister inasmuch as in the new system the President was to be appointed by the Cabinet and was again required to act in exercise of all his functions on the advice of the Prime Minister. It was urged that clauses (5) to (8) of the Provisional Constitutional Order which sought to alter the system of Government from the Presidential to the Cabinet system being invalid and the second President Mr. Justice Abu Sayeed Chowdhury having been appointed under clause (8) thereof, he was not the President contemplated in the Proclamation; and as such the laws promulgated by him under the Provisional Constitutional Order were invalid and the Collaborator Order being one such law was a nullity.

The Proclamation of independence has earlier been quoted in full. Clauses (5) to (8) of the Provisional Constitution Order, 1972 were as follows :

"(5) There shall be a Cabinet of Ministers, with the Prime Minster at the head.

(6) The President shall in exercise of all his functions act in accordance with the advice of the Prime Minister.

(7) The President shall commission as Prime Minister a member of the Constituent Assembly, who commands the confidence of the majority of the members of the Constituent Assembly. All

other Ministers, Ministers of State and Deputy Ministers shall he appointed by the President on the advice of the Prime Minister.

(8) In the event of a vacancy occurring in the Office of the President at any time prior to the framing of the Constitution of the Constituent Assembly, the Cabinet shall appoint as President a citizen of Bangladesh who will hold the office of President until another President enters upon the office in accordance with the Constitution as framed by the Constituent Assembly."

On the submissions made, the Appellate Division (judgment by A.S.M. Sayem, C.J.) held as follows :

"It is not necessary to pass any opinion on the validity of the submission that the Proclamation envisaged a Presidential system of Government. But it cannot be disputed that the Proclamation clothes the President designated by itself with all the powers of the State. The Provisional Constitution Order, on the other hand, sought to shift the focus of power to the Prime Minister from the President who was thereunder to be appointed by the Cabinet and was required by clause (6) thereof to act in the exercise of all his functions on the advice of the Prime Minister. Thus the Provisional Constitution Order brought about a change in the system of Government."

"The question, therefore, is whether the Proclamation had invested the President designated by it with the power to make a legislation affecting the system of Government."

"It was contended that the Legislative powers conferred by the Proclamation on the President designated by it was not intended to extend to changing the system of Government or to the making of a constitutional piece of legislation, even of an interim nature. It will, however, be seen that in addition to

conferring on the President all other powers including the executive powers, the Proclamation, after having noticed the prevailing circumstances invested him with all the "Legislative powers of the Republic". Obviously, the expression "Legislative powers of the Republic" is of the widest amplitude and admits of no limitation. The Proclamation, in our view, empowered the President designated by it to make any law or legal provision, even of a constitutional nature. We looked for but found no indication in the Proclamation to the contrary. On the other hand, assurance is lent to this view by the further provision in the Proclamation which empowered the President to do everything necessary to give the people of Bangladesh an orderly and just Government, including the power to appoint a Prime Minister and other Ministers. The impugned clauses (5) to (8) of the Provisional Constitution Order were thus authorised by the terms of the Proclamation."

"Other exceptions taken to the aforesaid clauses of the Provisional Constitution Order, namely, that they resulted in self-effacement of the President and in abdication of power by him, call for no separate discussion. Suffice it to state that such exceptions can be relevant only in cases involving complaints relating to unauthorised delegation of Legislative powers to external authorities. In the instant case the President designated by the Proclamation promulgated the Provisional Constitution Order in exercise of his plenary Legislative powers which, we have held, included the power to make interim Constitutional provisions. The submissions relating to abdication of power by the President or his self-effacement are thus out of place in this case."

"The impugned clauses of the Provisional Constitution Order, namely, clauses (5) to (8) thereof, not being, in our 10

view, in excess of the powers conferred on the President designated by the Proclamation, the validity of the appointment of the second President which was under clause (8) cannot be disputed. The Collaborators Order was thus promulgated by an Authority competent to do so."

B. The case of Dulichand Omaraolal vs. Bangladesh, 33 DLR (AD) 30, decided on June 18, 1980.

The question at issue in this case was whether the Enemy Property (Continuance of Emergency Provisions) Ordinance, 1969 was continued by Laws Continuance Enforcement Order, 1971. The Appellate Division (judgment by K. Hossain, C.J.) held as follows :

"In the present case, however, as we have said, we are to look for the validity of the Laws from the sources indicated earlier. A combined reading of Proclamation of Independence, Laws Continuance Enforcement Order, the Constitution of Bangladesh, President's Order No. 29 of 1972, President's Order No. 48 of 1972 and Act XLV of 1974 as amended by Act XCIII of 1976 clearly indicates, that Ordinance I of 1969 continued as a valid piece of legislation which has been repealed by Act XLV of 1974. No further argument or speculation is necessary."

C. The case of Md. Yahya vs. Govt. of Bangladesh 35 DLR (HCD) 182, decided on Feb. 3, 1982.

Yet another application of Laws Enforcement Order, 1971 is illustrated by this case. Under Martial Law Regulation No. 81 promulgated by the Chief Martial Law Administration of Pakistan currency notes of 500 and 100 rupees denomination

were demonetized on 7-6-71. It was held by the High Court Division (judgment by Sultan Hossain Khan, J.) that in the light of the Proclamation of Independence, Laws Enforcement Order, 1971 and Paragraph 3(1) of the Fourth Schedule to the Constitution, any Martial Law Regulation by the Martial Law Administrator of Pakistan in between 26-3-71 and the commencement of the Constitution cannot be treated as an existing law in Bangladesh. The Bangladesh Bank has no liability for the demonetized notes surrendered under MLR 81 of 1971.

D. The cases of Mullick Brothers vs. Income Tax Officer, 31 DLR (AD) 165, decided on 30-11-78 and Chittagong Textile Mills Ltd. vs. Bangladesh, (1979) 3 BSCR 440, decided on 6- 6-79.

Laws Continuance Enforcement Order, 1971 provided that all laws that were in force in Bangladesh on March 25, 1971 and were subject to the Proclamation of Independence, continued to be in force with such consequential changes as were necessary. Income Tax (Correction of Return & False Declaration) Regulation, 1969, M.L.R. No. 32 of 1969 was made by an authority, i.e., Martial Law authority of Pakistan, against whom the Proclamation of Independence was directed. This authority could not legislate for Bangladesh if such legislation was inconsistent with the Proclamation of Independence. Upon this reasoning the Appellate Division (judgment by K.M. Subhan, J.) in the case of Mullick Brothers vs. Income Tax Officer, 31 DLR (AD) 165 declared action taken according to its terms to be without lawful authority.

Similarly the Appellate Division held that the War Risk Insurance Ordinance, 1969 is inconsistent with the existence of independent Bangladesh. By virtue of the proclamation of Independence and in terms of the Laws Continuance Enforcement

Order, 1971 it is not an existing law in Bangladesh. Notices of demand issued in 1970 for payment of premium under the said Ordinance are not valid notices. (Chittagong Textile Mills Ltd. vs. Bangladesh, (1979) 3 BSCR 440).

E. Proclamation of Independence and its effect upon the State of War between India and Pakistan.

An unreported decision of the Appellate Division is illuminating on this question. In the case of Moniruddin Ahmed Chowdhury vs. Ranadhir Shyam, C.P.S.L.A. Nos. 4 and 5 of 1979, decided on 8-6-79, the plaintiff decree-holder-petitioners instituted an execution case which was contested by respondent no. 1 under section 47 C.P.C. Two of the decree-holders were residing in India and since 1965 they became alien residents. The Appellate Division observed that the High Court Division rightly noticed that sec. 83 C.P.C. was no longer operative in the present case and that the execution case in its entirety may proceed at the instance of the decree-holders irrespective of their respective residence. The Appellate Division held that whatever was the state of affairs between India and Pakistan since 1965, by the Proclamation of Independence on the 10th April, 1971 there was no continuance of such state of affairs between India and the territory which emerged as Bangladesh.

Chapter 2

CONSTITUTION – ITS BASIC FEATURES

1. Introduction

The Constitution, as the saying goes, is what the judges say it is (not when they deliver a lecture, as one of them is doing now, but when they pronounce a judgment sitting on the Bench).

From the political scientists' point of view, one can catalogue some non-fundamental provisions in 152 Articles of our Constitution and in the Four Schedules which follow. Perhaps all constitutions contain them. As Carl J. Friedrich said in Constitutional Government and Democracy (Revised Edition, 1950) :

> "Some things in a Constitution are "fundamental". Oliver Cromwell used to insist, while others are "circumstantial". A provision in the Instrument of Government had set aside £ 200,000 for the civil officers, that is the administration, with which to pay the judges and other officials, to defray the charges of the council in sending their embassies, to support the governor-in-chief and so forth. This provision Cromwell called a circumstantial thing, "to be regulated as occasion shall offer." He freely admitted that there were many such circumstantial things in the Instrument "which are not like the laws of the Medes and Persians" but a "matter of consideration between you and me". Many modern "constitutions", that is, documents containing a real constitutional system of restraints, will, along

> with this system of restraints, contain such "circumstantial" provisions. Ordinary legislation within the confines of a "constitution" is particularly notorious in the State Constitutions of the United States" (p. 144)

From the standpoint of constitutional law it will be totally unacceptable to divide a written Constitution into provisions which are binding like the laws of the Medes and Persians and those which are a matter of consideration between you and me. Article 7(2) of our Constitution proclaims, "This Constitution is, as the solemn expression of the will of the people, the supreme law of the Republic, and if any other law is inconsistent with this Constitution that other law shall, to the extent of the inconsistency, be void." All the provisions of the Constitution taken together is the Supreme law of the Republic. The Constitution does not contain ordinary legislation.

Yet even constitutional lawyers and judges may discern some fundamental structural designs in a Constitution, as when an architect views a building. They can see the schematic structure of the constitutional edifice, the basic pattern into which the constitutional fabric has been woven. Call it basic structures or structural pillars or by whatever name they are there and in my eyes they are principally the following in our Constitution.

2. A Unitary, Independent, Sovereign Republic

The Constitution expresses itself on one of its basic structures in Article 1. "Bangladesh is a unitary, independent, sovereign Republic to be known as the People's Republic of Bangladesh". The independent and sovereign character of the country stem from the Proclamation of Independence declaring and constituting Bangladesh "to be a sovereign People's Republic". Article 1 distinguishes Bangladesh from a dependency or a colony or a federating unit. Bangladesh has opted for a republican form of

government. So any kind of monarchy, oligarchy, aristocracy or dictatorship is an anathema to its republican character. Article 7 of the Constitution emphasises two aspects, one, the people as the repository of all powers in the Republic and the second, the supremacy of the Constitution. It says,

> "7. (1) All powers in the Republic belong to the people, and their exercise on behalf of the people shall be effected only under, and by the authority of, this Constitution.
>
> (2) This Constitution is, as the solemn expression of the will of the people, the supreme law of the Republic, and if any other law is inconsistent with this Constitution that other law shall, to the extent of the inconsistency, be void."

The implication of Article 7 will be considered in more details later while discussing the Constitution 8th Amendment Case.

The unitary feature of the Republic is reflected in all the three organs of the State, legislature, executive and the judiciary. All the "legislative powers of the Republic" are vested in a single Parliament (Article 65). There is no other co-ordinate or territorial law-making body. All the powers of Government are conferred upon a single central Government and all territorial administrative units and local governments derive their power and jurisdiction from this single authority. All judicial powers of the Republic are vested centrally in the Supreme Court of Bangladesh, comprised of two Divisions, the Appellate Division and the High Court Division. Thus all the legislative, executive and judicial powers are vested in a single set of authorities. The outstanding feature of the unitary system of government, as the name implies, is unity and the Constitution carefully built up a single, unified and centralised command structure from where the territorial units will receive their law, administration and justice. In a federal structure, the federating units do not derive their

authority from the federal legislature, federal executive and federal judiciary. Partly the federal constitution and mainly the State Constitution are the source of their authority. This is an important distinction to remember.

3. Separation of Powers

The Constitution assigned to the legislature, executive and the judiciary clearly-demarcated roles, each controlled by constitutional provisions and no one organ generally overlapping with the other, although some overlappings are inevitable. Article 65 of the Constitution vests the legislative powers of the Republic in Parliament in express terms. Article 55(2) of the Constitution originally provided that "the executive power of the Republic shall, in accordance with this Constitution, be exercised by or on the authority of the Prime Minister". With the introduction of Presidential system of government, Article 55(2) had undergone some changes later, but it was restored in full by the Constitution (Twelfth Amendment) Act, 1991 with effect from 18-9-91.

But there is no express vesting of judicial power in the Supreme Court in the Constitution. In the case of Mujibur Rahman vs. Bangladesh, 44 DLR (AD) 111, Mustafa Kamal, J. approvingly quotes the observations of Lord Diplock, expressing the majority view in Hinds & others vs. The Queen (1976) 1 All ER 253, as follows :

> "As respects the judicature, particularly if it is intended that the previously existing Courts shall continue to function, the Constitution itself may even omit any express provision conferring judicial power on the judicature. Nevertheless, it is well established as a rule of construction applicable to constitutional instruments under which the governmental structure is adopted that the absence of express words to that

effect does not prevent the legislative, the executive and the judicial powers of the new state being exercisable by the legislature, by the executive and by the judicature respectively."

Mustafa Kamal, J. then points out that our Constitution expressly provides in paragraph 6 of the Fourth Schedule the continuity of the incumbent Chief Justice and the Judges of the erstwhile High Court of Bangladesh in the new dispensation and the transfer of legal proceedings from the previous Courts to the two Divisions of the Supreme Court. Until the provisions of Chapter II of Part I are implemented, the Constitution provides that the matters provided for therein shall be regulated in the manner in which they were regulated immediately before the commencement of the Constitution. He holds,

> "Our Constitution, therefore, expressly intended that the previously existing superior Courts shall continue to function, albeit in a new dispensation and the subordinate courts too shall continue to function. Although the Constitution itself omitted to confer judicial power on the Supreme Court and the Subordinate Courts by any express provision, there can be no doubt whatsoever that the Supreme Court and the Subordinate Courts are the repository of judicial power of the State, because they have been previously existing and the Constitution allows them to function, although in a new form." (Para 71).

A. Is Parliament free to legislate as it chooses?

(i) Supremacy of the Constitution

The short answer is, no. The doctrine of legislative supremacy in the United Kingdom is not available in a written Constitution which contains a constitutional system of restraints giving the superior court a power of judicial review. A written constitution is a mandate for limited government, each organ of

the State limited and controlled by the jurisdiction conferred on it by the Constitution and thereby obliged to act within the limitations imposed by the Constitution. No organ of the State is superior to the other. It is the Constitution which is superior to all the organs of the State. The supremacy of the Constitution articulated in Article 7(2) – "This Constitution is, as the solemn expression of the will of the people, the supreme law of the Republic" is the cornerstone of the Constitution of Bangladesh.

(ii) Constitutional Limitations

The Constitution itself places limitations on the power of Parliament to make ordinary laws. Article 65 vests Parliament with "the legislative powers of the Republic" but the vesting is "subject to the provisions of this Constitution". In the case of Mofizur Rahman Khan vs. Bangladesh, 34 DLR (AD) 321. K. Hossain, C.J. points out the limitations on the uncontrolled exercise of legislative power :

> "It is first to be observed that Bangladesh Parliament by virtue of Article 65 has plenary or supreme legislative power conferred upon it and this power is exerciseable subject to the Constitution. The Constitution puts two bars on the legislative power of the Parliament, one is that the Constitution being the supreme law of the State and any other law inconsistent with it, shall to the extent of inconsistency be void. The second is set out in the Fundamental Rights chapter or Bill of Rights chapter. Article 26 at the beginning of the Chapter of Fundamental Rights says that all existing laws inconsistent with the Fundamental Rights shall, on the commencement of the Constitution, to the extent of inconsistency, become void, and the State shall not make any law inconsistent with the Fundamental Rights, and any law so made shall to the extent of the inconsistency be void."

Article 135 of the Constitution gives some constitutional protection to persons holding civil posts in the service of the Republic. Parliament cannot pass any law evading or overriding these protections. It has been held in the case of Dr. Nurul Islam vs. Bangladesh (per Ruhul Islam, J.), 33 DLR (AD) 201, "Article 135 provides the constitutional protection to the government servants, who have title to the office, against arbitrary and summary dismissal or removal. From this it can be safely held that the Government or the Legislature cannot by framing a Rule or by enacting a law evade the guarantees provided under the Fundamental Rights and the protections provided under Article 135 of the Constitution". (para 104).

Articles 59 and 60 of the Constitution deal with local government and it bas been held by the Appellate Division in the case of Kudrat-i-Elahi Panir vs. Bangladesh, 44 DLR (AD) 319, that Articles 59 and 60 restrict the plenary legislative power of Parliament to enact laws on local government to the extent that Parliament cannot transgress overlook and ignore the constitutional provisions prescribing the manner and method of establishing local government, its composition, powers and functions including power of local taxation. Some words in a repealing Ordinance were found to be *ultra vires* the Constitution. Also it has been held that Articles 59 and 60 cannot remain as dead letters in the Constitution. At a given point of time there must be some form of local government in terms of Articles 59 and 60.

"It is", however, as observed by M.H. Rahman, J. in the case of Mujibur Rahman vs. Bangladesh, 44 DLR (AD) 111, "a settled principle of interpretation that an expression used in a constitutional enactment conferring legislative powers must be construed not in any narrow or restricted sense, but in a sense beneficial to the widest possible amplitude of the powers".

(para 40). Article 117(1) empowered Parliament by law to establish one or more administrative tribunals to exercise jurisdiction in respect of *inter alia* the terms and conditions of persons in the service of the Republic and the proviso to Article 117(2) empowered Parliament by law to provide for appeals from or the review of decisions of any such tribunal. It was held that Parliament's power to "provide for appeals" include the power to create an appellate forum. The doctrine of implied powers and the doctrine of incidental and ancillary powers were held applicable to this case. For a full review of these doctrines see paragraphs 85-88 of the report in the judgment by Mustafa Kamal, J.

(iii) Limitations by Judicial Decisions

Proviso to Article 65 authorises Parliament to delegate to any person or authority by Act of Parliament power to make orders, rules, regulations, bye-laws or other instruments having legislative effect. This is not to say that Parliament can abandon its essential lawmaking function and delegate to any person or authority its essential legislative powers. Self-effacement of Parliament or abandonment of its lawmaking power or excessive delegation of legislative power has often rendered legislation invalid by judicial decisions.

The power of the President to adopt the provisions of a written constitution for a specified period by way of modification, addition or omission for the purpose of removing any difficulties that may arise in bringing a written constitution or any of its provisions into operation is subject to limitations by judicial decision – it cannot alter the system of government itself. Fazlul Quader Chowdhury vs. Md. Abdul Haque. PLD 1963 (SC) 486.

There is limitation on the power of Parliament to pass "legislative judgments". Inherent in the concept of separation of

powers is the well-established judicial principle that the legislature cannot make direct inroad into the judicial power of the State. It cannot pass a legislative judgment. When the court declares a law to be invalid, Parliament cannot pass a law declaring that the judgment is invalid or that the action taken under the invalid statute shall be deemed to be valid retrospectively. Parliament cannot by a legislation ask anyone to disregard or disobey the Court's decisions.

What power Parliament possesses or does not possess in respect of validation of an act found invalid earlier is the subject-matter of the case of Mofizur Rahman Khan vs. Government of Bangladesh, 34 DLR (AD) 32.

First, what Parliament does not possess. "It is another canon of interpretation that granted the legislative competence", says K. Hossain, C.J. (that) "it is not sufficient to declare that the decision the Court shall not bind, for that amounts to reversing the decision and is the exercise of judicial power which the legislature does not possess. It cannot by validating a law promulgate a legislative decision ... ." para 6. Shahabuddin Ahmed, J. who wrote the main judgement says, "The legislature cannot reverse or set aside the Court's judgment, order or decree ... ." (para 22).

Secondly, what Parliament possesses. As the supreme legislative authority Parliament may pass any law on any subject, not prohibited by the Constitution, both prospectively and retrospectively. Similarly, it can validate, subject to the Constitution, any law earlier found invalid either prospectively or retrospectively. K. Hossain, C.J. expressed himself thus :

> "Parliament has the power to validate a law declared by a Court illegal by removing the cause of illegality or infirmity. The basic condition of validation is that Parliament must posses the

power to legislate on the subject and having the legislative competence Parliament can validate a law by removing the infirmity and, in so doing, has the power of giving it a retrospective operation, prospective operation always being presumed.

The validity of a validating law is to be judged by three tests. The first, is to see whether Parliament is clothed with the legislative power on the subject. The second is whether by validation, Parliament has removed the defect which the Court had found in the earlier law. And thirdly, whether the validating law is consistent with the provision of the Constitution. When all the three tests have been fulfilled, the validation law may operate retrospectively. if Parliament so expresses it in the validating enactment. The invalidity of a law may be owing to some legislative incompetency or to its repugnancy to any of the fundamental rights and they can be cured in the manner set out above."

Shahabuddin Ahmed. J. is of the same view. He says, "The legislature cannot reverse or set aside the courts judgement, order or decree but it can render the judgement, order or decree ineffective by removing their basis. This may be done by in making a valid law with retrospective operation and the making an action valid retrospectively by deeming this action to have been taken under the new Act."

In Mofizur Rahman Khan's case (supra) the Appellate Division found that a valid law was made with retrospective operation and the impugned action was deemed to be taken under the new Act. The facts of the case are that section 9(2) of Act XII of 1974 provided that the Government may, at any time, retire from service a public servant who has completed twenty-five years of service without assigning any reason. One Mofizur Rahman Khan and one Borhanuddin Ahmed were so retired under

section 9(2). Section 9(2) was declared *ultra vires* the Constitution being violative of Articles 27 and 29 of the Constitution by the Appellate Division in the case of Dr. Nurul Islam vs. Government of Bangladesh, 33 DLR (AD) 201. By Ordinance No. VI of 1981, section 9(2) was amended with retrospective effect. The same power became exercisable by the Government "if it considers necessary in the public interest". Under section 5 of the Ordinance, a validation provision was made as follows :

> "5. Validation.– Notwithstanding to the contrary contained in any other law for the time being in force or any judgment, decree, order or decision of any Court, including the Supreme Court, all orders of retirement made or purporting to have been made under sub-section (2) of section 9 of the said Act before the commencement of this Ordinance shall be deemed to be, and to have always been made validly, lawfully and in the public interest and under the said sub-section as substituted by this Ordinance; and no such order of retirement shall be deemed to be illegal, invalid, void or ineffective, or ever to have become illegal, invalid, void or ineffective, by reason only of the fact, or shall be called in question in any Court, including the Supreme Court, or Tribunal, merely on the ground, that at the relevant time such order was made in exercise of a discretionary power conferred by the said sub-section without any principle or guideline for the exercise thereof or that at that time the said sub-section was not valid."

The validation provision was challenged in the Appellate Division in Mofizur Rahman Khan's case (supra). The Appellate Division found the retrospective validation "to be a constitutionally valid legislation", for the reason given above.

Shahabuddin Ahmed, J. however, hastened to say, obviously in respect of the bar imposed in the second part of section 5, that

"even in a case where retirement is made under the amended law and the order expressly shows that it has been made in the public interest, yet the court shall have the power to see whether the order is in colourable exercise of power or is *mala fide* or whether it has been made by the person by whom it was purportedly made or the person who made it had authority or jurisdiction to make the order. So in the case of an action validated by the new law, the court certainly got power to see that the order does not suffer from any such infirmities." The Appellate Division in fact looked into the cases of both Mofizur Rahman Khan and Borhanuddin Ahmed and found that the order of premature retirement passed against Mofizur Rahman Khan was in the public interest but the one passed against Borhanuddin Ahmed cannot be taken to be an order in the public interest in accordance with section 9(2) as it stands amended. The order of retirement passed against Mofizur Rahman Khan was maintained, but that against Borhanuddin Ahmed was set aside.

(iv) Limitations on the Power of Amendment of the Constitution.

In amending the Constitution, Parliament passes a law, but is the power unlimited? The Appellate Division by a majority judgment answers the question in the negative. Relying on the Preamble and Article 7 of the Constitution it declared the 8th Amendment of the Constitution, amending Article 100 along with consequential amendment of Article 107 of the Constitution as *ultra vires* and invalid (Anwar Husain vs. Bangladesh. 1989 BLD (Spl. 1). This case which I shall discuss in details later extended the sphere of limitations on legislative power. Even an amendment of the Constitution cannot run counter to the Preamble and Article 7 of the Constitution.

B. Immunity of Parliament and its members from interference by Courts.

To keep Parliament and its members immune from the interference of Courts in so far as their internal workings are concerned, which again is an illustration of the doctrine of separation of powers inherent in the Constitution. Article 78 provides the following :

"78. (1) The validity of the proceedings in Parliament shall not be questioned in any court.

(2) A member or officer of Parliament in whom powers are vested for the regulation of procedure, the conduct of business or the maintenance of order in Parliament, shall not in relation to the exercise by him of any such powers be subject to the jurisdiction of any court.

(3) A member of Parliament shall not be liable to proceedings in any court in respect of anything said, or any vote given, by him in Parliament or in any committee thereof.

(4) A person shall not be liable to proceedings in any court in respect of the publication by or under the authority of Parliament of any report, paper, vote or proceeding.

(5) Subject to this article, the privileges of Parliament and of its committees and members may he determined by Act of Parliament."

The Court and the two Houses of Parliament in England have a long history of direct conflict. The conflict and the present position is summarised in Halsbury's Laws of England, 3rd Edition, Volume 28, p. 467. as follows :

SUBJECT (3). The Courts of Law and the Privileges of the Houses.

"917. The position of the courts of law. Each House claims to be the sole and exclusive-judge of its own privilege and of

the extent of that privilege. In opposition to this claims in the courts of law, while allowing the existence of privileges essential to the discharge of the functions of the two Houses, assert that they have judicial knowledge of the extent of privilege and that they are not bound by resolutions of either House declaratory of privilege; and they have maintained mainly in relation to the Commons that they are bound to decide questions confine before them which involve a contravention of the law of the land, even if privilege is concerned."

"918. Limits of agreement regarding jurisdiction. In spite of this dualism of jurisdiction, a large measure of agreement on the respective spheres of the two Houses and the courts has been reached, which has, since the mid-nineteenth century, prevented the direct conflicts of earlier years."

"Although the Houses have never directly admitted the claim of the courts of law to adjudicate on matters of privilege, they appear to recognise that neither House is by itself entitled to claim the supremacy which was enjoyed by the undivided High Court of Parliament. Furthermore, it is admitted by both Houses that neither House can by its own resolution claim a new privilege."

"For their part the courts of law acknowledge that the control of each House over its own proceedings is absolute and not subject to judicial jurisdiction; and the courts of law will not interfere with the interpretation of a statute by either House so far as the proceedings of the House are concerned. Neither will the courts of law inquire into the reasons for which a person has been adjudged guilty of contempt and committed by either House, when the order or warrant upon which he has been arrested does not state the causes of his arrest; for in such cases it is presumed that the order or warrant has been duly issued unless the contrary appears upon the face of it."

4. Independence of the Judiciary

A. The Supreme Court

The Constitution in its original form devised a scheme of completely independent judiciary. The independence of the judiciary can be measured by the provisions a constitution contains in the matter of selection and appointment of judges, security of tenure, remuneration and other privileges, irremoveability except on proved misbehaviour or misconduct, independence in the exercise of judicial functions, the assurance of compliance with the judge's decisions and the meat and substance of power and jurisdiction that it confers upon the judiciary.

(i) *The Appointment of Judges*

Article 95(1) provided that "the Chief Justice shall be appointed by the President, and the other Judges shall be appointed by the President after consultation with the Chief Justice". The Constitution (Fourth Amendment) Act, 1975 took away the provision of consultation. As it stands now, "the Chief Justice and other Judges shall be appointed by the President". The element of consultation in the selection of other judges was a major safeguard against political and expedient appointments. The metamorphosis of Article 95(1) renders the highest judicial appointments in the country subject to valid objections. A Judge's appointment is now an exclusive privilege of the Chief Executive. The office of the President was the office of the Chief Executive from 1975 to 1991. Since 1991 the President is a titular head. As Article 48(3) stands now, the President has the power to appoint the Prime Minister and the Chief Justice without the advice of anyone, but in all other matters he "shall act in accordance with the advice of the Prime Minister". The Prime Minister is now the

Chief Executive, on whose advice the President is obliged to act. Therefore, it is in fact the Chief Executive who advises the President to appoint the other Judges of the Supreme Court.

The original Article 95(1) contained a constitutional acknowledgement of the role of the Chief Justice in the matter of appointment of the Judges of the Supreme Court. It implied a tacit recognition of the premises that appointments to the highest judiciary need to be above political considerations and that the Chief Justice being head of the Judiciary is the most competent person to opine who is most suitable for such appointment. Consultation with him was therefore made a constitutional imperative. The withdrawal of consultation is tantamount to a negation of that premise. However, inspite of this constitutional change in 1974, all appointments as Judges of the Supreme Court have in fact been made in consultation with the Chief Justice. One departure was made in February, 1994 when 9 Additional Judges were appointed to the High Court Division without consultation with the Chief Justice. Following a protest, the Notification was rescinded and fresh appointments were made, recognising in the fresh Notification itself, that the appointments were made in consultation with the Chief Justice.

(ii) The Selection of Judges

In the original Article 95(2), a citizen of Bangladesh being an advocate of the Supreme Court of not less than ten years standing or a citizen holding Judicial office or being an Advocate for not less than ten years in the territory of Bangladesh and having exercised the powers of a district Judge for not less than three years, was eligible for appointment as a Judge. The qualification was relaxed from time to time during Martial Law dispensation, obviously to accommodate appointments not enough to meet the original constitutional requirement. As at present, after all these

changes, a citizen of Bangladesh being an advocate of the Supreme Court of not less than ten years standing or a person holding judicial office for not less than ten years in the territory of Bangladesh or having such other qualifications as may be prescribed by law (no law having been made so far) qualify for appointment as a Judge.

(iii) Security of Tenure and Irremoveability

The Judges have a constitutionally fixed tenure of office, which was sixty-two years originally and now sixty-five years (Article 96(1)). Under the original Article 96(2) a Judge was irremoveable except by an order of the President passed pursuant to a resolution of Parliament supported by a majority of not less than two-thirds of the total number of members of Parliament, on the ground of "proved misbehaviour or incapacity" The Constitution (Fourth Amendment) Act, 1975 amended clause (2) and made a Judge removable by order of the President on the ground of "misbehaviour or incapacity" after a show cause. The entire Chapter I on Supreme Court was substituted by the Second Proclamation Order No.I of 1977 with effect from 1-12-77. The substituted Article 96(2) and (3) provide that the Judges are removable on the ground of "incapacity or gross misconduct" on a report by the Supreme Judicial Council consisting of the Chief Justice and the two next senior Judges. The substituted provisions are perhaps better than the original ones, in that the grounds of removal are on a more sophisticated plane and in that a Judge who holds a high constitutional office has now been saved from the ignominy of holding an office removable by the Chief Executive and has also been saved from the ignominy of a public exposure in a popular forum. The substituted provisions accord more with the constitutional scheme of separation of powers. No Judge has however been removed from office following the procedure in Article 96, but some Judges have been removed under Martial Law dispensation.

(iv) Remuneration and other Privileges

The remuneration, privileges and other terms and conditions of service of a Judge shall not be varied to his disadvantage during his term of office. This provision in Article 147 of the Constitution remains unchanged.

The remuneration payable to the Judges of the Supreme Court and the administrative expenses of, including remuneration payable to, officers and servants of the Supreme Court shall be charged upon the Consolidated Fund, which may be discussed in, but shall not be submitted to the vote of Parliament. The original provisions of Articles 88 and 89 of the Constitution have not been changed.

(v) Independence in the Exercise of Judicial Functions

Article 94(4) of the Constitution provides, "Subject to the provisions of this Constitution the Chief Justice and the other Judges shall be independent in the exercise of their judicial functions". There is no analogous corresponding provision in the Indian Constitution or the Constitution of Pakistan (1973).

(vi) Supreme Court to be aided

As the Supreme Court itself has no machinery to execute its own decisions, Article 112 provides: "All authorities, executive and judicial, in the Republic shall act in aid of the Supreme Court".

(vii) Powers and Jurisdiction of the Supreme Court

There is no dearth of powers and jurisdictions conferred by the Constitution upon the Supreme Court to make it any the less effective and efficacious than any other comparable judiciary in any other written Constitution. The Court at the apex, the Appellate Division, has the jurisdiction to hear and determine

appeals from judgments, decrees, orders or sentences of the High Court Division. But appeal lies as of right only where the High Court Division certifies that the case involves a substantial question of law as to the interpretation of the constitution, or has sentenced a person to death or to imprisonment for life or has imposed punishment on a person for contempt of that Division and in such other cases as may be provided by Act of Parliament. In all other cases an appeal shall lie only if the Appellate Division grants leave to appeal (Article 103). The Appellate Division has the power to issue directions, orders etc., for doing complete justice in a case (Article 104). It can review its own judgments and the President may refer a question of law to the Appellate Division for its opinion (Articles 105 and 106).

It is indeed the High Court Division round which the superior judicial machinery revolves. The High Court Division shall have such original, appellate and other jurisdiction, powers and functions as are or may be conferred on it by the Constitution or any other law. There has never been any paucity of laws which do not confer on it a multitude of such original, appellate and other jurisdictions. As far as the Constitution is concerned, Article 102(1) confers on the High Court Division the jurisdiction to issue directions or orders for the enforcement of the fundamental rights conferred by Part III of the Constitution. Article 44, which is in Part III, provides that "the right to move the High Court Division in accordance with clause (I) of Article 102 for the enforcement of the rights conferred by Part III is guaranteed". The right to move the High Court Division for enforcement of fundamental right is itself a guaranteed fundamental right. Article 102(2) of the Constitution contains the power of judicial review of the High Court Division. This is by now an oft-used, much-used power and I need not elaborate this power at this stage. Article 109 gives the High Court Division power of superintendence and control over all courts and tribunals subordinate to it. Article 110

gives it the power to transfer cases from subordinate courts to itself. The Supreme Court is a Court of record (Article 108) and the law declared by the Appellate Division shall be binding on the High Court Division and the law declared by either division of the Supreme Court shall be binding on all courts subordinate to it (Article 111).

The Constitution (Fourth Amendment) Act, 1975 made the first surgery on the powers of the High Court Division. Its power under Article 102(1) to issue directions, orders etc., for enforcement of fundamental rights was taken away, gone was the fundamental right to move the High Court Division for enforcement of fundamental rights under Article 44. Fundamental rights were to be enforced (in future) by a constitutional court, tribunal or commission which may be established by Parliament by law.

It was a Martial Law legislation, Second Proclamation Order No. IV of 1976, which restored Articles 44 and 102(1) to their original shape. There they stand now.

These are the provisions in the Constitution which taken together seek to give the judges of the Supreme Court an independence in the discharge of their judicial functions. Some changes in the original Constitution are no doubt improvements, but not all.

B. The Subordinate Courts

As noticed earlier, along with the Supreme Court the subordinate courts of the country wield the judicial power of the Republic. Officers in the judicial service or magistrates exercising judicial functions never had any constitutional protection in so far as their security of tenure, salary and other privileges, superannuation and control and discipline are concerned. Those were governed by statutory rules, but the original Constitution bestowed upon the

subordinate courts a status and entity which was aptly commensurate with their assigned role as the wielder of judicial power of the Republic. The original Article 115 conferred the power of appointment of judicial officers and magistrates exercising judicial functions upon the President, but he had to appoint district judges on the recommendation of the Supreme Court and in the case of any other person, in accordance with rules made by him in that behalf after consulting the appropriate public service commission and the Supreme Court. The district judge's qualifications were also set out. He must hold for not less than seven years judicial office in the service of the Republic or been an advocate for not less than ten years. The original Article 116 vested the control (including the power of posting, promotion and grant of leave) and discipline of persons employed in the judicial service and magistrates exercising judicial functions in the Supreme Court.

The Supreme Court had thus a demonstrably consultative role in the appointment of district judges and in framing rules for the appointment of other persons in the judicial service. After appointment, however, the Supreme Court controlled the career and discipline of judicial officers and magistrates exercising judicial functions. The constitutional provisions in themselves constituted a built-in safeguard for the independence of the lower judiciary.

The interference with the original scheme came from the Constitution (Fourth Amendment) Act, 1975. Article 115 was substituted making appointments of judicial officers and magistrates an exclusive preserve of the President in accordance with rules made by him in that behalf. The Supreme Court lost its consultative role. Article 116 was also substituted. The control and discipline of judicial officers and magistrates now vested in the President. The Supreme Court lost all vestige of connection

with the subordinate court. An improvement was made during Martial Law dispensation by Second Proclamation Order No. IV of 1978. The control and discipline of judicial officers and magistrates continued to be vested in the President, but the power "shall be exercised by him in consultation with the Supreme Court".

Articles 115 and 116 remain in this substituted and changed form till today.

Ironically, the Constitution (Fourth Amendment) Act, 1975 which made a drastic inroad into the independence of subordinate courts introduced a novel Article 116A in the Constitution, namely, "Subject to the provisions of the Constitution, all persons employed in the judicial service and all magistrates shall be independent in the exercise of their judicial functions" which provision remains unchanged up-to date. This Article is no doubt a constitutional acknowledgement of the independence of sub-ordinate judiciary, but how far executive appointments under executive discipline are compatible with Article 116A and how far they accord with the constitutional scheme of separation of powers are undecided matters. Also undecided remain the nature, effect and efficacy of "consultation" that the President has to make with the Supreme Court under Article 116. Also not yet decided is the kind of appointment that the President can make under Article 115, which is an important question as these Presidential appointees exercise the judicial power of the Republic.

5. Parliamentary Democracy

In Part IV of the original Constitution, the constitutional provisions relating to the President and the Prime Minister and the Cabinet and in Part V concerning Parliament clearly and unmistakably designed a cabinet system of government for

Bangladesh, the Prime Minister heading the cabinet, the cabinet being collectively responsible to Parliament and the Prime Minister being obliged to resign or advice the President to dissolve Parliament if he or she ceases to retain the support of a majority of the members of Parliament. The Head of State, the President, was a titular head who had to act in accordance with the advice of the Prime Minister, save when he appointed the Prime Minister. The well-known characteristics of a Cabinet Government or a Parliamentary Democracy, in whichever name one may call it, were present in the original Constitution.

A radical assault to this system of government was made by the Constitution (Fourth Amendment) Act, 1975. It sought to establish a Presidential system of government with a President elected by direct election, for a fixed term of office, with a Vice-President appointed by the President, with a Council of Ministers to aid and advise the President and with a Parliament unable to remove the President or to bring about the fall of the Council of Ministers.

Successive Martial Law dispensations found the Presidential form of government introduced by the Constitution (Fourth Amendment) Act, 1975 to be highly conducive to good government and naturally persisted with it. It is only after the general elections held in February 1991 that the Presidential form of Government was dismantled and the original cabinet system of government re-introduced with some modification by the Constitution (Twelfth Amendment) Act, 1991. Act XXVIII of 1991, with effect from 18-9-91, after a referendum was held, as required under Article 142 (1A) of the Constitution.

6. Fundamental Rights

Like most constitutions framed after the Second World War, our Constitution too contains a Chapter on Fundamental Rights. The

Preamble declares that to realise "fundamental human rights an freedom" is a fundamental aim of the State. What is "the State" Article 152 gives an inclusive definition. It "includes Parliament, the Government and statutory public authorities." Article 26(1) and (2) not only makes all existing laws inconsistent with fundamental rights void to the extent of such inconsistency but also enjoins upon the State not to make any law inconsistent with fundamental rights and declares that "any law so made shall, to the extent of such inconsistency, be void." Article 26 is a fetter upon the law-making power of Parliament. Parliament is the supreme legislative authority, but very much obliged to legislate "subject to the provisions of this Constitution". Article 26 is one such limitation on the plenary power of Parliament. The executive, i.e., the Government and statutory public bodies are also within the ambit of Article 26. Having regard to the definition of "law" in Article 152, namely, " "law" means any Act, ordinance, order, regulation, bye-law, notification or other legal instrument, and any custom or usage, having the force of law in Bangladesh" ... an order passed by the Government or any of its departments or by any statutory public authority having the force of law is subject to the provision of Article 26. Besides, under the proviso to Article 65 an Act of Parliament may delegate to any person or authority power to make orders, rules, regulations, bye-laws or other instruments having legislative effect. These "persons" or "authorities" are required to abide by Article 26 while making orders, rules, regulations etc. Any legal instrument having legislative effect shall follow the injunction of Article 26.

Whether the judiciary, i.e., judicial decisions, is also included within the term "the State" is an undecided question in Bangladesh.

Fundamental Rights is itself a subject worthy of the most detailed consideration and I have kept this subject outside of the purview of this Lecture. Pertinent questions like whether fundamental rights are amendable may perhaps be left for some future occasion for study.

7. Judicial Review

This basic structure of the Constitution will be discussed in some details in a later Chapter.

Chapter 3

CONSTITUTIONAL JOURNEY (1972-75)

The Constitution of Bangladesh embarked on its eventful journey from the 16th December, 1972 soon to run into troubled waters. The Constitution (First Amendment) Act, 1973, Act No. XV of 1973, was passed on the 15th July, 1973, amending Article 47 and inserting a new Article 47A, concerning trial of persons for genocide, crimes against humanity or war crimes. The Constitution (Second Amendment) Act, 1973 (Act No. XXIV of 1973) was passed on the 22nd September, 1973, effecting amendments in various Articles including Articles 26 and 142, the full implication of which will be discussed later and introducing Emergency Provisions, Article 141A-141C, which were singularly lacking in the original Constitution. Article 141C empowers the President to suspend enforcement of fundamental rights during emergencies. On the 28th November, 1974 came the Constitution (Third Amendment) Act, 1974, Act No. LXXIV of 1974, effecting changes in Article 2 concerning the territory of the Republic, following the Appellate Division's judgment in the case of Kazi Mukhlesur Rahman vs. Bangladesh (26 DLR (SC) 44).

During the period under consideration, fundamental rights were enforceable for only two years, from 1972 to 1974. A Proclamation of Emergency was issued by the President under Article 141A on the 28th December, 1974 and in exercise of powers under Article 141C enforcement of fundamental rights conferred by Articles 27, 31, 32, 33, 35, 36, 37, 38, 39, 40, 42 and 43 were suspended. The emergency was revoked five years later on the 27th November, 1979.

During the long period of 5 years from December, 1974 to November, 1979 the Supreme Court of Bangladesh was denied the jurisdiction to enforce fundamental rights. The law of fundamental rights, therefore, had very little scope to flourish in Bangladesh. Only a few cases on fundamental rights found their way to law journals during 1972-79.

On the 25th January, 1975 came the Constitution (Fourth Amendment) Act, 1975, Act No.II of 1975, changing the basic structures of the Constitution. The parliamentary form of government was abolished. The Constitution now provided for a Presidential form of government. An irremoveable President, except on impeachment, is to be elected by direct election for five years. He will appoint a Vice-President. The Council of Ministers will be appointed by the President to aid and advise him. They will hold office during the pleasure of the President. Under the original Article 72 there could not be an interval of more than sixty days between two sessions of Parliament. Now, only two sessions of Parliament in a year will suffice. The Fourth Amendment made a drastic inroad into the independence and jurisdiction of the judiciary, which has been considered in Chapter II. A one-party State was established. The person holding office as President immediately before this amendment ceased to hold the office and Sheikh Mujibur Rahman entered upon the office of President from the commencement of the Fourth Amendment Act, as if elected to that office.

It is unnecessary to dilate further on the Fourth Amendment overtaken as it was by a quick succession of events. On the morning of the 15th August, 1975 President Sheikh Mujibur Rahman was assassinated and Khandaker Moshtaque Ahmed placed the whole of Bangladesh under Martial Law by a declaration broadcast from all stations of Radio Bangladesh. He issued a Proclamation to that effect on the 20th August, 1975.

That was the end of parliamentary form of government and finally of constitutional government within 3 years.

During this short period of 3 years only a few cases, including cases on fundamental rights, of significant constitutional importance came up for consideration before the Supreme Court, of which two deserve a detailed consideration.

A. The cases of A. T. Mridha vs. The State, 25 DLR (HCD) 335, decided on 29-31 May, 1973 and Solicitor, Govt. of Bangladesh vs. A. T. Mridha, 26 DLR (SC) 17, decided on March 7, 1974.

After the Constitution of Bangladesh came into force on 16-12-72, the High Court Division asserted its supervisory role over the Courts subordinate to it under Article 109 of the Constitution in the case of A. T. Mridha vs. The State, 25 DLR (HCD) 335, decided on 29-31st May, 1973.

Before the Constitution came into force on 16-12-72 P.O. No. 50 of 1972 was promulgated on 22-5-72 setting up Special Courts, namely, Special Tribunal and Special Magistrate for trial of certain offences of grave nature. Article 12 of the said P.O. provided for an appeal to the High Court Division from an order of conviction passed by a Special Court and Article 15 provided that no action or proceedings taken or purporting to be taken under the said P.O. shall be called in question by any Court. Following a devastating fire on 15-11-72 in some jute godowns at Daulatpur, Khulna an F.I.R. was lodged with the police on the next day alleging that the local people strongly suspected that the petitioner A. T. Mridha and his people caused the arson. A.T. Mridha and some of his people were arrested followed by four months of investigation during which no tangible evidence could be found against them. They then filed two separate applications

under sections 435 and 439 read with sections 497, 498 and 561A Cr.P.C.

The State contended that the applications were not maintainable. It was argued that apart from Article 15 of the said P.O. Article 47(2) of the Constitution provided that "notwithstanding anything contained in this Constitution the laws specified in the First Schedule (including any amendment of any such law) shall continue to have full force and effect, and no provision of any such law, nor anything done or omitted to be done under the authority of such law, shall be deemed void or unlawful on the ground of inconsistency with, or repugnance to, any provision of this Constitution". P.O. No. 50 of 1972 was specified in the First Schedule and so it was a protected legislation under Article 47(2). Although Article 109 of the Constitution provided at that time that "the High Court Division shall have superintendence and control over all Courts and tribunals subordinate to it", Article 15 of the said P.O. came into direct conflict with Article 109 of the Constitution and therefore, it was argued, Article 15 of the said P.O. will prevail over Article 109 of the Constitution by virtue of the protective provisions of Article 47(2) of the Constitution. The High Court Division has no power of superintendence over the Special Courts set up under P.O. No. 50 of 1972, it was claimed.

Badrul Haider Chowdhury, J. the author Judge in the Division Bench, mastered a massive rejection of the above plea. He traced the history of the superintending power of the erstwhile High Court and found that the power of superintendence had been handed down to the High Court Division since 1861 except for the period that the country was under Martial Law between 1958-62 and 1969-71. The learned Judge considered around 16 decisions of pre-partition Indian High Courts and of other jurisdictions and examined the nature and content of the

superintending power. He then found that P.O. No. 50 of 1972 was a pre-constitutional legislation and it is in the nature of a sub-constitutional law. It is well-settled, he held, that sub-constitutional law cannot knock out a jurisdiction that has been created and conferred by the Constitution itself. With regard to exercise of power under Article 109 the learned Judge observed:

> "We are led to the conclusion that the power of superintendence and control in article 109 shall be exercised in the interest of justice which involves a duty on the part of the High Court Division to keep all Courts and Tribunals subordinate to it within the bounds of their authority to see that they do what their duty requires and they did it in a legal manner. This means the High Court can interfere in cases of grave dereliction of duty, or flagrant violation of law or where grave injustice would be done unless the High Court interferes."

The learned author Judge then considered the ouster clause in Article 15, namely, "notwithstanding the provisions of the Code or of any other law for the time being in force". He found no inconsistency between sections 435 and 439 Cr.P.C. and P.O. No. 50 of 1972. "Any other law", he held, does not refer to the Constitution but to an "existing law" which is defined in the Constitution. The *none-obstante* clause in Article 15 does not refer to the Constitution at all, nor could it have so referred being a sub-constitutional legislation of pre-constitutional origin. The learned Judge proceeded to say :

> "We do not discover any inconsistency because the scope of P.O. 50 of 1972 is only for trial of certain grave criminal offences whereas, the field of activity of the High Court under Article 109 is the superintendence of the entire subordinate judiciary. The subjects of the two laws are different, field of

activity are different and they operate without encroachment and therefore no inconsistency arises in the exercise of respective functions as contemplated by the two laws."

The High Court Division quashed the proceeding but on appeal (Solicitor, Government of Bangladesh vs. A.T. Mridha, 26 DLR (SC) 17, decided on March 7, 1974) the Appellate Division set aside the judgment of the High Court Division mainly on the ground that the orders of remand to custody passed by the Sub-Divisional Magistrate under clause (3) of Article 13 of P.O. No. 50 of 1972 and the investigation by police in the concerned P.S. case, against which the respondents preferred the criminal revision applications, were not orders or actions of any "Court" or "Tribunal" subordinate to the High Court. As to the merit of the discussion on Article 109 of the Constitution the Appellate Division did not pronounce itself upon the same but observed that "the invocation of the article, in facts and circumstances of the present case, does not appear to be proper ... ..."

The basic decision in A.T. Mridha's case (supra) in the High Court Division is that a pre-constitution sub-constitutional legislation dealing with subjects other than those covered by Article 109 of the Constitution cannot override the express provision of the Constitution and that the inconsistency between a protected legislation under Article 47(2) of the Constitution and the Constitution itself is not to be readily inferred, but is to be gathered not only from the contents and subject-matter of the protected legislation but also from those of the Constitutional provision allegedly inconsistent with it. This basic decision has not yet been re-agitated or restated in different terms by either the High Court Division or the Appellate Division in any of the subsequent cases, which has led the learned author Judge to comment at a later stage when he retired as Chief Justice, as follows :

"But that decision (A.T. Mridha's case) was knocked down on a technical point that the cognizance was not taken by the Magistrate till then, therefore the jurisdiction of the High Court Division of the proceeding was not sufficiently laid down. In reversine however, the Appellate Division passed no opinion on the principles laid down by the High Court Division." (Evolution of the Supreme Court of Bangladesh, Kamini Kumar Dutta Memorial Law Lecture by Justice Badrul Haider Chowdhury, University of Dhaka, P. 83).

B. The case of Kazi Mukhlesur Rahman vs. Bangladesh. 26 DLR (SC) 44, decided on September 3, 1974.

In this case the petitioner Kazi Mukhlesur Rahman prayed before the High Court Division in a writ petition for a declaration that the agreement between the Government of the People's Republic of Bangladesh and the Republic of India signed on the 16th May, 1974 by the Prime Minister of the two countries, known as Delhi Treaty, which he claimed involved cession of Bangladesh territory, was without lawful authority and of no legal effect. His case was that under the Noon-Nehru Pact of 1958 the southern half of South Berubari Union No.12 together with the adjacent enclaves already became part of the territory of Bangladesh under Article 2(a) of the Constitution. The Delhi Treaty allows India to retain that territory. This is cession of Bangladesh territory which the Prime Minister cannot do under Article 55(2) of the Constitution in exercise of an executive authority. The petition stumbled in the High Court Division on the threshold question of *locus standi*. The petitioner was not a resident of any part of the territories involved in the Delhi Treaty. He has no interest therein which could be affected by the Treaty. Hence he was not a "person aggrieved" within the meaning of Article 102 of the Constitution. A certificate was however

granted to the petitioner under Article 103(2)(a) of the Constitution in the following words, "Certificate for leave, as prayed for, under Article 103(2)(a) of the Constitution is granted".

In the resulting certificated appeal, several questions of constitutional importance were decided by the Appellate Division. It was decided, first, that the Certificate granted by the High Court Division under Article 103(2)(a) of the Constitution is defective but in view of the fact that the appellant raised a constitutional question as to the treaty-making power of the Prime Minister under Article 55(2) of the Constitution, and in further view of the fact that the appellant also filed a petition for special leave to appeal raising the question under Article 55(2) the appeal is not incompetent on the score of defective certificate. Secondly, it was decided that the appellant had *locus standi* to raise the constitutional question even though he was not a resident of Berubari or the enclaves. Thirdly, the plea that treaty-making being an act of State, the Delhi Treaty was not amenable to judicial review was not accepted and lastly it was held that the application before the High Court Division was premature and the appeal, was liable to be dismissed on that ground alone. The judgment, however, did not stop there. Since the parties were heard on merits on the interpretation of Article 55(2) of the Constitution, the Court expressed its opinion on this question and held that the executive authority of the Prime Minister under Article 55(2) did not extend to a cession of Bangladesh territory and that the treaty cannot be implemented without amending Article 2(a) of the Constitution Which defines the territory of Bangladesh.

Now as to the first point decided, the Appellate Division clearly disapproved of the way the Certificate under Article 103(2)(a) of the Constitution was granted in this case. Its disapproval and its indication as to what a Certificate should contain is reflected in the following words :

> "In the instant case a certificate purported to be under Article 103(2)(a) is there, but it gives no indication of application of the judicial mind to the question as to whether the case is a fit one for appeal to this Division. It is not only that the question or questions of law as to the interpretation of the Constitution which the learned Judges might have thought needed our consideration have not been mentioned, the certificate speaks of "leave" which did not concern that Division at all. Strangely enough, the learned Judges thought the points raised in the application were so simple as to merit summary disposal and yet they granted the certificate. Such a mechanical approach cannot but call for strong disapproval. Indeed it was not that the appellant alone who felt aggrieved by the summary dismissal of his application by the High Court Division, the respondents also made the grievance that they were prejudiced by the summary disposal of the application since because of this they were denied the opportunity of filing an affidavit in that Division incorporating material facts."

The Appellate Division held the appeal not to be incompetent on the score of defective certificate and its reasonings are as follows:

> "In view, however, of the objection raised by the respondents against the form of the certificate, by way of abundant caution, the appellant filed a petition for special leave to appeal in which he raised the question whether Article 55(2) of our Constitution, by virtue of which the Prime Minister exercises the executive power of the Republic, authorises him to enter into an international agreement of the kind of Delhi Treaty. This is a constitutional question which also floats on the surface of the brief judgment of the High Court Division, summarily dismissing the appellant's application. We are,

therefore, of the opinion that the appeal before this Division is not incompetent, on the score of defective certificate."

Unfortunately the Appellate Divisions disapproval of the manner in which certificates are being issued by the High Court Division under Article 103(2)(a) of the Constitution still persists and in one of the recent decisions, Quzi Kamal vs. Rajdhani Unnayan Kartripakha, 44 DLR (AD) 291, Mustafa Kamal, J. observed as follows :

"Then abruptly without any discussion of any constitutional provision the High Court Division allowed the appellant's prayer for certificate under Article 103(2)(a) of the Constitution." ... ...

"Before turning to the respective submissions of the parties we must once again deprecate the persistent tendency in some judgments of the High Court Division to grant a certificate under Article 103(2)(a) of the Constitution without giving any indication of application of the judicial mind to the question as to whether the case is a fit one for appeal to this Division. Beginning with the case of Kazi Mukhlesur Rahman vs. Bangladesh, 26 DLR (SC) 44, this Division has been persistently holding that there must be an indication in the certificate as to the nature of the substantial question of law as to the interpretation of the Constitution. In the present case no Constitutional point was advanced in the High Court Division, no Constitutional point was discussed in the judgment and no question of law was referred for the decision of this Division. The grant of a certificate of fitness for appeal is a judicial function requiring care and cautiousness of a judicial mind. It is not a mere mechanical act. The High Court Division fell into an oft-repeated avoidable error in granting a certificate in this case.

As to the second decided question on *locus standi* this case will be referred to more fully in a later Chapter. The third point decided was on the plea of act of state. The Appellate Division says :

> "The respondents' third objection was that the treaty-making power being an act of state, the Delhi Treaty was not amenable to judicial review".

And after discussing what is an act of state, the Appellate Division finally says :

> "We are clearly of the opinion that in peace time the plea of act of state is not available in an action involving deprivation of rights and liberties of the citizen. The Courts have always intervened with a view to examining if the plea of act of state could be taken in defence against a citizen. The jurisdiction of courts cannot be excluded by merely raising a plea of act of state."

As to the last question decided, the Appellate Division ruled out the contention of the State that a citizen cannot be allowed to move the Court before the obligations under the treaty are performed. It rejected the State's contention that the mere making of a treaty does not affect the citizen who must wait till the performance of the obligations of the treaty. It held that the mere signing of the treaty has resulted in an impending threat to the appellant's rights as a citizen. The Appellate Division however accepted the contention of the State that the writ petition was premature, because the last article in the Delhi Treaty says that it is subject to ratification and that it would take effect "from the date of the exchange of the Instruments of Ratification". The Appellate Division held that there can be no question of a document being declared to be without lawful authority and of no

legal effect when the document itself stipulates that it will be effective only on the happening of a certain event in future, namely, the exchange of instruments of ratification. The writ petition was premature and therefore the appeal was liable to be dismissed.

There the appeal could have ended but in a rare exercise of the kind the Appellate Division proceeded to examine the merit of the appellant's case. It says, "This would suffice for disposing of the appeal which is liable to be dismissed on this ground alone. Since however, we have heard the parties on merits in relation to the question of interpretation of Article 55(2) of our Constitution, we feel that we should express our opinion on this question."

It then gives its opinion as follows :

> "Article 55(2) of our Constitution says, "The executive power of the Republic shall, in accordance with this Constitution, be exercised by or on the authority of the Prime Minister". The Prime Minister, or one on his authority, is thus required to exercise the executive power in accordance with the Constitution, and not otherwise. This is in keeping with the settled principle that Parliament has constitutional control over the Executive. Clause (2) of Article 143 of our Constitution says: "Parliament may from time to time by law provide for the determination of the boundaries of the territory of Bangladesh and the territorial waters and the continental shelf of Bangladesh". The Prime Minister cannot, therefore, unilaterally determine the boundaries of the country. This can only be done by law enacted by Parliament in that behalf."

It was held by the Appellate Division that consequent upon the India-Pakistan treaty of September 10, 1958, known as Noon-Nehru Pact, the southern half of south Berubari Union No.12,

together with the adjacent enclaves fell in the share of the then East Pakistan. On the advice of the Supreme Court of India under Article 143 of the Indian Constitution, vide AIR 1960(SC) 845, the Constitution (Ninth Amendment) Act, 1960 was enacted by the Indian Parliament incorporating the manner in which disputes relating to Berubari and the enclaves were resolved by the Noon-Nehru Pact. The physical possession of those parts of Berubari and other enclaves which were given to Pakistan could not be made over to Pakistan owing to litigations pending in the Indian Supreme Court, but "that cannot however, be of any consequence since the question of sovereignty over the portion of territory had already been settled and recognised by common consent and conduct of Pakistan and India. ... ..." The Appellate Division held that the retention by India, under the Delhi Treaty, of the southern half of south Berubari Union No.12 together with the enclaves cannot but involve cession of territory by Bangladesh, because they "formed an inseparable and integral part of the territory of Bangladesh in view of Article 2(a) of the Constitution which defined our territory as comprising the territories which immediately before the proclamation of independence on the 26th day of March, 1971, constituted East Pakistan."

The Appellate Division then considered a number of cases from the Journal of the International Court of Justice and some treatises on International Law and finally says as follows :

> "Ours is a written Constitution. We have already seen that the head of the Executive, namely, the Prime Minister cannot unilaterally determine the boundaries of Bangladesh which has to be done by a law of Parliament under Article 143(2) of our Constitution. It cannot but be more so when cession of territory is involved. This limitation on the part of the head of the Executive of Bangladesh is on the face of it such a "manifest and notorious" restriction on his treaty-making

power that any such treaty entered into by a foreign state with Bangladesh without the sanction of the Parliament of Bangladesh will be *ultra vires* and cannot pass title. This view finds authoritative support from authors of international repute on the subject." ... ...

"There can thus be no escape from the position that though treaty-making falls within the ambit of the executive power under Article 55(2) of the Constitution, a treaty involving determination of boundary, and more so involving cession of territory, can only be concluded with the concurrence of Parliament by necessary enactment; in case of determination of boundary by an enactment under Article 143(2) and in case of cession of territory by amending Article 2(a) of the Constitution by taking recourse to Article 142."

"Had the Delhi Treaty involved a mere determination of the boundary between this country and our friendly neighbour India, it could be implemented by a simple enactment under Article 143(2) of the Constitution. In view, however, of our conclusion that it involves cession of territory by Bangladesh, we are clearly of the opinion that in order to implement this treaty, prior to ratification thereof it will be necessary to take recourse to Article 142, with a view to amending Article 2(a) which defines the territory of the People's Republic of Bangladesh."

The appeal was however dismissed.

After this judgment, Parliament enacted the Constitution (Third Amendment) Act, 1974, Act No. LXXIV of 1974, on 27-11-74 to give effect to the Delhi Treaty, by amending Article 2 of the Constitution.

Chapter 4

THE FIRST MARTIAL LAW (1975-79)

1. The Three Stewards

On August 15, 1975, Mr. Khandaker Moshtaque Ahmed assumed the Office of the President of Bangladesh and placed the whole country under Martial Law. He, however, did not assume the office of the Chief Martial Law Administrator. By a Proclamation dated the 20th August, 1975 the Constitution continued to remain in force, but it was made "subject to" the Martial Law Proclamation and the Martial Law Regulations and Orders and other Orders made by him. All Courts, including the Supreme Court, were denied any power to call in question or declare void or illegal the said Martial Law Proclamation, Regulation, etc. He made over the office of President to Mr. Justice A. M. Sayem, the Chief Justice of Bangladesh, on the 6th November, 1975. By another Proclamation (called the Second Proclamation) dated the 8th November, 1975 Mr. Justice A. M. Sayem assumed the powers of Chief Martial Law Administrator "for the effective enforcement of Martial Law" and made some amendments in the Proclamation of the 20th August, 1975 which he adopted subject to the modifications. Parliament was dissolved with effect from the 6th November, 1975 and some changes were made in the Constitution by this Proclamation. On the 29th November, 1976 Mr. Justice A. M. Sayem made the Third Proclamation under which he relinquished the Office of the Chief Martial Law Administrator and handed over the said office to Major General

Ziaur Rahman. On the 21st April, 1977 Mr. Justice A. M. Sayem resigned from the office of President after appointing Major General Ziaur Rahman as the President. Major General Ziaur Rahman continuing to hold the two offices together lifted Martial Law by a Proclamation dated the 7th April, 1979.

Each Martial Law at any given point of time is clothed with a rationale of its own, sometimes to seize power for the sake of power, sometimes to correct some imbalances in the body politic and sometimes with a plan and programme of its own, called "programmatic Martial Law". The First Martial Law in Bangladesh was headed by 3 different persons of different background, the first one a politician, the second a Chief Justice and the third an Army General. It is quite natural for them to administer Martial Law in the light of their own experience and background, but all three of them in varying degrees displayed a common intent and course of action, first, to dismantle the Fourth Amendment brick by brick and secondly, to introduce some permanent changes in the Constitution.

2. Dismantling the Fourth Amendment

The preceding Chapter contained a brief narration of the havoc wrought by the Fourth Amendment to the original basic structure of the constitution. The Fourth Amendment came into force on the 25th January, 1975. A new Part VIA was inserted in the Constitution, providing for the formation of a National Party to the exclusion of all other parties. Bangladesh Krishak Sramik Awami League was formed in pursuance of this constitutional provision. The District Administration Act, 1975 was enacted on the 10th July, 1975 for the administration of districts along totalitarian lines. All newspapers and periodicals, except a designated few, lost their declaration by the Newspapers (Amendment of Declaration) Act, 1975, made on the 19th July,

1975. Multiple political parties and independent newspapers and periodicals lost their existence before Martial Law was proclaimed on the 15th August, 1975.

Mr. Khandaker Moshtaque Ahmed did not restore the multi-party system. but prohibited altogether formation of political parties promulgating the Political Parties (Prohibition) Ordinance, 1975 on the 30th August, 1975. The only political party allowed under the Fourth Amendment, Bangladesh Krishak Sramik Awami League, was thus barred from functioning at all. By the Second Proclamation dated the 8th November, 1975 Mr. Justice A. M. Sayem omitted Part VIA of the Constitution, thus dealing a *coup de grace* to the very concept and provision of one-party state in the Constitution, never to be raised again. Mr. Justice A. M. Sayem also repealed the Political Parties (Prohibition) Ordinance, 1975 by promulgating Political Parties Regulation, 1976 (Martial Law Regulation No. XXII of 1976) on the 28th July, 1976 allowing a cautious and guided formation of political parties and thus paved the way for re-introduction of the multi-party system inherent in the structure of the original Constitution. Major General Ziaur Rahman made some amendments in the Political Parties (Prohibition) Ordinance, 1976 by promulgating the Political Parties (Amendment) Regulation, 1977 (Martial Law Regulation No. VIII of 1977) on the 13th October, 1977. On the 17th November, 1978 he promulgated the Political Parties Ordinance, 1978 (Ordinance NO. XLV of 1978). substantially re-enacting the Political Parties (Prohibition) Ordinance, 1976. It is thus a great irony of history that while the elected representatives of the people in a democratic dispensation banned all political parties except one, it was a Judge and later a General, who, under the cover of Martial Law, restored the multi-party system.

Mr. Khandaker Moshtaque Ahmed repealed the District Administration Act, 1975 by promulgating the District adminis-

tration (Repeal) Ordinance, 1975. Ordinance No. XLV of 1975 on the 27th August, 1975, thus giving the concept of a totalitarian one-party nominated district administration a decent burial. Mr. Justice A. M. Sayem repealed the Newspapers (Amendment of Declaration) Act, 1975 by promulgating the Newspapers (Amendment of Declaration) (Repeal) Ordinance, 1976, Ordinance No. L of 1976, on the 30th June, 1976. Newspapers were taken out of State control.

The series of acts detailed above knocked out the implementational aspects of the Fourth Amendment, but the First Martial Law operated on a deeper level and restored, in a large measure, though not fully, the original Constitution enacted in 1972 and also introduced some basic changes giving the Constitution a new look.

3. Constitution – experimentation, restoration and change

Mr. Justice A. M. Sayem. by Second Proclamation Order No. III of 1976 (3rd May, 1976) omitted the proviso to Article 38. which omission, a significant one, survives to this day. Article 38 is a Fundamental Right, it is Freedom of Association, and the proviso was follows :

> "Provided that no person shall have the right to form, or be a member or otherwise take part in the activities of any commercial or other association or union which in the name or on the basis of any religion has for its object, or pursues, a political purpose."

The omission of the proviso has radically altered the character of political activities in the country.

By the Second Proclamation Order No. IV of 1976 (28th May, 1976) Mr. Justice A. M. Sayem restored the original Article

44 – the guaranteed fundamental right to move the High Court Division for enforcement of fundamental rights – which also survives to this day. But his other attempt, to have a Supreme Court and a High Court, with two separate Chief Justices, having come into effect from 13-8-76, did not survive. By the Second Proclamation Order No. I of 1977 (27th November, 1977), Major General Ziaur Rahman restored with some changes the original Articles 94-113 of the Constitution with effect from 1-12-77 and the Supreme Court again started functioning with two Divisions, as originally provided, with one common Chief Justice.

Experimentations and restorations aside, the. First Martial Law lastly headed by Major General Ziaur Rahman effected some fundamental changes in the Constitution by Proclamations Order No. I of 1977 (23rd April, 1977). This legislation was a piece of advance thinking and although enacted in 1977, the far-reaching changes in the Constitution were to come into force on the revocation of the three Proclamations and the withdrawal of Martial Law, which were at the time of promulgation of this legislation, two years away. The Preamble of the Constitution will be preceded by "BISMILLAH - AR - RAHMAN - AR - RAHIM (In the name of Allah. the Beneficent, the Merciful)". The Preamble itself underwent two changes. For the words "a historic struggle for national liberation" the words "a historic war for national independence" was substituted in the first paragraph. In the second paragraph instead of "nationalism, socialism, democracy and secularism" as the "high ideals", "absolute trust and faith in Almighty Allah, nationalism, democracy and socialism meaning economic and social justice" was substituted and "the war for national independence" was substituted for "the national liberation struggle". The "fundamental principles of the Constitution" had undergone a fundamental change. Correspondingly analogous changes were made in the Fundamental Principles of State Policy, so as to bring them in

conformity with the changed Preamble. Article 8 was thus changed correspondingly. The original Articles 9 and 10 of the Constitution, containing Bengalee nationalism and socialism and freedom from exploitation were substituted by two other concepts – that of promotion of local government institutions and participation of women in national life. Article 12 of the original Constitution contained secularism and freedom of religion which was omitted altogether. The procedure for the removal of Judges of the Supreme Court was also changed which has been discussed in Chapter II. Throughout all these constitutional changes, the Presidential system remained in tact. Perhaps that was the only merit of the Fourth Amendment.

Parliament constituted after a general election passed the Constitution (Fifth Amendment) Act, 1979, Act No. I of 1979, on the 6th April, 1979 ratifying and confirming the three Proclamations, Martial Law Regulations etc., and making the same immune from judicial review, by adding paragraph 18 to the Fourth Schedule to the Constitution.

4. Extra-constitutional takeover

A. The Judges Dilemma

There are occasions when either the established constitutional machinery breaks down or an extra-constitutional force takes over the reins of administration, posing a dilemma for the Judges. Nearly all Constitutions require the Judges to take an oath to "preserve, protect and defend the Constitution and the laws" (see Article 148 and the Third Schedule of our Constitution). But when the Constitution is either abrogated or suspended and made subservient to the will of an extra-constitutional force, the Judges have to make a choice. An Argentinian Judge (Oyhanarte, J.) has aptly described the dilemma of Judges :

> "The Supreme Court cannot modify the course of history. It lacks the power necessary to do this. When it is faced with the overthrow of constitutional authorities and the installation of a Government of force by what have come to be called 'revolutionary' means, the judges of the court can do three things:
>
> (1) resign, thus transferring the responsibility of the decision to others,
>
> (2) simply accept the fact,
>
> (3) try to save those institutional values which can still be saved.

(Quoted from Snow, Judges and Generals: The Role of the Argentine Supreme Court during Periods of Military Government (1975), p. 617).

In R vs. Ndhlovu, [1968] 4 S.A.L.R. 515. Sir Hugh Beadle, C. J. expressed the dilemma this way:

> "The problem of whether a judge should stay or go is a matter of personal choice. ... ... The first duty of judges then, as I see it, is, 'whatever the political battle', to 'keep out of the main area of dispute' and to 'carry on their peaceful task of protecting the fabric of society and maintaining law and order,' provided, of course, their judicial independence is not tampered with. ... ... The judge is simply forced into a position of accepting the facts and the laws as they are, whether he likes them or not. He has, as I have said before, been overtaken by events."

Resignation of Judges in revolutionary situations has not been uncommon, but except for the ripple that it causes in the body politic neither the Judges by resignation *en masse* or in ones or twos have been able to deflect the revolutionary regime from following the course of action it chose to pursue nor have the

people at large carried the mantle from the Judges to overthrow the extra-constitutional force. On the other hand when Judges resigned in protest against a unconstitutional takeover or when Judges were removed because of (their obstruction to the wishes of the new authority, their successors on the Bench merely conformed to the wishes of the new regime and often they were also of so low a calibre that justice was no longer administered properly. On the other side it may perhaps be rightly argued that the continuance in office of the Judges gives the new regime a semblance of legitimacy.

In the recent Constitution 8th Amendment case, (1989) BLD (Spl) I, M.H. Rahman, J. offers his own choice in the following words :

> "The Court's attention has repeatedly been drawn to the oath the Chief Justice or a Judge of the Supreme Court takes under Article 148 of the Constitution on his appointment. Mr. Asrarul Hossain has pointed out the difference between the language of the oath the Judges of the Indian Supreme Court take "to uphold the Constitution", and that of the oath the Judges of our Supreme Court take "to preserve, protect and defend the Constitution". The import of the single word 'uphold' is no less significant or onerous than that of the three words 'preserve, protect and defend'. In either case the burden is the same. And the Court carries the burden without holding the swords of the community held by the executive or the purse of the nation commanded by the legislature. The Court could do so because all the authorities of the Republic act, as enjoined by the Constitution. under art. 112 in aid of the Court for securing obedience to its judgments and orders. When the Constitution is suspended or made subject to a non-law the Court is deprived of the aid of the relevant authorities of the Republic. When such an abnormal situation occurs a Judge has got two alternatives: either he would resign

or he would hold on to his post. One who has not lost faith in the rallying power of law may prefer a temporary deprivation of freedom to desertion. It is hardly necessary to point out that the Court will have no worthwhile power without the Constitution. The future of the Constitution lies in the commitment of the citizens who are obliged under art. 21 of the Constitution to observe the Constitution." (para 488)

Expectation from the Judges and the real position of Judges are highlighted in the monograph on Revolution in the Legal Systems of Third World States by F. Reyntjens (University of Antwerp) and L. Wolf-Phillips (London School of Economics) in the following words :

"When the judiciary is asked to 'stand up' against usurper it is too often forgotten that Judges may not have the means to do so. Often, but not always, the judicial branch is the only one left in tact in its composition (not generally in its powers) after a revolutionary take-over. Why should the Courts be able to resist the unconstitutional action if the deposed Executive, the dissolved Parliament, (a part of) the Army and the Police, the Trade Unions, ... cannot ? The Courts can never really be the "last bastion" against illegality because in terms of power to enforce obedience (physical, if need be) they constitute the weakest link. To large extent, therefore, De Smith is right when arguing that, in general, legal analyses of unconstitutional action are fundamentally political judgments dressed in a legalistic garb."

B. Two Approaches

Generally the Judges have approached the powers of the usurper in revolutionary situations in two broad ways, first, by applying the Kelsen doctrine of "revolutionary legality" and, secondly, by applying the "doctrine of State necessity".

As early as in 1925 Hans Kelsen in his "General Theory of Law and State (1949)" presented the legal effects of a revolution in a rational and systematic manner. To him a revolution means a successful revolution. To be successful the old order ceases and the new order begins to be efficacious, "because the individuals whose behaviour the new order regulates actually behave, by and large, in conformity with the new order, then this order is considered as a valid order. It is now according to this new order that the actual behaviour of individuals is interpreted as legal or illegal. (p.118)

The first application of Kelsen's doctrine was made in the Pakistan case of the State vs. Dosso (PLD 1958 (SC) 533). Munir, C.J. held that the new legal order after a revolution should be judged by "reference to its own success" and the overthrown legal order by "the efficacy of the change". He said :

> "Where a Constitution and the national legal order under it is disrupted by an abrupt political change not within the contemplation of the Constitution, then such a change is a revolution and its legal effect is not only the destruction of the Constitution but also the validity of the national legal order irrespective of how or by whom such a change is brought about."

This interpretation of Kelsen's pure theory of law was followed in Uganda vs. Commissioner of Prisons. ex parte Matovu (Uganda 1966-67) and was referred to approvingly in the Appeal Court and Privy Council stages of Madzimbamuto vs. Lardner-Burke Rhodesia, 1966-68). It was not followed in E.K. Sallah vs. the Attorney General (Ghana, 1970) and roundly overturned in Asma Jilani vs. The Government of the Punjab (PLD 1972) (SC) 139). the last one saying. "The principle laid down in Dosso's case is wholly unsustainable and cannot be treated as

good law either on the principle of *stare decisis* or even otherwise."

The other approach made by the Judges to meet revolutionary situations is by application of the "doctrine of state necessity". When an unconstitutional action is taken by the incumbent authority and the legal order is only partly disregarded, the legal ruler himself has taken something like a revolutionary step not covered by the express words of the Constitution or even in conflict with it. This unconstitutional behaviour is taken to be necessary for the survival of the State. It is called a departure from the Constitution and it is sought to be justified in the interest of averting an impending disaster and preventing the State and society from dissolution. The "doctrine of state necessity" was followed in Special Reference No.1 of 1955 by the Governor General (PLD 1955 (FC) 435). Republic vs. Mustafa-Ibrahim (Cyprus 1964) and Begum Nusrat Bhutto vs. The Chief of Army Staff and the Federation of Pakistan (PLD 1977 (SC) 657). The upshot of this doctrine is that "in order to bridge the gap between the law and the facts of political life", and to avoid the possibility "that a State and the people should be allowed to perish for the sake of its Constitution" and to accommodate an action which was "undoubtedly an extra-constitutional step, but obviously dictated by the highest consideration of State's necessity and the welfare of the people", the doctrine of state necessity is to be read into a written Constitution and the constitutional deviations are to be upheld to preserve the State itself.

C. *Proclamation considered*

As we all know Martial Law was promulgated in our country as many as twice in a short span of 7 years, first, on the 15th August, 1975 and secondly on the 24th March, 1982.

Happily or unhappily for us, I do not know, the Kelsen theory of revolutionary legality or the doctrine of state necessity was neither directly mooted nor re-evaluated by way of any explicit or implicit challenge to the imposition of Martial Law in Bangladesh. Some fringe questions came up for consideration, but in considering the same the Appellate Division pronounced itself on the Constitution and Martial Law the broad sweep of which has a far-reaching significance and which will reverberate the corridors of constitutional debate for many years to come, should such situations recur.

On August 15, 1975, Mr. Khandaker Moshtaque Ahmed assumed the office of the President of Bangladesh and placed the whole country under Martial Law. He issued a Proclamation on the 20th August, 1975, clauses (d) – (g) of which came up for repeated consideration by the Appellate Division. These clauses are as follows :

> "(d) this Proclamation and the Martial Law Regulations and Orders (and other Orders) made by me in pursuance thereof shall have effect notwithstanding anything contained in the Constitution of the People's Republic of Bangladesh or in any law for the time being in force;
>
> (e) the Constitution of the Peoples Republic of Bangladesh shall, subject to this Proclamation and the Martial Law Regulations and Orders (and other Orders) made by me in pursuance thereof. Continue to remain in force;
>
> (f) all Acts, Ordinances, President's Orders and other Orders, Proclamations, rules, regulations, rules by-laws, notifications and other legal instruments in force on the morning of the 15th August, 1975, shall continue to remain in force until repealed, revoked or amended;

(g) no Court, including the Supreme Court, or tribunal or authority shall have any power to call in question in any manner whatsoever or declare illegal or void this Proclamation or any Martial Law Regulation or Order (or other Orders) made by me in pursuance thereof, or any declaration made by or under this Proclamation, or mentioned in this Proclamation to have been made, or anything done or any action taken by or under this Proclamation, or mentioned in this Proclamation to have been done or taken or anything done or any action taken by or under any Martial Law Regulation or Order (or other Orders) made by me in pursuance of this Proclamation."

Clause (j) of the 2nd Proclamation issued by Mr. Justice A. M. Sayem on the 8th November, 1975 provided that this (the second) Proclamation shall be deemed to be a part of the first Proclamation and shall have effect as modified by the Second Proclamation. Clauses (d) to (g) in the Proclamation of the 20th August, 1975 continued to remain in force upto the end of Martial Law.

D. The case of Halima Khatun vs. Bangladesh, 30 D.L.R. (SC) 207 decided on Jan. 4, 1978

By Martial Law Regulation No. VII of 1977 the provisions of P.O. No. 16 of 1972 concerning abandoned property were made more stringent, even the Supreme Court was debarred to determine any question relating to the legality of Government action taken under the aforesaid P.O. and all judgments, etc. passed by any Court for the restoration etc. of any property which had been taken over as abandoned property under the said Order were annulled. Halima Khatun filed a writ petition challenging the taking over of her property as an abandoned property but the High Court Division discharged the Rule on the ground that it required the determination of disputed questions of fact. At the

hearing of her petition for leave to appeal before the then Supreme Court (now Appellate Division) it was argued that the Proclamation of the 15th August, 1975 did not authorise the Chief Martial Law Administrator to oust the jurisdiction of the Supreme Court by means of an enactment like Regulation No.VII of 1977. It was submitted that the constitutional jurisdiction of the Supreme Court can be taken away or curtailed only by a Proclamation. A Regulation is in the nature of an ordinary Act or Ordinance which cannot be used to alter or amend the constitutional provisions. The vires of the Regulation was challenged not because of want of authority in the Chief Martial Law Administrator but because it constituted an abrupt departure from a consistent practice. It was further argued that neither the Constitution nor the Proclamation aimed at interfering with the exercise of judicial power by the Supreme Court and the power of the law-making authority is circumscribed by the limitation inherent in the Proclamation itself.

The Appellate Division negatived the contentions. It was held (judgment by Fazle Munim, J.) that the power to amend any constitutional provision is distinct from the procedure for making such alterations or amendments. The Proclamations have not provided any procedure relating to the amendment of the Constitution. Noticing clauses (d), (e) and (g) of the Proclamation the learned Judge observed :

> "It may be true that whenever there would be any conflict between the Constitution and the Proclamation or a Regulation or an Order the intention, as appears from the language employed, does not seem to concede such superiority to the Constitution. Under the Proclamation which contains the aforesaid clauses the Constitution has lost its character as the supreme law of the country. There is no doubt an express declaration in Article 7(2) of the Constitution to the following

effect : "This Constitution is, as the solemn expression of the will of the people, the supreme law of the Republic and if any other law is inconsistent with this Constitution that other law shall to the extent of the inconsistency be void." Ironically enough this Article, though still exists, must be taken to have lost some of its importance and efficacy. In view of clauses (d), (e) and (g) of the proclamation the supremacy of the Constitution as declared in that Article is no longer unqualified. In spite of this Article, no constitutional provisions can claim to be sacrosanct and immutable. The present constitutional provision may, however, claim superiority to any law other than a Regulation or Order made under the Proclamation."

The Appellate Division noticed clause (g) of the Proclamation of August 20, 1975, namely, no Court including the Supreme Court has any power to call in question in any manner whatsoever or declare illegal or void the Proclamation or any Regulation or Order, and held that "there is no vagueness or ambiguity in the meaning of the words used in the clause as regards the total ouster of jurisdiction of this Court" (para 19). It was the duty of the Judges to administer a 'harsh' or even an unjust law.

The argument that neither the Constitution nor the Proclamation aimed at interfering with the exercise of judicial power by the Supreme Court and that the power of the law-making authority is circumscribed by the limitation inherent in the Proclamation itself was obviously aimed at achieving an equation of co-existence between the Constitution and the proclamation, but the Appellate Division put the Constitution in no uncertain terms as subservient to the Proclamation. There was no saving of judicial power at all.

E. The case of Sultan Ahmed vs. Chief Election Commissioner, 30 DLR (HCD) 291, decided on May 31, 1978

In the wake of Halima Khatun's case (supra), two important decisions were delivered by the High Court Division touching upon the same questions. Shahabuddin Ahmed, J. in the case of Sultan Ahmed vs. Chief Election Commissioner, 30 DLP (HCD) 291, observed as follows :

"On plain reading of these provisions of the Proclamation it is as clear as anything that the Martial Law is the Supreme law of the land and that though the Constitution has not been abrogated it has been made subordinate to the Martial Law and that the Constitution will continue in force subject to the Martial Law, that is to say, it will have effect so long it does not come in conflict with the Martial Law. We have, in this judgment, used the expression 'Martial Law' to include the Proclamations with various amendments. Martial Law Regulations and Orders and all other Orders made in pursuance of the Proclamations. Jurisdiction of all Courts including this court to question the validities of any of these Martial Law provisions or ally action taken thereunder has been ousted, except of course, the jurisdiction to examine whether any action allegedly taken under Martial Law has been actually taken thereunder. The Appellate Division has, in a recent case – C.P. No. 171/1977 along with C.P. No. 305/77. (Halima Khatun's case) confirmed this position of law. Relevant part of the judgment of the Appellate Division is quoted below :

"The validity of such legislation which may take the form of either a Proclamation or Regulation or Order cannot be challenged as invalid in any court of law including the Supreme Court. ... Mr. Khandaker Moshtaque Ahmed who

became the President of Bangladesh assumed full powers of the government and by clauses (d) and (e) of the Proclamation made the Constitution of Bangladesh which was allowed to remain in force, subordinate to the Proclamation, and any Regulation or Order as may be made by the President in pursuance thereof ... under the Proclamation ... the Constitution has lost its character as the Supreme Law of the country."

F. The cases of Haji Joynal Abedin vs. State, 30 DLR (HCD) 371 decided on May 4, 1978 and State vs. Haji Joynal Abedin, 32 DLR (AD) 110 decided on Dec. 20, 1978

In the other case decided by the High Court Division on May 4, 1978. Haji Joynal Abedin vs. State, 30 DLR (HCD) 371, a discordant note was struck. It appears that the Appellate Division's judgment in Halima Khatun's case (supra) decided on January 4, 1978 was not brought to the notice of the High Court Division.

I need not dilate upon the facts of the case. The High Court Division (judgment by Badrul Haider Chowdhury, J.) sought to extricate the 1975 Martial Law in Bangladesh from the clutches of the all-pervading doctrine of revolutionary legality and sought to brine it within the purview of doctrine of state necessity and constitutional deviation in the following words :

"We have already found that present Martial Law is completely different from that of 1958 or 1969. The Constitution has not been abrogated; only certain part of it has been circumscribed by the Martial Law Proclamation out of necessity. This Martial Law is a mere constitutional deviation and not one of Wellingtonian style".

The High Court Division propounded the concept of Martial Law Courts existing side by side with the ordinary Courts and was unable to accept the view that the jurisdiction of the superior Courts has been ousted in so far as Martial Law Courts are concerned. A sentence of death passed upon five condemned prisoners by a Special Military Court was declared to have been passed without lawful authority and of no legal effect.

The Appellate Division, in the appeal that followed, State vs. Haji Joynal Abedin, 32 DLR (AD) 110, decided on Dec 20, 1978, set aside the judgment of the High Court Division. The Appellate Division (judgment by Ruhul Islam, J.) observed as follows :

> "From a consideration of the features noted above it leaves no room for doubt that the Constitution though not abrogated, was reduced to a position subordinate to the Proclamation, inasmuch as the unamended and unsuspended constitutional provisions were kept in force and allowed to continue subject to the Proclamation and Martial Law Regulation or orders and other orders; and the Constitution was amended from time to time by issuing Proclamation. In the face of the facts stated above I find it difficult to accept the arguments advanced in support of the view that the Constitution as such is still in force as the supreme law of the country, untrammelled by the Proclamation and Martial Law Regulations. ... ... The moment the country is put under Martial Law, the above noted constitutional provision along with other civil laws of the country loses its superior position. Martial Law Courts being creatures either of the Proclamation or Martial Law Regulations, have the authority to try any offence made triable by such Courts."

This decision by a majority also foreclosed an exercise of judicial power by the superior Courts as lone as the bar under the Proclamation exists.

K. M. Subhan, J. however in his dissenting judgment, was clearly of the view that the Constitution and the Martial Law are co-extensive and that the Constitution is not subordinate to the Martial Law. The President still takes oath to "preserve, protect and defend the Constitution" and he has not determined, through express legislations, if the Martial Law Regulations or Orders shall have precedence over constitutional legislations. The writ jurisdiction of the High Court Division having neither been abrogated nor suspended and not being in conflict with Martial Law Regulations or Orders, the Martial Law Courts are amenable to the writ jurisdiction of the High Court Division whose jurisdiction shall be ousted only when it is shown that (i) the Martial Law Court has been properly constituted in accordance with the statute forming the Martial Law court, (ii) accused are subject to the jurisdiction of the Martial Law Court, (iii) the offence must be one triable by the Martial Law Court. and (iv) the jurisdiction. He relied upon the case of Zafar-ul-Ashan vs. Republic of Pakistan, 12 DLR (SC) 9.

It will be interesting later to see that the Appellate Division came round to the last-expressed views of the learned dissenting Judge in some subsequent cases.

G. *The case of Khandker Ehteshamuddin Ahamed @ Iqbal vs. Bangladesh 33 DLR (AD) 154, decided on March 27, 1980*

Shortly after the lifting of first Martial Law by the Proclamation of April 7, 1979 came up the above case before the Appellate Division which took note of the theory of revolutionary legality (State vs. Dosso) and the doctrine of State necessity (Begum Nusrat Bhutto vs. The Chief of Army Staff and the Federation of Pakistan), but did not consider it necessary to dilate on the two theories because there was no challenge to the

imposition of Martial Law in Bangladesh. What was challenged in the case under consideration was the trial of one Ehteshamuddin @ Iqbal under section 302 of the Penal Code by a Special Martial Law Court, and conviction and sentence of death passed thereunder, the order of the reviewing authority and the confirmation thereof by the Chief Martial Law Administrator. The attack was made on some fringe grounds which were rejected by the High Court Division and on leave to appeal by the Appellate Division.

As to the question whether the proceedings of the Special Martial Court could be examined by the High Court Division in exercising its constitutional jurisdiction after the passing of the 5th Amendment to the Constitution the Appellate Division noticed Paragraph 18 added to the Fourth Schedule to the Constitution by the Constitution (5th Amendment) Act. 1979 (Act I of 1979), ratifying and confirming all Proclamations, Proclamation Orders, Martial Law Regulations, Martial Law Orders or any other laws made during the period between August 15, 1975 and April 9, 1979. Paragraph 18 also confirmed, ratified and declared amongst others that any order made or sentence passed by any Court, Tribunal or authority in the exercise or purported exercise of the powers, derived from Proclamation etc., to have been validly made, done or taken and shall not be called in question in or before any Court, Tribunal or authority on any ground whatsoever. The Appellate Division held that in view of the aforesaid Paragraph 18 read with the earlier Proclamations the proceedings before the Martial Law Court, the order of the reviewing authority and the order of the confirming authority are not now open to examination by the High Court Division in its writ jurisdiction. Ehteshamuddin's case therefore not only reiterated the subservience of the Constitution to the Proclamation etc., for as long as Martial Law of 1975 existed, but also beyond, after the Constitution was revived following the lifting of Martial Law.

In Ehteshamuddin's case the Appellate Division however made a small opening by way of keeping the proceedings of Martial Law Court subject to certain checks by the superior Courts. The Court (judgment by Ruhul Islam, J.) adopted the views of the Supreme Court of Pakistan in the cases of State vs. Zia-ur Rahman, PLD 1973 (SC) 49 and Federation of Pakistan vs. Saeed Ahmed, PLD 1974 (SC) 151 and held as follows:

> "The moment any Martial Law Court is found to have acted without jurisdiction, more precisely, has taken cognizance of an offence not triable by such Courts under the Martial Law Regulation, or the Martial Law Court is not properly constituted, the superior Courts' power to declare the proceedings wholly illegal and without any lawful authority in exercise of its power under Article 102 of the Constitution cannot be denied. The power of the Superior Courts can be extended to examine jurisdiction of Martial Law Court when it is found that it is *coram non judice.*"

But if the Superior Court is to decide whether the proceedings in a Martial Law Court are without jurisdiction, or *coram non judice* or *mala fide*, then necessarily this is an exercise of judicial power under Article 102 of the Constitution. The earlier decision in Halima Khatun (supra) and Haji Joynal Abedin's case (supra) foreclosed any exercise of judicial power in an application under Article 102 for at least as long as Martial Law existed. In Ehteshamuddin's case the Appellate Division veered round the view, at least after the Constitution was revived, that the judicial power of the Superior Courts extends to an examination of the proceedings of even a Martial Law Court with certain defined ends in view. Supreme Court was barred by clause (g) of the Proclamation to question in any manner whatsoever any Proclamation etc., which bar was continued by Paragraph 18 to

the fourth Schedule to the Constitution. There can be no case of treating the bar under the Proclamation to be superior to the bar imposed by Paragraph 18. If judicial power is available inspite of the bar under Paragraph 18, why should it not be available during a bar under the Proclamation?

Badrul Haider Chowdhury, J., while concurring with the unanimous decision of the Appellate Division in Ehteshamuddin's case placed his reliance upon the cases of Muhammad Ayub Khuro vs. Pakistan, PLD 1960 (SC) 237, Afzal Muhammad vs. The Commissioner, Lahore Division, PLD 1963 (SC) 401 and Zafur-ul-Ahsan vs. The Republic of Pakistan, 12 DLR (SC) 9 and held that there is a distinction between judicial power and jurisdiction. The superior Court has always the power to decide its own jurisdiction and this exercise is nothing but the exercise of judicial power.

H. The case of Jamil Huq vs. Bangladesh 34 DLR (AD) 125, decided on Sept. 1981

This was a case in which 29 persons were tried and convicted by a Court Martial convened by the Chief of the Army Staff under the Army Act. 1952. They were charged with the offence of mutiny under the Army Act. The mutiny took place in the night of 29/30th May, 1981 which resulted in the death of President Ziaur Rahman. Twelve persons were sentenced to death. The finding and sentence were confirmed by the Chief of Army Staff and their mercy petitions before the Acting President were also rejected. The twelve petitioners filed separate applications under Article 102 of The Constitution before the High Court Division which without issuing any Rule dismissed the petitions summarily on the ground that in view of sub-clause (5) of Article 102 of the Constitution the High Court Division has no jurisdiction to entertain these writ petitions. Sub-clause (5) of Article 102 is as follows :

"102(5). In this article, unless the context otherwise requires, "person" includes a statutory public authority and any court or tribunal, other than a court or tribunal established under a law relating to the defence services of Bangladesh or any disciplined force or a tribunal to which article 117 applies."

"The petitioners filed petitions for leave to appeal before the Appellate Division from the judgment of the High Court Division. In dismissing their petitions (judgment on Sept. 22, 1981) the Appellate Division carried Ehteshamuddin's case further by holding that even under sub-clause (5) of Article 102 of the Constitution the High Court Division has jurisdiction to interfere if the Court Martial convened under the Army Act is *coram non judice* (the Court is not properly constituted) or the proceedings are taken *mala fide* or if the Court Martial reaches a decision without any evidence or if the persons tried by the Court Martial are not amenable to the jurisdiction of the Court Martial at all or if the offences tried by the Court Martial are not triable by that Court at all. But the submission that the Court Martial is a Court amenable to the supervisory or superintending jurisdiction of the High Court Division under Article 109 of the Constitution was rejected. It was held that these Courts are creatures of the Army Act and are all ad-hoc Courts to be convened as and when necessity arises. The necessary supervisory hierarchy has been created by the Army Act itself and both the Constitution and the law have cautiously kept these Courts out of the ambit of the Civil Courts.

In Ehteshamuddin's case it was held that the proceedings of Martial Law Courts are not immune from interference if these are without jurisdiction, *coram non judice* or *mala fide*. In Jamil Huq's case this principle was extended to a Court or tribunal established under a law relating to the defence services of Bangladesh or any disciplined force or a tribunal to which Article 117 applies.

1. *The case of Nasiruddin* vs. *Government of Bangladesh, 32 DLR (AD) 216, decided on April 14, 1980*

In view of the gradual but perceptible appreciation by the Appellate Division of the necessity of existence and exercise of judicial power inspite of bars and prohibitions it became necessary to clarify the Appellate Division's earlier decision made in Halima Khatun's case. This was done in the case of Nasiruddin vs. Government of Bangladesh, 32 DLR (AD) 216, decided on April 14, 1990 and the Court (judgment by K. Hossain. C.J.) held as follows :

> "In Halima Khatun's case the decision is that if any action of taking over or vesting of a property comes within the mischief of Martial Law Regulation VII of 1977, any proceedings seeking to challenge the taking over or vesting of such property shall abate. The further observation that requires to be made is that abatement of the proceedings will follow in such cases, except where the taking over or vesting is without jurisdiction or *coram non judice* or if it is *mala fide* and, in such circumstances such action or order is not protected under the said Regulation. With this clarification in Halima Khatun's case and in conformity of the two decisions set out, is to be held that there cannot be any question of abatement of any legal proceedings taken by an aggrieved person to protect his legal right or interest in the property against which action has been taken or vesting order made which is without jurisdiction or *corarn non judice* or is *mala fide.*"

Nasiruddin's case is important also for enlarging the interpretation of the words "purported exercise" of power using which expression the Constitution (5th Amendment) Act ratified, confirmed and validated all Martial Law Proclamations and actions taken under it. In Ehtashamuddin's case the Appellate

Division made a cautious opening, but in Nasiruddin's case, it made its position clear :

> "It is to be observed that when an authority is vested with a jurisdiction to do certain acts and in the exercise of that jurisdiction he does it wrongly or irregularly the action can be said to be done within the purported exercise of his jurisdiction. But an act which is manifestly without jurisdiction, such as the property which not being an abandoned property within the meaning of Presidential Order 16 of 1972 is declared to be so, or in case of judicial or quasi-judicial act which is *coram non judice* the use of the expression "purported exercise" in the validating clause of Fifth Amendment of the Constitution cannot give such act the protection from challenge, it being *ultra vires*. It is true *mala fide* act is also not protected, but then *mala fide* is to he pleaded with particulars constituting such *mala fide* and established by cogent materials before the Court."

The Fifth Amendment to the Constitution therefore received an extended interpretation from the Appellate Division. The Supreme Courts' right to exercise judicial power, inspite of a bar and inspite of a protection given to "purported exercise" of power stands established.

J. The case of Khandaker Moshtaque Ahmed vs. Bangladesh 34 DLR (AD) 222, decided on Feb. 17, 1982

In concrete terms the Appellate Division decided in the case of Khandaker Moshtaque Ahmed vs. Bangladesh, 34 DLR (AD) 222, on Feb 17, 1982, how an order of conviction and sentence passed by a Special Military Court can be set aside and quashed on the ground of *mala fide*. The facts constituting *mala fide* were stated on affidavit before the High Court Division in an

application under Article 102 of the Constitution but the High Court Division discharged the Rule holding that these facts, however colourful *mala fide* might be, make the relevant Martial Law legislation immune from challenge in any Court.

The Appellate Division recounted its own decisions in Ehteshamuddin's case and Jamil Huq's case and held on facts that the apprehension of the appellant that the proceedings had been initiated *mala fide* cannot be brushed aside. The Order of the Special Martial Law Court and the Order of the Government on review were set aside.

K. The case of Meher Ali vs. A.K. Murshid, 42 DLR (HCD) 357, decided on May 25, 1989

The High Court Division, however, applied the *ratio decidendi* of Ehteshamuddin's case and Nasiruddin's case in the case of Meher Ali vs. A.K. Murshid, 42 DLR (HCD) 357, decided on May 25, 1989. A civil suit was transferred to a Summary Martial Law Court which was not set up for adjudication of civil disputes involving right to property, but which nevertheless passed some orders after trial in a landlord-tenant matter. The High Court Division held (judgment by F.H.M.H. Rahman, J.) that the order of transfer of the civil case from the Civil Court to a Summary Martial Law Court and trial thereof was without jurisdiction, *coram non judice*, nullity and void *ab initio*. The Summary Martial Law Court's decision was set aside.

L. The case of Bangladesh vs. Mahbubar Rashid, 1981 BLD (AD) 300, decided on January 5, 1981

Upon the respondent Mahbubar Rashid's conviction by a Special Martial Law Court under Regulation II of Martial Law

Regulations No. I of 1975, the proceedings of that case were submitted to the Government for review. In the meantime, Martial Law was lifted by a Proclamation dated April 7, 1979 before the review could be made. Clause (c) of the said Proclamation was as follows :

> "(c) The proceedings of every case tried and disposed of at any time before the commencing day by Special Martial Law Court or a Special Martial Law Tribunal, after the commencing day, be reviewed by the Government, hereinafter referred to as the reviewing authority, as if the said Martial Law Regulations and Martial Law Orders had not been repealed."

The Government by an Order dated April 19, 1979 informed the Martial Law Court that on review the Government did not find anything to interfere with the order of conviction and sentence. The High Court Division, on a writ petition, held the order of review to be illegal in the absence of any proper judgment. On appeal, the Appellate Division found that the Government applied its mind to the case and on that account the order of review should not have been interfered with. It was submitted on behalf of the convicted-respondent that by the Proclamation of withdrawal of Martial Law, not only the three Proclamations were revoked, but also this repealing Proclamation stood incompetent with the coming into force of the Constitution. Therefore, no further action under any of the revoked Proclamations or repealed Martial Law Regulations or Orders can be taken. In repelling this contention, the Appellate Division (judgment by Shahabuddin Ahmed. J. held.

> "This view is obviously incorrect for the last Proclamation (dated April 7, 1979) though it revoked all previous Proclamations dated 20th August, 1975, 8th November, 1975 and 29th November, 1976 and repealed all Martial Law

Regulations and Martial Law Orders, did not revoke itself. Revocation of this Proclamation will mean continuation of the Martial Law. Since this Proclamation has lifted the Martial Law which was declared on and from August, 1975, none of its provisions comes in conflict with the Constitution. In clause (e) this Proclamation has only provided for disposal of certain pending matter and this provision has been ratified by the Constitution (Fifth Amendment) Act which was enacted simultaneously with the last Proclamation. The contention fails."

The appellant-State had, however, raised an interesting question, namely, the ouster of jurisdiction of the Supreme Court. It was pointed out that Regulation 4 of Martial Law Regulations No. 1 of 1975 (under which the convict-respondent was tried) provided that the decision of the reviewing authority "is final and shall not be called in question in any manner whatsoever in, by or before any court including the Supreme Court". The Appellate Division only reiterated that Supreme Court can interfere with a decision of the Martial Law Authorities or Court in a case of total absence of jurisdiction or in a case of *mala fide* exercise of jurisdiction, but did not decide as to whether only the power of review in an undisposed of case survived or the said power along with the bar of jurisdiction of the Supreme Court also survived the withdrawal of Martial Law.

M. The end-result

In only Haji Jainul Abedin's case (supra), the imposition of Martial Law in 1975 was viewed by the Bar, the learned Judges of the High Court Division and the learned dissenting Judge of the same case in the Appellate Division as a "Constitutional deviation". They were, what an Argentinian Judge said, simply accepting the fact and trying to save those institutional values which can still be saved.

The Appellate Division "repelled the arguments advanced in support of the view that the Constitution as such is still in force as the Supreme Law of the country, untrammelled by the Proclamation and Martial Law Regulation" (Per Ruhul Islam, J. in Ehteshamuddin's case, supra, para 19). The broad words "The moment the country is put under Martial Law the above noted constitutional provision along with civil laws of the country loses its superior position" (Haji Joynal Abedin's case, supra) were modified by the subsequent decisions in Ehteshamuddin's case, Jamil Huq's case and Nasiruddin's case, but the basic decision of the Appellate Division – that of subservience of the Constitution to the Martial Law – remains unchanged. The Constitution (Fifth Amendment) Act, 1979, Act No. I of 1979, passed on the 6th April, 1979, giving a blanket cover to Martial Law Proclamations, Regulations etc., did not improve matters even after the lifting of Martial Law and restoration of the Constitution, except for some modifications as aforesaid.

Chapter 5

THE INTERLUDE (1979-82) AND THE SECOND MARTIAL LAW (1982-86)

1. The Interlude (1979-82)

Since the revocation of First Martial Law by a Proclamation dated the 7th April, 1979, constitutional government and the superior Courts' power of judicial review were restored in full. Following the assassination of President Ziaur Rahman on the 30th May, 1981, a Proclamation of Emergency was issued by the Acting President Mr. Justice Abdus Sattar on the 30th May, 1981, in exercise of powers under clause (1) of Article 141A which was approved on the 9th July, 1981 by Parliament by a resolution under clause (2)(c) of Article 141A. The Constitution (Sixth Amendment) Act, 1981, Act No. XIV of 1981, was passed on the 9th July, 1981 providing for some amendments in Articles 51 and 66 of the Constitution, of which the amendment in Article 51 has now been rendered irrelevant and the one in clause (2A) of Article 66 still survives, with a further amendment. Mr. Justice Abdus Sattar was elected President in a Presidential Election, but he was deposed in a military coup on the 24th March, 1982 when Martial Law was clamped for the second time in Bangladesh.

During the period from 1979-82 both the Divisions of the Supreme Court were confronted with constitutional cases touching upon the First Martial Law Proclamation, Regulations, etc., and Martial Law Courts. Ehteshamuddin's case, Nasiruddin's case, Jamil Huq's case, and Khandaker Moshtaque Ahmed's case were decided by the Appellate Division during this period. Few

other cases of constitutional importance, namely, on saving of certain laws (Article 47) Bangladesh vs. Haji Abdul Gani, 32 DLR (AD) 233; on fundamental rights (Articles 27 and 29) Dr. Nurul Islam vs. Bangladesh, 33 DLR (AD) 201, (Articles 31 and 35) Mofizur Rahman Khan vs. Bangladesh, 34 DLR (AD) 321; on Article 102(5) Bangladesh vs. Abdur Rab, 33 DLR (AD) 142 and Bangladesh vs. A.K.M. Zahangir Hossain, 34 DLR (AD) 173 and on some other constitutional questions as well were decided by the Appellate Division during this period which, however, I am leaving out for the present, in the hope of touching upon them later if possible.

It will be important to remember that the Supreme Court of Bangladesh had very little occasion and opportunity to interpret the Constitution in its various facets and phases owing to frequent eclipse of the Constitution itself and owing to frequent interruption with its constitutional jurisdiction. The Supreme Court interpreted the Constitution in fits and starts, as and when occasion permitted. The development of constitutional law in Bangladesh was thwarted in its infancy. But looking at the crop of constitutional cases which sprang up during the interlude (1979-82) one can safely conclude that had the Supreme Court been left free to do its work uninterruptedly the Constitution would have received a much more comprehensive and intensive interpretation in its hands.

2. Proclamation of the 24th March, 1982 and its effect

Lieutenant General Hussain Muhammad Ershad placed the country under Martial Law for the second time by issuing the Proclamation of March 24, 1982. This time the draftsman of the Proclamation took care to see that the Constitution and the Martial Law Proclamation do not compete for supremacy. Khandaker Moshtaque Ahmed's Proclamation of the 20th August

1975 provided that the Constitution shall continue to remain in force, subject to the Proclamation, Regulations, Orders etc. General Ershad's Proclamation is different.

He suspended the Constitution and by a later amendment of the Proclamation inserted a Schedule to the Proclamation containing a mini-constitution of his own device which he amended from time to time with wanton abandon providing that subject to his Proclamation and the Martial Law Regulations etc., the country will be governed in accordance with the said Schedule. Not to speak of the Constitution, which he suspended, even his own mini-constitution was subordinate to his Martial Law dispensation. He reserved the power to revive the Constitution in doses, which he did from time to time after 1985. All proceedings arising out of and in connection with writ petitions under Article 102 of the suspended Constitution shall abate. The usual bar of Court, including the Supreme Court, to question or declare illegal or void his Proclamation, Regulations etc., was duly incorporated in the Proclamation.

The Second Martial Law thus quitened the legal front effectively. The solitary case of Bangladesh vs. Md. Salimullah, 35 DLR (AD) 1, decided on June 30, 1982, was concerned with abatement of some proceedings. Referring to the mini-constitution contained in the Schedule to the Proclamation, Ruhul Islam, J. said,

> "The Proclamation of March 24, 1982 declaring that the whole of Bangladesh shall be under Martial Law and suspending the Constitution of the People's Republic of Bangladesh with immediate effect, both the Divisions of the Supreme Court, namely, the Appellate Division and High Court Division ceased to derive any power from the Constitution."

He then referred to the mini-constitution and observed,

"The language of sub-clauses (1) and (2) of clause (4) clearly shows that the High Court Division shall have such jurisdiction as is or may be conferred on it by law. The expression "by law" does not include the suspended Constitution, whereas, the Appellate Division of the Supreme Court shall have such jurisdiction as it had immediately before the Proclamation. The expression "such jurisdiction" includes jurisdiction conferred under Article 103 of the suspended Constitution. Notwithstanding the suspension of the Constitution by the Proclamation the Appellate Division continues to exercise all the jurisdiction exercised by it immediately before the Proclamation. The Appellate Division shall have jurisdiction to hear and determine appeals from the judgments, decrees, orders or sentences of the High Court Division. The respective jurisdiction as being now exercised by the High Court Division and the Appellate Division shows the difference, because the High Court Division has completely ceased to exercise any jurisdiction conferred upon it under Articles 44 and 102 of the suspended Constitution, but the Appellate Division continues to exercise the jurisdiction conferred under Article 103 of the suspended Constitution."

Article 102 of the Constitution, containing the power of judicial review, was revived by General Ershad in a highly truncated form on the 15th January, 1985 and the High Court Division was conferred the power and jurisdictions under Article 102, including the jurisdiction to enforce only six fundamental rights (Articles 28, 29, 30, 34, 40 and 41) from the said date. The Constitution was partially revived in doses and the final revival took place on the 10th November, 1986. On the same day Martial Law was withdrawn by a Proclamation of Withdrawal of Martial Law. On the 11th November, 1986 Parliament, constituted after a fresh election, enacted the Constitution (Seventh Amendment) Act, 1986 (Act No. I of 1986) ratifying and confirming the

Proclamation of the 24th March, 1982 and validating all orders and actions made or taken under the Proclamation, Regulations, Orders etc., by inserting paragraph 19 to the Fourth Schedule to the Constitution.

It can be seen that this entire period of Second Martial Law (1982-86) was a period of virtual inaction on constitutional issues, on the part of the Supreme Court. The High Court Division was fragmented into 7 places (more on this later) with a jurisdiction to decide run of the mill matters. The Appellate Division consequently had no appeal cases on constitutional matters during this period.

3. The fallouts of Martial Law

The Supreme Court had to deal with the aftereffects of Martial Law for quiet sometime after its withdrawal. A few cases may be of interest.

A. The case of Monoranjan Mukherjee vs. Election Commission, 41 DLR (HCD) 484, decided on April 30, 1989.

In this case the question was whether in the election of Union Parishads which was held in 1986 a candidate who was convicted and sentenced by a Summary Martial Law Court in 1984 was disqualified for election or nomination as a Chairman of the Union Parishad in view of section 7(2)(d) of the Local Government (Union Parishads) Ordinance, 1983 which provided that the candidate will be disqualified if he has been, on conviction for a criminal offence involving moral turpitude, sentenced to a term of not less than two years, unless a period of five years had elapsed since his release.

The High Court Division refused to acknowledge that the disqualification clause in section 7(2) of the said Ordinance is

referable to a conviction by a Martial Law Court. The reason given (by Mustafa Kamal, J.) was as follows :

> "Martial Law was withdrawn by a Proclamation of Withdrawal of Martial Law dated November 10, 1986. Sentences passed by the Military Courts, if not already executed, will be put into execution under the warrant of the Sessions Judge. Investigation of offences punishable under Martial Law Regulation or Orders shall be instituted or carried under the ordinary law and the trial after investigation shall be held by the ordinary Criminal Court in accordance with the ordinary procedure."
>
> "These are the salient consequences provided for in the Proclamation of Withdrawal of Martial Law dated November 11, 1986."

In Act No.I of 1986 which is the Constitution (Seventh Amendment) Act, 1986, it was provided in the newly-inserted clause (6) of paragraph 19 to the Fourth Schedule of the Constitution as follows :

> "All ordinances and other laws in force immediately before the date of commencement of the said Act shall, subject to the Proclamation revoking the said proclamation and withdrawing the Martial Law, continue in force until altered, amended or repealed by competent authority."

"Therefore, after the withdrawal of Martial Law on November 11, 1986 the Ordinance in question is to be read as an ordinary law and when it refers to "criminal offence" and also speaks about "conviction", it invariably refers to ordinary offences provided for by the ordinary laws of the country and also refers to trial and conviction by an Ordinary Criminal Court within the judicial hierarchy or a Special Tribunal created by ordinary law. The ordinary laws of the country cannot

even contemplate or visualize extra – constitutional offences tried by extra-constitutional dispensation. Nor is there any constitutional mandate to read Martial Law offences and Martial Law Courts whenever there is any reference to criminal offences and conviction in any general law of the land. It is well-settled that Martial Law is not a part of the constitutional scheme of this country. It is an extra-constitutional dispensation. It is a temporary measure, a short-term arrangement. It meets only an interim need. When it leaves, it usually legalises all past actions for purposes of immunity, with the tacit acknowledgement that its interference with the constitutional process is an aberration and needs to be condoned. But while leaving, the Martial Law does not leave a trail of disqualification. It is good is as long as it lasts, but with its departure it no longer casts a shadow upon the ordinary laws of the land."

"In that view of the matter we are clearly of the opinion that section 7(2)(d) of the Ordinance does not refer to a conviction of a Military Court and it also does not refer to an offence under the Martial Law Regulations or Orders. it simply refers to criminal offences as provided for by the ordinary laws of the land and conviction on trial by an ordinary Court of the country as provided in the judicial hierarchy or by Special Tribunals."

"Accordingly, we hold that the respondent No.6 did not incur any disqualification under section 72(d) of the Ordinance at all."

B. The case of Principal Secretary, President's Secretariat vs. Mahtabuddin Ahmed, 42 DLR (AD), 214, decided on January 20, 1990.

The respondent Mahtabuddin Ahmed was dismissed from service by the Chief Martial Law Administrator under Martial Law Order No. 9 of 1982 on 15-10-85. A criminal case was also instituted against him under Regulation 11 of Martial Law

Regulation No.1 of 1982. He filed an application to the Chief Martial Law Administrator on 16-5-86 praying for justice, apparently invoking the power of review of the Order made against him under Order 1A of MLO 9. The CMLA's Secretariat found that the allegations brought against him were of no substance and that the respondent had been removed from service on the basis of frivolous charges. The CMLA's Secretariat withdrew the criminal case but the respondents case for review and rescinding of the order of dismissal from service was not implemented. In the meantime Martial Law was withdrawn. Upon the respondents application under Article 102 of the Constitution the High Court Division held that under paragraph 5 of the Proclamation of Withdrawal of Martial Law, the President is empowered to create a forum for disposing of the review petition of the respondent filed under MLO 9 which was pending on the date of the commencement of the said Proclamation. Accordingly, a direction was given to place the papers in connection with the review application of the respondent to the President for disposal of the said application in terms of the Rule by creating an appropriate forum for the said purpose.

The Government preferred a petition for leave to appeal and in dismissing the same the Appellate Division (judgment by A.T.M. Afzal, J.) held as follows :

> "The General Clauses Act 1897 has been made applicable to Martial Law Orders by reason of sub-para (9) of para 19 of the 4th Schedule of the Constitution enacted by the Constitution (7th Amendment) Act, 1986. Under the Proclamation of Withdrawal of Martial Law, MLO 9 was repealed but the remedy of review provided under the said MLO survived the repeal. It is obvious that unless some provision was made for disposal of cases awaiting review the effect to the Proclamation could not be fully given. In order to harmonize the effect of repeal of the MLO

with the operation of the Proclamation of Withdrawal of Martial Law in the circumstances as in the present case, provision has been rightly made in para 5 of the said Proclamation enabling the President to make an order whenever necessary to which the High Court Division has referred."

C. *The case of Nasrin Kader Siddiqui vs. Bangladesh, 44 DLR (AD) 16, decided on August 18, 1991.*

In this case the appellant challenged the detention of her husband Abdul Kader Siddiqui in an application in the High Court Division under Article 102 of the Constitution. Following the assassination of Sheikh Mujibur Rahman on the 15th August, 1975 the detenu left the country and stayed in India. He came back to Bangladesh on the 16th December, 1990 and was arrested on the 17th January, 1991 at Jhenaidah. Upon demand he was shown an order of detention dated 13-1-91 under section 3(1)(a) of the Special Powers Act, 1974 which was challenged on various grounds.

The Government defended his detention on the ground that the order of detention under the Special Powers Act had already been withdrawn, but the detenu was being detained by virtue of a warrant of commitment dated 19-1-91 passed by the Additional District Magistrate and he was serving out a sentence of 7 years' rigorous imprisonment upon conviction by the Martial Law Court No. 1 in a Martial Law case decided on 24-7-74. The prisoner is in jail custody serving as a convict.

The Government could not produce any papers and documents in support of the order of conviction passed against the detenu in 1978 in a Martial Law trial. The High Court Division discharged the Rule and on appeal the Appellate Division found that the warrant of commitment was issued without lawful authority and was executed in an unlawful manner. In the Proclamation of

Withdrawal of Martial Law of April 7, 1979 it was provided that an unexecuted sentence of imprisonment passed by a Special Martial Law Court could be put into execution only under the warrant of the Sessions Judge of the area in which the person under sentence may be found, as if the sentence were passed by him. The constitutional significance of this case has been highlighted in one of the four judgments delivered in this case (that of Mustafa Kamal, J.) which is as follows :

> "Proclamation of Martial Law, creation of Martial Law offences and trial thereof by Martial Law Courts are not provided in the Constitution of Bangladesh. These are extra-constitutional measures outside of the scheme of our Constitution. As such when Martial Law comes to a close and the Constitution is revived it becomes necessary for Martial Law authorities (a) to revoke the Martial Law proclamations, (b) to repeal all Martial Law Regulations and Orders with provisions consequential and incidental thereto and (c) to make provisions in the Constitution itself for ratification and confirmation of its tenure and actions. This periodic exercise is a habitual feature of our short but eventful Constitutional history. Martial Law goes but its actions are ratified and the remnants of Martial Law are grafted into the Constitutional system."
>
> "Therefore, the Proclamation of Martial Law, Martial Law offences and Martial Law Courts die a natural death when the Martial Law is revoked but its legacies and fallouts Continue to the extent and in the manner expressly provided by the saving clauses repealing Martial Law Regulations and Orders."
>
> "It is in this light that I view the Proclamation, dated 7th April, 1979, revoking the Proclamations of the 20th August, 1975, 8th November, 1975 and 29th November, 1976 and repealing all Martial Law Regulations and Orders and making provisions consequential and incidental thereto." ... ...

"Proclamation of the 7th April, 1979 was both a repealing and saving legislation. Unexecuted sentences of Special Martial Law Court can be executed only in the manner and by the authority prescribed in the saving clauses. The question of these clauses being directory or mandatory does not arise at all. The remnants of Martial Law are either saved by following the saving clauses in full or they are not saved at all. The regular Constitution of the country will admit of a Martial Law hangover only by the express words of the saving clauses. The detenu was allegedly convicted and sentenced by a Special Martial Law Court. The sentence remained unexecuted for 14 years. If the sentence is to be executed now, it can only be executed by the authority and in the manner prescribed by the saving clauses and by no other authority and in no other manner whatsoever."

"The warrant of commitment issued by the Additional District Magistrate was still-born and was doomed to perish from the start."

Chapter 6

THE CONSTITUTION RESTORED (1986) AND THE CONSTITUTION (8TH AMENDMENT) CASE

1. A lull and a gush

With the revived Constitution in full bloom during 1979-82, the Supreme Court saw a spate of constitutional litigations springing up from various quarters. It was as if the cork of the constitutional bottle was opened and the pent-up constitutional injuries gushed out of the corked bottle in a fury. All this came to a halt in 1982 when Martial Law was clamped. Even pending writ petitions abated. When the Supreme Court started functioning with revived constitutional jurisdiction from the 11th November, 1986 the High Court Division lay fragmented into 7 parts. All constitutional matters originate by way of an application under Article 102 of the Constitution in the High Court Division, but the High Court Division was a shadow of its former self after the Constitution was revived and such debilitating situation was hardly conducive to constitutional litigation. The revocation, therefore, did not make any difference, it was only in 1988 that the Supreme Court became seized with a constitutional issue of momentous importance, triggered off by the Eighth Amendment to the Constitution.

2. The Eight Amendment

The original Article 100 of the Constitution was as follows :

> "100. The permanent seat of the supreme Court shall be in the capital, but sessions of the high Court Division may be held at

such other place or places as the Chief Justice may, with the approval of the President, from time to time appoint."

On the 8th May, 1982 General Hussain Muhammad Ershad as Chief Martial Law Administrator amending the Schedule to his Proclamation of the 24th March, 1982 (which has earlier been referred to as a mini-constitution) assumed powers to set up permanent Benches of the High Court Division with seats at such places and for such areas as he may specify by notification. Permanent Benches were set up initially at 3 places – Rangpur, Comilla and Jessore and later at 3 other places – Chittagong, Sylhet and Barisal. Areas under their respective jurisdictions were specified. The High Court Division at Dhaka continued to function, albeit with a truncated jurisdiction. Judges were transferred to the six permanent Benches. By a further amendment of the Proclamation by Proclamation Order No. III of 1986, dated the 17th June, 1986, these permanent Benches were designated as Circuit Benches and it was provided that when Article 100 of the Constitution is revived, the Circuit Benches shall be deemed to he sessions of the High Court Division at Dhaka under that Article. Martial Law was withdrawn by a Proclamation on the 10th November, 1986 and the Constitution was also fully revived on the same date. The Constitution (Seventh Amendment) Act, 1986 Act 1 of 1986) was published in the official Gazette on the 11th November, 1986. By the Seventh Amendment Proclamations etc., were "ratified and confirmed" and "declared to have been validly made" not to be "called in question in or before any court, tribunal or authority on any ground whatsoever." It was quickly realised that Proclamation Order No. III of 1986 dated the 17th June, 1986 was no longer an operative law and therefore the Chief Justice issued a fresh notification on the 24th November, 1986 in exercise of his powers under Article 100 appointing with the approval of the President the same six places where Circuit Benches were functioning

during the Martial Law period to be the places in which sessions of the High Court Division may be held on such dates and for such period as may be specified by him. The Chief Justice issued six other notifications of the same date specifying the jurisdiction to be exercised by each session and the areas covered by them.

These notifications raised eyebrows as to their constitutional validity. Lawyers continued a sustained and powerful agitation and movement since 1986 against the dismantling of the High Court Division. The Chief Justice's Notifications added fuel to the fire.

Perhaps to set at rest the unrest thus created, the Constitution (Eighth Amendment) Act, 1988, Act No. XXX of 1988, was enacted on the 9th June, 1988 substituting Article 100 altogether, providing that the High Court Division shall have a permanent Bench each at the same places where Circuit Benches and Sessions were held during the Martial Law period and the period following. Judges of the High Court Division were made transferable to the permanent Benches. In consultation with the Chief Justice the President shall assign the area in relation to which each permanent Bench shall have jurisdiction, powers and functions conferred or that may be conferred on the High Court Division by the Constitution or any other law. The High Court Division at Dhaka shall have like jurisdictions, powers and functions over the unassigned area. The Chief Justice shall make rules to provide for all incidental, supplemental or consequential matters relating to the permanent Benches.

On 11-6-88 the President issued Notifications assigning areas of the six permanent Benches and on the same date the Chief Justice issued Notifications relating to the permanent Benches. The amendment and the Notification were counterproductive. The unrest was intensified.

3. Constitution (8th Amendment) Case

A. The Facts and the Contentions

By two Writ Petitions the amended Article 100 and the Notification of the Chief Justice dated 11-6-88 were challenged as *ultra vires*. A Division Bench of the High Court Division summarily dismissed the writ petitions on the 15th August, 1988. Leave was granted by the Appellate Division. This appeal, Anwar Hossain Chowdhury vs. Bangladesh, 1989 BLD (Spl.) 1 = 41 DLR (AD) 165, along with two other appeals, is popularly known as the Constitution (8th Amendment) case.

The main ground on which the amendment of Article 100 was challenged was that the High Court Division of the Supreme Court with plenary judicial power over the Republic is a basic structure of the Constitution which cannot be altered or damaged and the amendment is void having rendered the High Court Division with plenary judicial power over the entire Republic non-existent.

The basis for this argument is that the power of amendment of the Constitution under Article 142 is a power under the Constitution and not above and beyond it and is not an unlimited power. The concept that Parliament has unlimited power of amendment is inconsistent with the concept of supremacy of the Constitution embodied in the Preamble and Article 7 of the Constitution. Article 7 itself is basic, fundamental and unalterable. It is a question of construction of the word "amendment" which has to be interpreted in the context and scheme of the whole Constitution. Read with the Preamble and Article 7, it means that there is an implied limitation on the power of amendment and that the basic structure of the Constitution cannot be altered or damaged and that 'amendment' can only make the Constitution more "complete, perfect or effective".

This argument was countered by the State by stating that independence of judiciary and separation of powers are basic features of our Constitution but the impugned amendment has not affected either of the two. The makers of the Constitution have imposed no limitation on the power of amendment of "any provision" of the Constitution. The amending power cannot be limited by some vague doctrine of repugnancy to the Preamble and Article 7. The argument that Parliament cannot change the basic structure of the Constitution is untenable. There cannot be any implied limitation to Parliament's power of amendment of the Constitution. The power of amendment under Article 142 is a constituent power, not an ordinary legislative power.

Although the Appellate Division by a majority of 3:1 struck down the impugned amendment of Article 100 and the Notification it remains to be seen how the issues of implied limitation to the power of amendment, difference between legislative power and constituent power, the meaning of the word 'amendment' and the basic structure doctrine have been treated in its hands.

B. The Majority Judgment.

(i) Judgment of B. H. Chowdhury, J.

On the question of implied limitation to the power of amendment. B.H. Chowdhury. J. has been unduly economic, having devoted for all practical purposes only one paragraph (Para 184 in DLR. Para 166 in Spl. BLD) to it, although his treatment of the evolution of Letters Patent of various High Courts and the details of past Constitutions has been quite generous prompting a critic to say that "It appears to have been not quite necessary" (Article on "Holding of Periodic Sessions a Flagrant Abuse of Power – by Justice Debesh Chandra Bhattacharya, 42 DLR Journal 41(43)). From the labyrinth of his

myriad forensic inquisitions one can gather that he has mainly held that there is no distinction in our Constitution between a legislative power and a constituent power, that the constituent power is with the people of Bangladesh as reflected in the Preamble and Article 7, that in the absence of any exclusion as in Article 26 the word 'law' in Article 7 is conclusively intended to include an amending law, that an amending law cannot be valid if it contravenes any express provision of the Constitution, so says Article 7, that Article 142 merely confers enabling power for amendment, that the term 'amendment' implies such an addition or change within the lines of the original instrument as will effect an improvement or better carry out the purposes for which it was framed and that Article 7 stands between the Preamble and Article 8 as a statue of liberty, supremacy of law and rule of law and is the pole star of our Constitution which no Parliament can amend because all power followed from Article 7.

On the question of 'basic structures', B.H. Chowdhury, J. has listed 21 'unique features' of the Constitution and held that 'some' (without specifying which) of the said 21 features are the basic features of the Constitution and they are not amendable by the amending power of Parliament. He accepted the contention of the appellants that the impugned amendment is to be tested against Article 7 because the amending power is but a power given by the Constitution to Parliament and although that is a higher power than any other given by the Constitution to Parliament, it is nevertheless a power within and not outside the Constitution. The impugned amendment, according to B.H. Chowdhury, J. has directly violated two Articles, namely, Articles 102 and 44 without amending expressly Articles 94 to 116 of the Constitution. It has disrupted the provisions in relation to the judiciary given in Article 94 by introducing some alien concept of 'permanent benches' conferring specifically 'jurisdictions, powers and functions' of the High Court Division, thereby creating seven

rival courts to the High Court Division, doing something indirectly which cannot be done directly. It has disrupted the constitutional fabric of Article 102 by introducing territorial concept fraught with innumerable difficulties and incongruities.

(ii) Judgement of Shahabuddin Ahmed, J.

Shahabuddin Ahmed, J. on the other hand, is of the considered opinion that an amendment of the Constitution is not included in 'law' within the meaning of Article 7 in the same way it is not law within Article 26. In other words he is not prepared to test the validity of a constitutional amendment on the touchstone of Article 7. He did not agree with the contention that if a constitutional amendment is excluded from 'law' within the meaning of Article 7, that Article will become redundant and ineffective. His reasoning is that an ordinary statute is enacted through an ordinary legislative process, but a constitutional amendment, following the special procedure and not altering any basic structure or essential feature of the Constitution becomes a part of the Constitution whereupon it derives the same sanctity as the Constitution itself. "If an amendment of the Constitution is the same thing as a law it is the Constitution whose position will fall down to the level of ordinary legislation. Validity of a law is tested by the touchstone of the Constitution : but there is no such touchstone to test the validity of the Constitution. Its validity is inherent and as such it is unchallengeable."

By an 'amendment' of a Constitution, he means that it must pass through some tests. Tests are that the amendment has been made after strictly complying with the mandatory procedural requirements, that it has not been brought about by practising any deception or fraud upon statutes and that it is not so repugnant to the existing provision of the Constitution that its co-existence therewith will render the Constitution unworkable, and that, if the

doctrine of bar to chance of basic structure is adopted, the amendment has not destroyed any basic structure of the Constitution.

With regard to Preamble of a Constitution it is his opinion that it is the intention of the makers of the original Constitution as expressed in the Preamble that is the guide to its interpretation.

Shahabuddin Ahmed, J. further held that 'constituent power' in the sense of power to make a Constitution, belongs to the people alone, although opinions differ whether it can be vested in Parliament, but even if the constituent power is vested in Parliament the power is a derivative one and the mere fact that an amendment has been made in exercise of derivative constituent power will not automatically make the amendment immune from challenge. He then found that our Constitution stands on certain fundamental principles which are its structural pillars and if those pillars are demolished or damaged the whole constitutional edifice will fall down. He listed the following to be the basic structures of our Constitution, namely, sovereignty belongs to the people, supremacy of the Constitution as the solemn expression of the will of the people, democracy, Republican Government, Unitary State, separation of powers, independence of the Judiciary and fundamental rights. He held that these are the structural pillars of the Constitution and they stand beyond any change by amendatory process. Amendment will be subject to the retention of the basic structures. The Court, Therefore, has power to undo an amendment if it transgresses its limit and alters a basic structure of the Constitution. By a clause by clause examination of the amended Article 100, Shahabuddin Ahmed, J. held that the amendment has created more than one permanent seat of the Supreme Court, thus destroying the unitary character of the judiciary, the transferability of Judges has a likely effect of jeopardizing the independence of the judiciary, a basic feature of the Constitution and the amendment has resulted ill irreconcilable

repugnancies to all other existing provisions of the Constitution rendering the High Court Division virtually unworkable in its original form.

There is thus a noticeable distinction in the approaches of the two learned Judges. While B.H. Chowdhury, J. would measure the validity of a constitutional amendment in the touchstone of Article 7, which is for him the 'pole star' of the Constitution. Shahabuddin Ahmed, J. would not do so. A constitutional amendment is not, in his view, 'law' within the meaning of Article 7. To B.H. Chowdhury, J. the word 'amendment' implies an improvement on the existing provisions of the Constitution, to Shahabuddin Ahmed. J. it means the passing of some tests. B.H. Chowdhury, J. holds that the Preamble is unamendable (it has to be referred to the people) and the Preamble preserves the constituent power with the people, Shahabuddin Ahmed, J. regards the Preamble as a guide to the interpretation of the Constitution. To B.H. Chowdhury, J. of the 21 'unique features' of the Constitution. 'some' are basic features, but those are not specified. The impugned amendment in his judgment has directly violated Articles 102 and 44 and disrupted the provisions of Article 94. To Shahabuddin Ahmed, J. there are 8 specified basic structures of our Constitution. The impugned amendment has broken the 'oneness' of the High Court Division, it has the likely effect of destroying the independence of the judiciary and it is in irreconcilable conflict with other Articles of the Constitution relating to High Court Division.

(iii) Judgement of M.H. Rahman, J.

M.H. Rahman, J. has not given his unqualified welcome to and acceptance of the doctrine of basic structure. He is quite conscious that the doctrine of basic structure is a new one and it may take some time before this doctrine gets acceptance from the superior courts of the countries where constitutionalism is

prevailing and he has left the doctrine at that. His reasoning is that the appeals were concerned with only one basic feature, the rule of law, marked out as one of the fundamental aims of our society in the Preamble. It is his opinion that if any provision of the Constitution can be called the 'pole star' of the Constitution then it is the Preamble. The impugned amendment is to be examined on the touchstone of the Preamble, with or without resorting to the doctrine of basic feature. As the impugned amendment has badly impaired the structure of rule of law which is the fundamental aim of our society as laid down in the Preamble, he has struck down the amendment. This he has done not on the ground of uncertainties or irreconcilability (as was done by the other two learned Judges) but on the ground of the amendment's irreconcilability with rule of law as envisaged in the Preamble. He has been categorical in his rejection of Article 7 as the 'pole star' of the Constitution and has held very clearly that the validity of an amendment of the Constitution cannot be examined on the touchstone of Article 7. Even without clause (3) of Article 26 'law' does not mean a constitutional amendment. Clause (2) of Article 142 was enough to exclude application of Article 26 to an amendment of the Constitution. He has not dealt with the difference between legislative power and constituent power in any great details or with the meaning of the word 'amendment'.

These are the three learned Judges in the majority who declared the impugned amendment of Article 100 to he *ultra vires* and void, but there is a distinct lack of Commonness in their individual approach to the basic issues in these appeals. While B.H. Chowdhury, J. and Shahabuddin Ahmed, J. have accepted the basic structure doctrine in their own different ways, M.H. Rahman, J. has stopped short of accepting the doctrine and has struck down the amendment because of its irreconcibility with rule of law as laid down in the Preamble which he considers to be the 'pole star' of the Constitution.

C. The Minority Judgement

Judgement of A.T.M. Afzal, J.

A.T.M Afzal, J. in his dissenting opinion has been clear and unequivocal in rejecting tile theory of basic structures on two grounds. "The first is that it is inconceivable that the makers of the Constitution had decided on all matters for all people of all ages without leaving any option to the future generation. Secondly, if it is right that they wanted the so-called 'basic features' to be 'permanent features' of the Constitution there was nothing to prevent them from making such a provision in the Constitution itself." He reasons that the incorporation of sub-Article (1A) in Article 142 providing for a more difficult procedure of referendum in case of amendment of some of the provisions of the Constitution is a clear manifestation of the principle that no other provision of the Constitution is so basic that it will need a referendum for it to be incorporated in the Constitution.

A.T.M. Afzal, J. gives, however, some additional reasons as to why "the doctrine of basic features has indigenous and special difficulties for acceptance". Features that were considered to be basic to our Constitution on the 16th December, 1972 "have been varied in such abandon and with such quick succession that the credibility in the viability of the theory of fundamentality is bound to erode". He gives a few examples by reference to various amendments of the Constitution made upto the Eighth Amendment Act, namely, amendment of the Preamble itself, of Article 44, Article 94 (and of their comeback), of secularism etc., and then proceeds to say :

> "In view of the experience as noticed above, any doctrainaire approach as to "basic features", in my opinion, will amount to tracing a blind eye to our constitutional evolution and further

will not be in the interest of the country. I shall give one example. Today a basic feature in our Constitution is the Presidential form of Government. We can take judicial notice that there is a demand by some political parties to restore Parliamentary form of Government as it originally obtained. Why should a roadblock be created by the Court, if people choose to send the members of these political parties to the Parliament, against amending the Constitution providing for Parliamentary system?"

Badrul Haider Chowdhury, J. in his judgment mentioned the then Articles 48 and 58 of the Constitution to be the basic features of the Constitution. These Articles then provided for direct election of the President in a Presidential form of Government and the selection by the President of a member of Parliament as Prime Minister who commands the support of the majority. These Articles, he said, are protected. He then invoked Article 7 and said, "Hence the constitutional scheme if followed carefully reveals that these basic features are unamendable and unalterable."

Yet, within two years from this judgment, after the general elections of February, 1991, the then Articles 48 and 58, exemplified as a "basic feature" by B.H. Chowdhury, J. were substituted by the Constitution (Twelfth Amendment) Act, 1991, Act XXVIII of 1991, with effect from 18-9-91, replacing a Presidential system of Government with a Parliamentary one.

No one has yet complained that the majority judgment in the Eighth Amendment case is a "roadblock" to the Twelfth Amendment.

A.T.M. Afzal, J. in the last analysis, has come to accept a limited and highly restricted concept of 'basic features'. He holds that the word "amendment" has a built-in limitation in that it does not authorise the abrogation or destruction of the Constitution or

any of its three structural pillars – executive, legislature and judiciary – which will render the Constitution defunct or unworkable. In his words, "in exercise of the power under Article 142 the Constitution cannot be destroyed or abrogated. The destruction of the Constitution will be the result if any of its "structural pillars", that is, the three organs of the Government, Executive, Legislature and Judiciary is destroyed. The result will also be the same if any of these organs is emasculated or castrated in such a manner as would make the Constitution unworkable. For example, if the Supreme Court or a Superior Court by any name is retained but the power of Judicial Review as under Article 102 is taken away, the result will be that the form will be there but the soul of the judiciary will be gone and the Constitution will be rendered unworkable inasmuch as the balance which is struck in the scheme of the Constitution cannot be maintained. There can be no objection to the exercise of amending power to fulfil the needs of time and of the generation. But the power cannot be so construed as to turn the Constitution which is the scripture of hope of a living society and for its unfolding future, into a scripture of doom."

It follows from the above view of A.T.M. Afzal, J. that he rejects the doctrine of implied limitation to the power of amendment. "Who is to decide and how to decide when the Constitution-makers themselves in their wisdom chose not to distinguish, what are to be considered as transcendental, in limitation to the power of amendment given to Parliament?" A power to amend the Constitution, constituent power, is different from the power to amend ordinary law, legislative power. The validity of an ordinary law when questioned is to be justified by reference to a higher law, but the validity of a constitutional amendment cannot be justified by reference to another higher law. The Constitution generates its own validity. A.T.M. Afzal, J. therefore rejects the contention that the validity of a constitutional

amendment is to be tested in the touchstone of Article 7. He is of the opinion that in our Constitution no article or clause is unamendable. The limitation in Article 142 relates only to procedure for amendment and not substantive in the sense that no article is beyond the purview of amendment.

A.T.M. Afzal, J. then holds that the impugned amendment has not destroyed the High Court Division as originally conceived as an integral part of the Supreme Court, nor affected its jurisdiction and power in a manner so as to render the Constitution unworkable. The consequences of the amendment belong to the domain of policy and whatever may be the personal view of a Judge regarding the wisdom behind the amendment, he would be concerned with only the legality of it. He held the impugned amendment and Notification not to be *ultra vires* on any grounds alleged.

D. The Ratio Decidendi

Lawyers and constitutional analysts will look in vain for a consensus *ratio decidendi* of the majority judgment, except for the result.

The lowest common denominator of the two majority judgments – those of B. H. Chowdhury, J. and Shahabuddin Ahmed, J. and of the minority judgment of A.T.M. Afzal, J. is that there are after all some basic structures of the Constitution, although the learned Judges are not unanimous on those. But the existence of basic structures is one thing and their non-amendability is another. The basic difference between the two learned Judges in the majority and the learned Judge in the minority concerns the amendability of basic structures. And the difference *inter se* between the two learned Judges in the majority is with regard to the yardstick with which the violation of basic structures is to be measured.

According to B.H. Chowdhury, J. an amendment of the Constitution "directly violating" or "disrupting" other provisions of the Constitution and thus bringing about "innumerable difficulties and incongruities" will be *ultra vires* and void on the touchstone of Article 7. According to Shahabuddin Ahmed, J. an amendment of the Constitution which fails to pass the "tests" mentioned by him (not altering any basic structure of the Constitution – or not being so repugnant to the existing provision of the Constitution that its coexistence with the amendment will render the Constitution unworkable, being one of such "tests") will be *ultra vires* and void, not on the touchstone of Article 7 (or presumably even the Preamble), but because the derivative constituent power has to pass through the ordeal of validity test. According to A.T.M. Afzal, J. there is a built-in limitation in the word 'amend' which does not authorise the abrogation or destruction of the Constitution or any of its three structural pillars which will render the Constitution defunct or unworkable and an amendment of the Constitution which does the same will be *ultra vires* and void, neither on the touchstone of Article 7 and the Preamble nor on any validity test, but because of the built-in limitation of the word 'amend'. Thus if only A.T.M. Afzal, J. could persuade himself that the impugned amendment has brought about the result he talked of, it would have been theoretically possible for him to strike down the same, even though on a much narrower ground.

The view of M.H. Rahman, J. stands out in marked contrast to the views held by the three other learned Judges, even though he eventually found himself with the majority. He would not test the validity of a constitutional amendment either on the touchstone of basic structures, or of Article 7 or of any validity test, or of any definition of the term 'amendment'. For him the Preamble of the Constitution is the 'pole star' of the Constitution, rule of law is one of its main planks, the impugned amendment violates rule of law and therefore it is *ultra vires* and void.

Dr. D. Conrad, a German political scientist, wrote an article on "Limitation of Amendment Procedures and the Constituent Power", in XVI - XVII Indian Yearbook of International Affairs, pp. 347-430 in 1970. Along with other text-book writers his views on the limitation of amending power were considered and noted by the majority Judges in Kesavananda vs. State of Kerala, AIR 1973(SC) 1461 at pages 1861 and 2020. After the basic structure doctrine was further reinforced by the Indian Supreme Court in Indira Gandhi vs. Raj Narain, AIR 1975 (SC) 2299, he wrote an article on "Constituent Power, Amendment and Basic Structure of the Constitution: A Critical Reconsideration" in Delhi Law Review Vol. 6 and 7, 1978-79. He noted the above two decisions of the Indian Supreme Court and observed,

> "In spite of the practical acceptance, however, and the added credibility after a historic test, the theoretical contours and further implications of the doctrine have remained somewhat obscure and controversial."

The observation seems to have equal, if not more, validity after the "historic test" in the Constitution 8th Amendment Case. Dr. Conrads critical reconsideration of the basic structure doctrine and of limitation on constituent power makes interesting reading.

From the above analysis of the Constitution (8th Amendment) Case it can be seen that the basic structure doctrine had a rather close shave, as it had in Keshavananda's case (supra) in the Indian Supreme Court. It will be for the next generation of constitutional lawyers and Judges to develop and crystalize the theoretical base of this doctrine in its application to Bangladesh. As it is the doctrine stands on a nebulous footing.

4. The Sessions continue

The woos of the High Court Division were not over after the original Article 100 of the Constitution was restored by the majority judgment in the Constitution (8th Amendment) Case. One of the operative orders of the majority judgment was : "In view of this invalidation, old Article 100 of the Constitution stands restored along with the Sessions of the High Court Division."

The Chief Justice almost immediately framed Rules authorising holding of Sessions of the temporary Benches of the High Court Division at a place or places outside the permanent seat under the original Article 100 of the Constitution and directed holding of such Sessions. Such Sessions were held regularly in some of those very places where during Martial Law period Circuit Benches were functioning and this state of affairs continued not only during the tenure (1989-90) of the Chief Justice who was not a party to the Constitution (8th Amendment) Case, but also during the tenure of the two succeeding Chief Justices (1990-91) who wrote the majority judgment in that case. Articles were written in law journals questioning the validity and constitutionality of these Rules and regular sessions, but no challenge was thrown in the Court. It was only in February, 1991 that these Sessions were wound up by the last of the two Chief Justices who happened to assume the office of the Vice-President, eventually to be the Acting President, to oversee the general election in the country. The High Court Division started functioning exclusively in the permanent seat since February, 1991. No Sessions were held outside the permanent seat ever since.

5. Constitutional Amendments (1986-90)

Apart from the Seventh (1st November, 1986) and Eighth (9th June, 1988) Amendments to the Constitution, two further

amendments to the Constitution were brought about during the tenure of President Hussain Muhammad Ershad (1982-90).

The Constitution (Ninth Amendment) Act, 1989, Act No. XXXVIII of 1989, published in the official Gazette on the 11th July, 1989 effected some amendments in the Constitution, mainly to limit the tenure of office of the President and the Vice-President. This Amendment has now been rendered infructuous after the Presidential system of government was replaced by a Parliamentary form of government.

The Constitution (Tenth Amendment) Act, 1990, Act No. XXXVIII of 1990, published in the official Gazette on the 23rd June, 1990, has however survived. 30 reserved seats for women to be elected by members of Parliament for another ten years have been re-introduced. The original provision ran its course on the 16th December, 1987.

Chapter 7

PARLIAMENTARY SYSTEM REVIVED

1. Further Constitutional Amendments

Following a movement against his regime President Hussain Muhammad Ershad resigned on the 6th December, 1990, appointing Mr. Justice Shahabuddin Ahmed, the Chief Justice, as the Vice-President, the incumbent Vice-President having resigned earlier. The Vice-President exercised the powers and performed the functions of the President in his capacity as Vice-President and a Parliamentary election was held under his supervision in February, 1991.

The new Parliament passed the Constitution (Eleventh Amendment) Act, 1991, Act No. XXIV of 1991, published in the Official Gazette on the 10th August, 1991. This amendment was made for the purpose of making the Vice-President exercising the powers and discharging the functions of the President eligible to resume the duties and responsibilities of the Chief Justice after a new President is elected under the Constitution and enters upon his office. The other purpose of this amendment was to ratify and confirm (a) his appointment as Vice-President and (b) the powers exercised and laws and ordinances made during his above tenure.

But the more radical and far-reaching constitutional amendment was to come a month later. The new Parliament passed the Constitution (Twelfth Amendment) Act, 1991, Act No. XXVIII of 1991, published in the Official Gazette on the 18th September, 1991. The earlier transformation of the Constitution (beginning from the Fourth Amendment) from Parliamentary to

Presidential was now reversed in the opposite gear, resulting in the re-appearance of many or most of the original provisions of the Constitution. The amendment was made with the concurrence of both the ruling party and the opposition parties in Parliament.

2. Post-General Election Constitutional cases

Some constitutional cases came up in quick succession, both in the High Court Division and in the Appellate Division, following the general election of February, 1991. Two of them relate to the Tenth Amendment and the others to various other provisions of the Constitution.

(i) Open Ballot vs. Secret Ballot – Article 39 and Section 10, President's Election Act, 1991.

The case of Abdus Samad Azad and others vs. Bangladesh, 44 DLR (HCD) 354, decided on February 13 & 18, 1992.

Following the general election in the country held in February, 1991 Parliament enacted the Presidents Election Act, 1991 (XXVII of 1991) following which the President's Election Rules, 1991 were framed by the Chief Election Commissioner. Section 10 of the said Act provides that the election of the President shall be by open ballot by the Members of Parliament, each Member of Parliament having one vote. Several Members of Parliament instituted writ petitions, challenging section 10 of the President's Election Act, 1991 as *ultra vires* the Constitution being violative of the Preamble and the fundamental right of freedom of thought and conscience guaranteed under Article 39 of the Constitution, as also being violative of Article 11 of the Constitution preventing the people from effectively participating in the administration of Government through their elected representatives. It was also alleged to be violative of Article 7 of

the Constitution which provides that all powers belong to the people. It was further contended that this provision destroys election as a concept and converts an election to a mere selection. The so-called open voting is a denial of free exercise of franchise.

A Division Bench having split over the question of issuing or not issuing a *Rule Nisi*, the matter was referred to a learned Single Judge (Anwarul Haque Chowdhury, J.) who repelled (in Abdus Samad Azad vs. Bangladesh, 44 DLR (HCD) 354) the above contentions and held that the system of open ballot procedures could not be said to have taken away the right to vote freely and fearlessly. The expression "freedom of conscience and thought" have the ordinary meaning of freedom of choice between right and wrong and the system of open voting will not prohibit a Member of Parliament from distinguishing the right from the wrong and from choosing one person from among several candidates on his own free will. Both the systems, open and secret ballot, is recognised by the Constitution itself and there is no warrant for the view that in a democratic Government all votings must be by secret ballot and never by an open ballot. The High Court Division refused to issue any *Rule Nisi* and there the controversy between open and secret ballot rests at present.

(ii) When is Parliament Constituted? Article 65(3) and Article 67(1) (a)

The case of Fazle Rabbi vs. *Election Commissioner, 44 DLR (HCD) 14, decided on April 2, 1991.*

Another case of constitutional significance came up before the High Court Division, that of Fazle (Md.) Rabbi and others vs. The Election Commissioner, 44 DLR (HCD) 14, decided on the 2nd April, 1991.

Clause (3) of Article 65 of the Constitution originally provided in substance that for the next ten years fifteen seats shall

be reserve exclusively for women members, who shall be elected according to law by the 300 elected members of Parliament. By subsequent Martil Law Proclamation the reserved seats for women were increased from fifteen to thirty and the period was extended to fifteen years. Clause (3) exhausted itself on the 16th December, 1987. By the Constitution (Tenth Amendment) Act, 1990 (Act No. XXXVIII of 1990) clause (3) was substituted providing in substance that for the next ten years thirty seats shall be reserved exclusively for women members who shall be elected according to law by the 300 elected members of Parliament.

The earliest challenge to this constitutional amendment was made by Dr. Ahmed Hussain, a senior Advocate of the Supreme Court, in Writ Petition No. 2306 of 1990, but more of this later. After the general election of February, 1991 some members of the Jatiya Party challenged the working of the constitutional amendment by a separate Writ Petition No. 465 of 1991. Their contention was that 31 members of the Jatiya Party elected to Parliament after February, 1991 general election had taken a decision not to make and subscribe the required oath or affirmation till the Chairman of the .Jatiya Party Hussain Muhammad Ershad and other members are released from detention and orders of detention passed or warrants of arrest issued against them are withdrawn. Under Article 67(1)(a) of the Constitution the members of Parliament can make and subscribe the oath or affirmation within a period of ninety days from the date of the first meeting of Parliament after their election. If therefore the election of the 30 women members of Parliament is held within the period of ninety days the Jatiya Party members will be deprived of their voting right as also the right to nominate their candidates for election to those seats, thereby infringing the petitioners' right of equality before law and their entitlement to get equal protection of law. They contended that the electoral roll of 300 elected members of Parliament is not complete until the

elected members of the Jatiya Party make and subscribe the oath or affirmation.

A Division Bench of the High Court Division (judgment by Fazle Hussain Mohammad Habibur Rahman, J.) rejected the application summarily. It was held that of the members of Parliament elected from the general seats, only those who have made and subscribed the oath or affirmation shall be the voters in the election to reserved seats for women. It is nowhere provided in the Constitution that if one or some of the 300 members of Parliament do not make and subscribe the oath or affirmation the election to the reserved seats for women cannot be held. The High Court Division held that no one is permitted to construe a statute and the Acts of Parliament so as to reduce it to rank absurdity. If election to the reserved seats for women can be held up because even a single member of Parliament has failed to make and subscribe the oath or affirmation then Parliament itself cannot meet, but, Article 67(1)(a) clearly indicates that even if some persons elected to Parliament fail to make and subscribe the oath or affirmation Parliament can meet and the grace period of ninety days within which a member of Parliament has to make and subscribe the oath or affirmation is for the purpose of saving his membership and not for formal constitution of Parliament.

(iii) Constitutionality of the Tenth Amendment – Article 65(3) and Articles 121 and 122(1)

The case of Dr. Ahmed Hussain vs. Bangladesh, 44 DLR (AD), 109, decided on March 2, 1992.

In this case, the petitioner having unsuccessfully challenged the vires of the aforesaid Tenth Amendment of the Constitution sought leave to appeal from the judgment of the High Court Division dated 28-11-91 in Writ Petition No. 2306 of 1990. The leave petition was dismissed on 2-3-92, 44 DLR (AD) 109,

decided on March 2, 1992. The petitioner Dr. Ahmed Hussain challenged the Tenth Amendment of the Constitution being violative of Articles 121 and 122(1) of the Constitution. Article 121 provides that there shall be one electoral roll for each constituency for the purposes of elections to Parliament, and no special electoral roll shall be prepared so as to classify electors according to religion, race, caste or sex. Article 122(1) provides that the elections to Parliament shall be on the basis of adult franchise. It was held by the Appellate Division that the principle of single electoral roll for each constituency and the principle of adult franchise are not violated in the case of election to reserved seats for 30 women members, because the Constitution on the date of its commencement provided for two different kinds of elections. 300 members in general seats are to be elected directly on the basis of adult franchise. Additionally, some seats reserved for women members are to be filled up by a method of indirect election. There is thus no conflict between the Constitution (Tenth Amendment) Act and Articles 121 and 122(1) of the Constitution.

It was also argued that the method of indirect election for the seats reserved exclusively for women has destroyed the principle of democracy as expressed in the Preamble, in clause (1) of Article 7 and in Articles 8 and 11 of the Constitution. The Appellate Division held (judgment by M.H. Rahman, J.) that a system of indirect election cannot be called undemocratic. It is provided in the Constitution itself. Article 28 clause (4) of the Constitution provides that nothing in this article shall prevent the State from making special provision in favour of, among others, women and therefore the amendment is also not violative of Article 28.

(iv) Constitutionality of Administrative Appellate Tribunal – Articles 102(5) and 117. Section 3(3) and 5, Administrative Tribunal Act, 1980.

The case of Mujibur Rahman vs. Bangladesh, 44 DLR (AD) III, decided on 28 November, 1991.

Article 117 of the Constitution conferred an enabling power to Parliament to establish one or more administrative tribunals to exercise jurisdiction in respect of matters relating to or arising out of *inter alia* the terms and conditions of persons in the service of the Republic. It was contained in the proviso that Parliament may by law provide for appeals from or the review of decisions of any such tribunal.

Administrative Tribunals Act, 1980 established such an Administrative Tribunal, shortly the Tribunal, as also an Administrative Appellate Tribunal, shortly the Appellate Tribunal. Section 6(3) provided that the decision of the Appellate Tribunal in the appeal shall be final. Writ Petitions (including the present one) were filed from the decisions of the Appellate Tribunal, but those were held by the High Court Division to be not maintainable, because writ petitions do not lie, as per Article 102(5) of the Constitution, to "a tribunal to which Article 117 applies." It was argued that the embargo applies only to the Tribunal which was specifically established in exercise of Parliament's power under Article 117, and not to the Appellate Tribunal, which was established under the plenary legislative power of Parliament. The argument was not accepted and it was held that the power to provide for appeals, under the proviso to Article 117(2), also includes the power to create a forum.

In the Appellate Division, this particular writ petition, so held to be not maintainable by the High Court Division, was argued on a larger canvass. The vires of section 3(3) of the Administrative Tribunals Act, 1980 providing that the one-member Administrative Tribunal shall be from among persons who are or have been District Judges, was challenged as being void, being in

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conflict with Article 117 and Part VI of the Constitution. Section 5 of the Act establishing the Appellate Tribunal was also challenged as void on the same ground.

The argument was that the Tribunal now combines in itself the entire bundle of constitutional power and powers of the civil court which the High Court Division and the civil courts enjoyed prior to its establishment. As the Constitution itself does not expressly state the status and qualification of the Tribunal's incumbents, those are to be deduced from both Article 117 and Part VI as its necessary intendment. The Tribunals are not subordinate courts, but are part of the "Judiciary" under Part VI. The Tribunals wield the judicial power of the State. The broad sweep of the Tribunal's jurisdiction is such that though not a substitute, it must at least be co-ordinate to or equally effective as the High Court Division. As such the Tribunal can only be composed of a person appointed in the same manner and entitled to the same security of tenure as the holder of the Superior Courts named in Chapter 1 of Part VI. The District Judge is the seniormost post in the judicial service which comprises of persons holding judicial posts and who do not enjoy the same security of tenure as Supreme Court Judges. By designating a District Judge as Chairman of a Tribunal section 3(3) of the Act in effect has established a court subordinate to the Supreme Court which Parliament had no power to do.

The further argument was that Articles 102(5) and 117(2) attach a finality to the decision of the Tribunal and bar a judicial review. The proviso to Article 117(2) enables Parliament to provide for appeal against the decision of the Tribunal and the *raison d'etre* of the proviso is that in its absence Parliament could not have by ordinary law disturbed the finality of the Tribunal's decision. The expression "such Tribunal" in Article 117(2) leaves no room for doubt that it is referable to the Tribunal established

under Article 117(1). The view of the High Court Division that the power to provide for appeals includes a power to create a forum for appeal has no basis in law or constitution, nor is there any such doctrine in legal or constitutional jurisprudence, it was claimed. The Appellate Tribunal is not a tribunal established under Article 117, but is one established under the plenary legislative power of Parliament under Article 65. Such a Tribunal can only be established under Article 114 as a Subordinate Court. Its decision cannot have finality as the original section 6 of the Act sought to give it and cannot remain immune from judicial review by the High Court Division under Article 102. Consistent with the finality of the Tribunal's decision and in the scheme of Part VI the only forum for appeal under Article 117(2) can be the Supreme Court. There is no other option. It was redundant to expressly say so in the proviso itself. The enabling power to provide for appeal in Article 103(4) was not enough to disturb the finality of the decisions of the Tribunal. Hence the proviso, it is only when either Division of the Supreme Court is made the forum for appeal that the interpretation will be in full harmony with the manifest intention deduced from Article 117 and Article 103(4), it was submitted.

Several principles of interpretation of Constitution were settled in that case, but to begin with it was held (by Mustafa Kamal, J.) that "there is a presumption of validity of legislative statutes. The maxim *utres magis valeat quam pareat* (it is better for a thing to have, effect than to be made void) applies even more liberally in the case of a Constitution regard being had to the nature of the instrument". When two constructions are possible, one invalidating a statute and the other upholding it, the Court is inclined to adopt that which will remove the statute furthest from constitutional infirmity.

Dealing with the argument that it was imperative to consider the pre-existing legal and judicial order while determining the

constitutionality of a present statute, M.H. Rahman, J. said in the main judgment :

> "In the instant matters the past history can hardly be used against the constitutionality of the law Parliament is empowered in the Constitution to make. Rather, it will sustain the presumption of the constitutionality of the Act for the simple reason that the makers of the Constitution knowing the state of things obtaining before the framing of the Constitution deliberately chose to provide what is provided in Article 117."

The arguments on constitutionality were based not upon violation of any particular Article or Articles of the Constitution, but upon the necessary intendment of the Constitution in Part VI. Dealing with the question as to when and how to gather necessary intendment or manifest intention of a written Constitution, Mustafa Kamal, J. holds :

> "Necessary intendment or manifest intention of a Constitution need not be gathered at all when the Constitution expresses itself in adequate words. When it is necessary to gather the necessary intendment or manifest intention, a Court of law will try to gather the same primarily from the language used which must be construed according to well-established rules of interpretation. If the language fails or is inadequate, then as a secondary source matters outside the language used may be looked into gather the necessary intendment or manifest intention of a written Constitution."

The answer to the questions raised can be found in Part VI of the Constitution itself and in the *non-obstante* clause in Article 117(1).

Regarding the *non-obstante* clause in Article 117(1), M .H. Rahman, J. observed as follows :

"From the first four words, the *non-obstante* clause, in Article 117 it follows that the Constitution has not only granted power to the Parliament to make a law like the Act of 1981, it has also emancipated such grant of power from any restrictive provisions in Chapters 1 and 2 of Part VI. The tribunals are not meant to be like the High Court Division or the subordinate court over which the High Court Division of the Supreme Court exercises both judicial review and superintendence. The tribunals are not in addition to the Courts described in Chapters I and II. They are set apart, as *sui generis* in a separate chapter. The situational argument that for about ten years when no tribunal was set up the Civil Courts and the High Court Division exercised the functions of the tribunals delineated in Article 117(1), and will in future exercise the same jurisdiction if the Act of 1981 is repealed is hardly relevant for interpreting the Constitution which is supposed to endure till it runs out its fortune of survivance."

Mustafa Kamal, J. says of the *non-obstante* clause :

"Chapter III, because of the *non-obstante* clause, is liberated completely from Chapters I and II. In Chapter III, the Parliament was granted the legislative power to establish one or more Administrative Tribunals, not Courts. Chapter I and Chapter II of Part VI deal with settlement of disputes through Courts, Chapter III with administrative justice, i.e., settlement of disputes through the mechanism of administrative tribunals. A Tribunal has all the trappings of a Court, but it is not a Court proper."

Repelling the contention that the Tribunal wields the judicial power of the Republic, Mustafa Kamal, J. says "

"Although the Constitution itself omitted to confer judicial power on the Supreme Court and the subordinate Courts by any express provision, there can be no doubt whatsoever that the Supreme

Court and the subordinate Courts are the repository of judicial power of the State, because they have been previously existing and the Constitution allows them to function, although in a new form. But the Tribunals are not pre-existing adjudicative machineries. They are a new creation. Mere placing them in the Part on Judiciary in the Constitution will not make them wielders of judicial power of the State. In their case, there must be an express conferment of judicial power, more so because they are not Courts, but tribunals. Since there is none in our Constitution. I hold that Administrative Tribunals do not exercise the judicial power of the State."

"Consequently, Parliament has a relatively free hand in the selection of person/s for manning the Tribunals."

M.H. Rahman, J. repelled the contention that the Appellate Tribunal was set up in exercise of the plenary legislative power Parliament under Article 65 :

"Both the Tribunal and the Appellate Tribunal have been set up by Parliament in the exercise of its legislative power – in one case by an express grant in clause (1) and in the other by necessary implication following from the proviso to clause (2) of Article 117. The distinction between a law made by Parliament by an enabling power in the Constitution and the one by the plenary power under Article 65 may only be relevant in a case where the former is made in excess of the enabling power. There is nothing in the Act of 1981 that is exceptionable."

"There is no command nor any necessary intendment in the Constitution that the Tribunal or the Appellate Tribunal is to be construed as a forum substitute, alternate or co-equal to the High Court Division."

... ...

> "It is a settled principle of interpretation that an expression used in a constitutional enactment conferring legislative powers must be construed not in any narrow or restricted sense, but in a sense beneficial to the widest possible amplitude of the powers."

Mustafa Kamal, J. holds that the rule of strict interpretation may be applied to ordinary laws especially penal and revenue laws, but it has no application to the interpretation of a written Constitution. He quotes Lord Diplock expressing the majority view in Hinds and others vs. The Queen, (1976) 1 All ER 353 which is as follows :

> "To seek to apply to constitutional instruments the canons of construction applicable to ordinary legislation in the fields of substantive criminal and civil law would, in their Lordships' view, be misleading – particularly those applicable to taxing statutes as to which it is a well-established principle that express words are needed to impose a charge on the subject." (P. 360)

Mustafa Kamal, J. holds that the judicial power of the State in our Constitution lies with the Supreme Court and with the Subordinate Courts, but the Administrative Tribunals not being Courts and not having been expressly conferred judicial power and not also having the power of judicial review conferred upon the High Court Division under Article 102 of the Constitution, does not exercise the judicial power of the State. Parliament is not fettered in its choice of persons to man the Tribunal. Its hands have been released from the binding knots of Article 94 to Article 116A and it has to act without the compulsion of establishing either a substitute High Court Division or a body coordinate to or as effective as the High Court Division.

Mustafa Kamal, J. also holds that in the case of ordinary law there is a presumption that the legislature does not intend that what it has not clearly expressed. No such presumption applies to

a grant of legislative power by a written Constitution. Where there is a grant of legislative power by the Constitution the widest meaning must he given to the words used. To do otherwise will be to define and delimit the words which the Constitution has not defined or delimited. In paragraphs 85 to 87 of the judgment he discussed two principles of interpretation of a written Constitution, namely, the doctrine of implied powers and the doctrine of incidental and ancillary powers and held that the fact that the proviso to Article 117(2) enables Parliament to "provide for appeals, does not mean that the Constitution withholds the power to create an appellate forum under this proviso altogether. Quite contrarily, the power is bestowed in Article 117(2) itself. It is not extraneous to the Constitution nor is it repugnant to its sense. A provision for appeal will be impossible of enforcement without creating a forum for appeal. The power to create a forum for appeal is inherently incidental and ancillary to the power to provide for an appeal.

Agreeing with M.H. Rahman, J. Mustafa Kamal, J. held that there was no compelling constitutional requirement that an appellate forum must of necessity be either the High Court Division or the Appellate Division of the Supreme Court. The proviso to Article 117(2) gives Parliament a choice. It can establish either an Appellate Court or an Appellate Tribunal. Section 5 of the Act is not *ultra vires* the Constitution.

M.H. Rahman, J. answered the appellant's contention with regard to the Tribunals' jurisdiction to adjudicate on fundamental rights which is as follows :

> "Within its jurisdiction the Tribunal can strike down an order for violation of principles of natural Justice as well as for infringement of fundamental rights, guaranteed by the Constitution, or of any other law, in respect of matters relating to or arising of sub-clause (a), but such tribunals cannot, like the

Indian Administrative Tribunals in exercise of a more comprehensive jurisdiction under Article 323A (see SP Sampath Kumar vs. Union of India, AIR 1987 SC 386 (para 16) and JB Chopra vs. Union of India, AIR 1987 SC 357 (para 2)), strike down any law or rule on the ground of its constitutionality. A person in the service of the Republic who intends to invoke fundamental right for challenging the vires of a law will seek his remedy under Article 102(1), but in all other Cases he will be required to seek remedy under Article 117(2)."

"An aggrieved person may, out of desperation or just for taking a sportive chance in the summary writ jurisdiction, allege contravention of some fundamental right which may turn out to be frivolous or vexatious or not even remotely attracted in his case. The Court is, however, to be on guard so the great value of the right given under Article 102(1) is not frittered away or misused as a substitute for more appropriate remedy available for an unlawful action involving no infringement of any fundamental right."

(v) Constitutionality of Ordinance Abolishing Upazilla Parishad – Articles 9, 11, 59 & 60.

The case of Kudrat-E-Elahi Panir and others vs. Bangladesh. 44 DLR (AD) 319, decided on July 30, 1992.

In this case some constitutional questions of immense importance came to be decided by the Appellate Division.

By Ordinance No. LIX of 1982 Upazila Parishads wet constituted by the then Government to run and manage certain local government functions by transferring some powers and functions of the Government to the Upazila Parishads. After the general election held in February, 1991 the new Government promulgated Ordinance No. XXXVII of 1991, later on made Act

No.II of 1992, abolishing the Upazila Parishads altogether and vesting in the Government all rights, powers, authorities and privileges of the dissolved Upazila Parishads.

This Repealing Ordinance/Act was unsuccessfully challenged by some Chairmen of some Upazila Parishads in the High Court Division by various writ petitions. The High Court Division however granted a Certificate under Article 103(2) of the Constitution.

In these certificated appeals the main ground of attack on the Repealing Ordinance/Act was that it was inconsistent with Articles 9, 11 and 59 of the Constitution and hence void under Article 7(2). Article 9, a Fundamental Principle of State Policy, enjoins upon the State to encourage the local Government institutions, but, it was argued, the Ordinance abolished a local government, the Upazila Parishad. Article 11, also a Fundamental Principle of State Policy, provides that the Republic shall be a democracy in which, among other things, "effective participation by the people in administration" at all levels shall be ensured, but, it was argued, the Repealing Ordinance/Act has done away with such participation in the administration at the Upazila level. Article 7(2) of the Constitution says that any law inconsistent with the Constitution shall be void.

In the main judgment Shahabuddin Ahmed, C.J. held that Articles 9 and 11 of the Constitution are Fundamental Principles of State Policy. These are not judicially enforceable. That is to say, if the State does not or cannot implement these principles the Court cannot compel the State to do so. The other such Fundamental Principles also stand on the same footing. He says, "The reason for not making these principles judicially enforceable is obvious. They are in the nature of people's programme for socio-economic development of the country in peaceful manner, not overnight, but gradually. Implementation of these programmes

require resources, technical know-how and many other things including mass-education. Whether all these pre-requisites for a peaceful socio-economic revolution exist is for the State to decide" (para 22). He then proceeds to discuss some Indian decisions on the subject and holds, "In those cases no law was made in contravention of any directive principles and as such there was no occasion for the Court to declare any such law void"

Mustafa Kamal, J. deals with the voidability of legislation on the ground of inconsistency with the Fundamental Principles of State Policy in the following manner :

> "Article 7(2) provides that this Constitution is, as the solemn expression of the will of the people the supreme law of the Republic, and if any other law is inconsistent with this Constitution that other law shall, to the extent of the inconsistency, be void." (Underlines are mine). Therefore, this Constitution taken as a whole is a law, albeit the supreme law and by "any other law" and "that other law" the Constitution refers to the definition of "law" in Article 152(1), including a constitutional amendment. It is the Law of the Constitution itself that the fundamental principles of state policy are not "laws" themselves but "principles". To equate "principles" with "laws" is to go against the Law of the Constitution itself. These principles shall be applied by the State in the making of laws, i.e., principles of policy will serve as a beacon of light in the making of laws, shall be a guide to the interpretation of the Constitution and of the other laws of Bangladesh, and shall form the basis of the work of the State and of its citizens. Not being laws, these principles shall not be judicially enforceable."
>
> "There the Constitution rests. It does not say, as it says in Article 26 in respect of fundamental rights:
>
> > "26(1). All existing law inconsistent with the provisions of this Part shall, to the extent of such

inconsistency, become void on the commencement of this Constitution.

(2) The State shall not make any law inconsistent with any provisions of this Part, and any law so made shall, to the extent of such inconsistency, be void.

(3) ... ...".

"There being no specific provisions in the Constitution providing laws inconsistent with fundamental principles of state policy to be void, the learned Counsels for the appellants have fallen back upon Article 7(2) and have urged for acceptance of an interpretation which will bring Fundamental Principles of State Policy at par with Fundamental rights in so far as voidability is concerned. The submission is unacceptable, because, first, the makers of the Constitution did not lack in expression if they so meant it. Provisions analogous to Article 26 could have been inserted in Part II as well. The omission is deliberate and calculated. Secondly, Article 8(2) proclaims the fundamental principles of State policy as "principles", not "laws", and that is the mandate of this Constitution. Article 7(2) cannot be interpreted to mean that if any other law is inconsistent with the "principles" mentioned in Part II then that other law to the extent of the inconsistency, will be void. The Constitution is the supreme law and if the supreme law prescribes "principles" not "laws", and directs the use of these principles in certain specific manner, then the other law cannot be made void on the ground of inconsistency with these principles. It is argued that Articles 9 and 11 are provisions of the Constitution and if any other law is inconsistent with these provisions, then it will be void. Article 7(2) says "this Constitution", not "provisions of the Constitution", which expression the Constitution uses in some other places. The use of the words "this Constitution" and not "provisions of the Constitution" is also deliberate."

"A hypothetical question has been posed. Parliament passes a law which glaringly violates and flouts a fundamental principle of State policy, and if its vires is challenged solely on the ground of inconsistency with that principle and on no other ground whatsoever, will the High Court Division declare or not declare the law void? It is a madness scenario. The learned Counsels could not show any such legislation in this sub-continent, but suppose, Parliament is struck with such madness, is the High Court Division in its writ jurisdiction the only light at the end of the tunnel? What does public opinion, political party and election do if Parliament goes berserk?"

The second ground of attack on the Repealing Ordinance/Act was based on Article 59 of the Constitution. It provides that Local Government in every administrative unit shall be entrusted to bodies composed of elected representatives of the people and such bodies shall perform such functions as are prescribed by Act of Parliament. As a corollary Article 60 provides that Parliament shall by law confer necessary powers upon local bodies including power of imposing taxes to give effect to the provisions of Article 59. It was argued that the Repealing Ordinance/Act was void as a whole as in the garb of repeal, Upazila as a unit of local administration has been retained and replacing the elected representatives of the people, Government functionaries are now administering the functions of local Government in the Upazilas.

In so far as the power of Parliament to abolish a local government tier altogether Shahabuddin Ahmed, C.J. held as follows :

"1) On construction of Articles 59 and 60, read with Article 9 and 11 of the Constitution and considering the origin, growth and development of Local Government Institutions at different levels of the Administration over one and a half centuries, it is found that local Government is an integral part of the democratic polity

of the country. The system of Local Government Institutions may be altered, re-organised or re-structured, and their powers and functions may be enlarged or curtailed by Act of Parliament, but the system as a whole cannot be abolished."

A. T. M. Afzal, J. also holds the same :

"It has been rightly asserted by the respondents, and no learned Counsel has disputed it, that the constitution of Local Government Bodies and the tiers thereof have undergone changes from time to time since the Bengal Local Self Government Act, 1885 (Bengal Act III of 1885) was enacted, that such changes were made in exercise of Law-making power either by Act or by Ordinance or by President's Order and that thus the constitution and the tiers of local Government Bodies were always dependent on the policy of the respective Governments of the day."

Mustafa Kamal, J. also holds the same which is as follows :

"Lastly, the structure of local government was left fully and completely in the hands of Parliament. No one can claim a vested right in any particular form or in any particular number of tiers of local government. Within the framework of Articles 59 and 60 Parliament retains the power of continually re-organising, re-structuring and remodelling the local government institutions in the light of experiences gained to meet the changing needs of changing times. It is to be remembered however that local government is a part of the constitutional system and therefore Chapter III of Part IV of the Constitution containing Articles 59 and 60 cannot ever be kept as a dead letter. Local Government cannot be abolished altogether. It must exist in some form, in some tier or tiers at any given point of time to give a meaning to Chapter III of Part IV and to justify its rationale, validity and existence. It is not a mere adornment in the Constitution."

Article 152(1) of the Constitution provides that "administrative unit" means a district or other area designated by law for the purpose of article 59 and since Upazila was never designated as an "administrative unit" for the purposes of Article 59 the abolition of Upazila does not attract the mischief of Article 59 of the Constitution, the Appellate Division held. It has been further held that for the purposes of designating an area as an "administrative unit" the district need not be so designated as it stands already designated in the Constitution, but "other area" like unions, municipalities, corporations, etc., have to be designated by law before a Local Government can be established in those areas.

The Appellate Division has also unanimously held that with the re-appearance of Articles 59 and 60 in the Constitution on and from 18-9-91 all legislations on Local Government Institutions must be brought in conformity with Articles 59 and 60 of the Constitution, or else the existing legislatives provisions which are inconsistent with the provisions of Articles 59 and 60 stands the risk of being declared void. To bring the existing legislation of Local Government in conformity with Articles 59 and 60, the first requirement is that a Local Government will have to be constituted in "an administrative unit" by specifically designating a local government area as "an administrative unit" in the concerned law. The second requirement that the Local Government is to be entrusted to a body composed of elected persons.

It was contended on behalf of the State that without fulfilling the requirements of Articles 59 and 60 of the Constitution Parliament in exercise of its plenary power of law-making under Article 65 may establish Local Government. It was held that in that case there will be two classes of Local Governments in the country, one under the ordinary law and the other under the

Constitution. Such a situation is not contemplated by the Constitution. Shahabuddin Ahmed, C.J. held :

> "When the Constitution has made specific provisions as to Local Government, only those provisions shall have to be followed and complied with. Local Governments outside of the ambit of the Constitution will come within the mischief of Article 7(1) of the Constitution which says "all powers in the Republic belong to the people, and their exercise on behalf of the people shall be effected only under, and by the authority of, this Constitution."

A.T.M. Afzal, J. held as follows :

> "The contention of the learned Attorney-General that the Legislature may without designating an area as an administrative unit for the purpose of Article 59 in exercise of its plenary legislative power (Article 65) establish local Government is mischievous as it would amount to defying the mandate of Articles 59 and 60 which cannot be permitted. The argument, therefore, must be rejected."

Mustafa Kamal, J. held as follows :

> "Thirdly, to the extent that Articles 59 and 60 prescribed manner and method of establishing local government, its composition, powers and functions including power of local taxation, the plenary legislative power of Parliament to enact laws on local government is restricted *pro tanto*. The learned Attorney-General submits that the plenary power still remains unaffected. I cannot conceive of a local government existing in terms of Articles 59 and 60 and another outside of it. That will make a mockery Articles 59 and 60 and will be in direct conflict with Article 7(1) of the Constitution, namely, "All powers in the Republic belong to the people, and their exercise on behalf of the people shall be effected only under, and by the authority of this Constitution". If Parliament has to pass a local government

legislation, it has to conform to Articles 59 and 60, read with Article 152(1), with Articles 59 and 60 in the Constitution local government legislation became very much a subject matter of legislation within the terms of the Constitution. Parliament is not free to legislate on local government ignoring Articles 59 and 60."

The Appellate Division however held that section 2(2)(kha) of the Repealing Ordinance/Act providing that "the rights, powers, authorities, privileges of the abolished Parishads" will henceforth be vested in the Government, has apparently created an impression that those attributes of the Parishads have remained to be enjoyed by the Government : If these words are deleted then no confusion will be left. Upon consideration of the entire Repealing Ordinance/Act, the Appellate Division did not find any substance in the contention that it was a colourable legislation.

The repealing Ordinance/Act was also challenged on the ground that an organic law providing for a vital aspect of the structure Government has been sought to be promulgated by an Ordinance, circumventing Parliament and the law-making procedure of Parliament and no facts have been presented by the Government to show that circumstances existed which rendered immediate legislation necessary.

The Appellate Division held that the President's 'satisfaction' as to whether circumstances exist for taking immediate action under Article 93 is not totally excluded from judicial scrutiny but Parliament in its first meeting following the promulgation of the Repealing Ordinance approved of the Ordinance and made it an Act of Parliament within the prescribed time. In such circumstances the Appellate Division held that this ground for assailing the Repealing Ordinance is no longer available to the appellants.

The significance of this decision is that the implications of the unique constitutional provisions on local government have received the consideration that is their due. Mustafa Kamal, J. highlighted the special features of our Constitution in these words :

> "First, the constitutional provisions on local government namely, Articles 9, 11, 59 and 60 mark out the Constitution of Bangladesh as clearly distinctive from other Constitutions of the world. No Constitution contains any definitive provision on local government. In England the local government units, unlike the central government, are not products of constitutional design, but of historical development. Same is the case in the USA and India. In this sub-continent too local government developed alonged historical lines without following any constitutional pattern. It is the Constitution of Bangladesh which for the first time devised an integrated scheme of local government within a constitutional pattern. This is a most distinctive and unique feature of the Constitution of Bangladesh."
>
> "Secondly, the words "Local Government" have not been defined in the Constitution, nor does the Constitution require any organ of the State to create anew a local government, as it does in respect of a President – "There shall be a President of Bangladesh ...". (Article 48), or a Parliament. " There shall be a Parliament for Bangladesh ... ..." (Article 65) or a Supreme Court – "There shall be a Supreme Court of Bangladesh ... ..." (Article 94) etc. In the absence of any definition and in the absence of any directive to create a local government afresh, the Constitution will be presumed to have referred to the already-known concept and institution of and the existing legislations on local government. Local government, as a concept and as an institution, was already known to have possessed certain common characteristics, namely, local elections, procedure for

public accountability, independent and substantial sources of income, clear areas for independent action and certainty of powers and duties and the conditions under which they would be exercised."

.....

"Fifthly, from a combined reading of the Preamble, Articles 7, 9, 11, 59 and 60 of the Constitution it is clear that the makers of the Constitution devised a scheme of total democracy, both at the centre and at the level of local government. The Preamble declares democracy to be a fundamental principle of the Constitution. Article 7(1) says that all powers in the Republic belong to the people and Article 11 proclaims that "the Republic shall be a democracy". Various autocratic regimes at various times vigorously persisted with the idea of an unrepresentative national government at the Centre but waxed eloquent on grassroot-level democracy solely for the purpose of building up a power base. The makers of the Constitution wanted no such half-way house between autocracy and democracy. The choice was clearly for a fully democratic constitutional pattern, both at the national level and at the local level. And there lies the second step. Local Government "shall be entrusted to bodies, composed of persons elected in accordance with law". Special representation may be given to "peasants, workers and women", as enjoined by Article 9, but not at the cost of robbing the local government institutions, of their elected, hence representative character."

The role that the Appellate Division played is clear from two of the several penultimate orders passed by it which are as follows :

"v) But there are other local bodies constituted by, and functioning, under different statutes. With the re-appearance of Article 59 and 60 with effect from 18 September 1991, on which date the Twelfth Amendment of the Constitution was

made, these local bodies shall have to be updated in conformity with Articles 59 and 60, read with Article 152(1) for the lawful functioning of the said local bodies. The areas in which these bodies other than the Zilla Parishds have been constituted shall have to be designated as administrative units by amending these statutes. Designation afresh of the unions and municipalities is also necessary ... ... Required designations by amending the relevant statutes with effect from the date on which the Twelfth Amendment of the Constitution was made should be provided as soon as possible – in any case within a period not exceeding four months from date.

vi) The other constitutional requirement for these local bodies is that they shall be entrusted to bodies "composed of persons elected in accordance with law". The existing local bodies are, therefore, required to be brought in line with Article 59 by replacing the non-elected persons by election keeping in view the provision for special representation under Article 9. Necessary action in this respect should be taken as soon as possible – in any case within a period not exceeding six months from date. In the suggested amending statutes, all actions taken by the local bodies concerned since 18 September 1991 should be ratified."

Chapter 8

JUDICIAL REVIEW

1. Its place in the Constitution

In the sense in which judicial review is understood in England, it is the power of a Court to hold illegal and hence unenforceable any action by a public official or any judicial or quasi-judicial act or proceeding of Subordinate Courts and tribunals or other administrative bodies and to enforce their performance of statutory duty. The principle has been extended in written Constitutions to cover the power of a Court to declare a law and even a constitutional amendment unconstitutional on the ground of its inconsistency with or repugnance to the Constitution. In later years, judicial review has come to embrace the power of a Court to enforce the fundamental rights guaranteed by the Constitution and also to declare a law or an official action to be invalid if it contravenes a fundamental right.

In the case of Jamil Huq vs. Bangladesh, 34 DLR (AD) 125, K. Hossain, C.J. on reviewing the Preamble, Article 7, Article 26(1) and Article 108 of the Constitution says :

> "A combined reading of the provisions set out above indicates that full judicial power have been conferred by Bangladesh Constitution on the supreme judiciary as an independent organ of the State. It has power to declare a law passed by the legislature inconsistent with the Constitution or fundamental rights it *ultra vires*".

"The supreme judiciary has also been conferred with the power of judicial review of executive acts and other judicial acts and proceedings of subordinate courts or tribunals under Article 102."

The existence and assumption of these powers by the High Court Division in our country have come to be regarded as a natural gift of constitutional government, which it is not. in Britain, the theory of sovereignty of Parliament manifests itself in the power of the Courts, Any law enacted by Parliament and receiving the assent of the Crown becomes the law of the land and is *ipso facto* beyond overturning by the British Courts. In exercise of the ancient writs of *mandamus*, prohibition, *habeas corpus* and *quo warranto*, the Courts interpreat legislation and particularly administrative action based upon it, for all government officials are potentially accountable to the Courts for their actions, but the Courts may not strike down the law itself.

Until the adoption of the Constitution of the Fifth Republic in 1958, French Courts were not clothed with any authority to declare any law unconstitutional. De Gaulle Constitution of 1958 established a Constitutional Council, but it is not a court at all. It is outside the judicial system. It is composed of all ex-Presidents of France plus nine other distinguished persons.

Post-Second World War Basic Law (1949) of Germany rejected "judicial review" in the U.S. pattern because of what the framers regarded as the "stultifying actions" of the U.S. Supreme Court. On U.S. insistence, however, the framers of Basic Law formed the Federal Constitutional Court. This Court exercises jurisdiction over disputes *inter alia* between the Federal Republic and the Lander and exercises guardianship over the fundamental rights and privileges of citizens as determined by the Basic Law.

Italy too established a Constitutional Court under the Italian Constitution of 1948. It is the final interpreter of the Constitution. Before this Constitution, there was no judicial review.

The value of judicial review in our Constitution will be realised if some examples are given from our own experience in this sub-continent.

In the original Pakistan Constitution of 1962, there were no fundamental rights at all and consequently no power of any High Court to enforce fundamental rights. It was by an amendment of the Constitution. The Constitution (First Amendment) Act, 1963 (Act I of 1964) that fundamental rights were inserted and the High Courts were given the jurisdiction under an amended Article 98 of the Constitution to enforce fundamental rights.

In Bangladesh, our Constitution too suffered interference at the cost of judicial review. The Constitution (Fourth Amendment) Act, 1975 abolished the jurisdiction of the High Court Division to enforce fundamental rights and provided that Parliament may by law establish a constitutional court, tribunal or commission for their enforcement. This amendment did not survive eventually, but the actual exercise of judicial review was thwarted over and over again by either a Proclamation of Emergency or a Proclamation of Martial Law. The power of judicial review of the High Court Division has been interfered with at every break-point of constitutional continuity, because this power is commonly viewed with both reverence and suspicion.

2. An exercise in self-restraint

Yet, it is not commonly realised that the power of judicial review is in fact a perennial act in the exercise of self-restraint on the part of the judiciary. These continuous exercises have given birth to some maxims of judicial self-restraint which may properly be called imposed limitations on the exercise of judicial power. The

judiciary in its anxiety not to overstep the legitimate boundaries of judicial interference has formulated these precepts of its own for its own guidance and self-regulation. I will name a few.

(i) Cases or Controversies and Standing

The Court will refrain from pronouncing upon abstract, contingent or hypothetical issues. It will decide a case or controversy between *bona fide* adversaries. In 1911 the U.S. Supreme Court gave the leading decision on this maxim in the case of Muskrat vs. United States, 219 U.S. 346. An Act of Congress authorized Muskrat and others to bring suit in the U.S. Court of Claims, with an appeal to the Supreme Court to determine the validity of certain Acts of Congress which altered the terms of some prior allotments of Cherokee Indian lands. Justice Day, delivering the unanimous judgment, rejected the appeal for not meeting the case or controversy requirement. "If such actions as are here attempted, to determine the validity of legislation are sustained," he said, "the result will be that this court, instead of keeping within the limits of judicial power and deciding cases controversies arising between opposing parties, as the Constitution intended it should, will be required to give opinions in the nature advice concerning legislative action, a function never conferred upon it by the Constitution ...".

In M.G. Bhuiyan vs. Bangladesh, BCR 1981 (AD) 81, the appellant M.G. Bhuiyan, an Advocate of the Supreme Court, filed WP. No. 443 of 1979 seeking a declaration that Government Notification dated April 25, 1979 giving effect to the Law Reforms Ordinance, 1978 was without lawful authority on the ground that it was *ultra vires* the Constitution. It was argued in the High Court Division on his behalf that "every citizen of the country has a right to file an application under Article 102 of the Constitution seeking declaration of nullity of any law or a mandatory order for compelling the performance of a legal duty

by a public officer". The High Court Division, and on appeal, the Appellate Division, held that a citizen may prefer a writ petition only when his right has been affected by any law or by an act of a person performing functions in connection with the affairs of the Republic or any local authority, except in *habeas corpus* and *quo warranto* matters. He is, therefore, not an "aggrieved person".

Although this case was decided on the question of *locus Standi* it could as well be decided on the "case" or "controversy" yardstick. The Court is not, to be converted into a forum for expression of legal opinion without there being a concrete dispute between *bona fide* opposing contenders. The Court considered the question of standing in this case, because, it had, after all, given a decision on the merit the case.

Closely allied to the "case" or 'controversy" maxim is the maxim of "standing". The party or parties to a dispute must have "standing". In our Constitution, the question of "standing" is no longer a subjectmatter of judicial maxim. Judicial review is available to "any person aggrieved" under Article 102 and it is a matter of judicial interpretation of a constitutional provision, rather than application of a judicial maxim. The question of "standing" has assumed considerable importance in modern-day constitutional jurisprudence and this question will be dealt with separately later.

(ii) No Challenge on Legality after Reaping Benefits

The Court will not pronounce upon the constitutionality of a statute or of an official action at the instance of one who has availed himself of the benefits and then turns back to challenge its legality. In St. Louis vs. Prendergast Co., 260 U.S. 459, a company connected its premises with a new sewer and availed itself of its benefits. It then challenged the validity of the statute which provided for a tax levy against recipient of the services.

The U.S. Supreme Court unanimously held that by accepting and availing himself of the benefits of the construction and zoning involved the company was "stopped from maintaining a suit" on the grounds and under the circumstances. This is in effect an extension of the principle of not allowing anyone to blow hot and cold at the same time and to disallow approbation and reprobation. The Court looks askance at any attempt to have the judicial decision-cake and eat it too.

(iii) Rule of Exhaustion

The applicant must exhaust all statutory remedies available to him before he can maintain a writ petition. The rule of exhaustion was devised as a means for achieving orderly procedure which is the very essence of judicial process. In our Constitution, it is for the High Court Division to be satisfied, under Article 102(1), "that no other equally efficacious remedy is provided by law" before a writ is issued, and the meaning and content of these words have been the subjectmatter of a number of decisions which for reasons of their common knowledge will be kept out of purview of further discussion.

(iv) Unreasonable Delay

Also well-known and as such not worthy of a detailed consideration is the maxim that as an impugned law or action if left unchallenged without reasonable delay may alter the situation of others not involved in the dispute, the Courts insist that an applicant in a writ petition must come expeditiously after suffering a wrong and not make unreasonable delay. This is an extension of the equitable principle of "delay defeats equity".

(v) *No Determination of Disputed Qquestions of Fact*

Writ petitions are generally disposed of on affidavits and on facts admitted or accepted by opposing contenders. Hence if there

are disputed questions of fact which need determination by evidence, oral and documentary, the Court will not embark upon an investigation of the same in the writ jurisdiction. This is also well-known. Allied to this maxim is the maxim that judicial review is generally not available for a review of facts, but for a review of law emanating from accepted facts. But when *mala fide* is alleged on facts the Court has *per forece* to decide, if it is possible to decide without taking evidence, whether *mala fide* has been established on facts.

(vi) Not Mere Technicalities

Writ will not issue on mere technicalities. Issues raised must be substantial, not trivial – a known maxim.

(vii) Presumption of Validity of Statutes

The maxim *"utres magis valeat quam pareat"* (it is better for a thing to have effect than to be made void) applies both to statutes and to the Constitution. There is thus a presumption of validity of statutes (applied more recently in the case of Mujibur Rahman vs. Bangladesh, 44 DLR (AD) 111 (para 66)). The maxim applies even more strongly to a Constitution. Gwyer, C.J. said in Re CP Motor Spirit Taxation Act, AIR 1939 (FC), 1, "A Constitution of Government is a living and organic thing, which of all instruments has the greatest claim to be construed *utres magis valeat quam pareat*". "One of the cardinal principles of interpretation is that ... the Court will lean in favour of upholding the constitutionality of a law" (per Shahabuddin Ahmed, J. in Dr. Nurul Islam vs. Bangladesh, 1981 BLD (AD) 140, (para 129).

The onus to prove illegality or unconstitutionality is on the party who claims it.

(viii) Between two Interpretations, save the Act

"The cardinal principle of statutory construction", wrote Chief justice Hughes in United States vs. Carolene Products Co.,

304 U.S. 144 (1938), at pp. 152-53, ..." is to save and not to destroy. We have repeatedly held that as between two possible interpretations of a statute, by one of which it would be unconstitutional and the other valid, our plain duty is to adopt that which will save the act. Even to avoid a serious doubt the rule is the same." "One of the cardinal principles of interpretation is that a law should be interpreted in such a way that it should be rather saved than destroyed", (per Shahabuddin Ahmed, J. Dr. Nurul Islam vs. Bangladesh, 1981 DLR (AD) 140, para 129).

As a corollary, the Court will not normally formulate a rule of constitutional law broader than what is required by the facts of the case to which it is to be applied.

(ix) No Decision of a Constitutional Nature if the Issue can be Decided otherwise

If the decision of a case can rest on an independent and separate ground, the Court will not decide questions of a constitutional nature. As Justice Frankfurter said, "This Court (U.S. Supreme Court) reaches constitutional issues last, not first". Justice Brandeis succinctly put it, "(the) ... most important thing we do is not doing".

Thus K. Hossain, C.J. in the case of Dr. Nurul Islam vs. Bangladesh, 1981 BLD (AD) 140 said, "I do not propose to declare section 9(2) of Public Servants Retirement Act (Act XII of 1974) *ultra vires* the Constitution as the finding that the order under challenge is vitiated by malice in law is sufficient to dispose of the appeal. As regards the constitutionality of the section aforesaid, I like to adhere to the well-established self-set rule which says, the Court will not declare a law unconstitutional, if the case in which the question is raised can be properly disposed of in some other way", (Page 146). Shahabuddin Ahmed, J. concurred with this view, but the majority struck down

the impugned order as vitiated by malice in law and also declared the impugned section of the Act as *ultra vires* in the facts and circumstances of the case.

As a corollary it follows that the Court should refrain from answering "political questions", "if the validity or legality of the law could otherwise be decided". (per K. Hossain, C.J. in Dulichand Omraolal vs. Bangladesh, 33 DLR (AD) 30).

(x) No Imputation of Improper Motive to Legislature

The Court will not ordinarily impute illegal motives to the lawmakers. In Barenblatt vs. United States, 360 U.S. 109 (1959) Justice Harlan observed, "the judiciary lacks authority to intervene on the basis of the motives which spurred the exercise of that power". In the case of Khandakar Moshtaque Ahmed vs. Bangladesh, 34 DLR (AD) 222, the Appellate Division did not strike down a Martial Law legislation as *mala fide,* but tracing the history of change in the legislation held that the proceedings were taken *mala fide* and set aside the order of conviction and the order on review as vitiated by *mala fide.*

It is quite permissible for the Court to trace legislative history ("... a page of history is worth a volume of logic", said Justice Frankfurter) to find out its intent or purpose behind a legislation.

3. Exceptions to Judicial Review

(i) Constitutional Limitations

To the extent that (1) Fundamental Rights are not available to any provision of a disciplinary law (Article 45), (2) certain laws are specifically excluded from the purview of judicial review (Article 47 and 47A), and (3) certain authorities are not amenable to judicial review (Article 102(5)), the power of judicial review is constitutionally restricted. These are examples of how an organ of the State – The Supreme Court – functions in terms of the

Constitution and not beyond it and how a Constitution delimits and circumscribes the powers of the organs of the State.

A. Article 45

Part III of the Constitution contains Fundamental Rights and "Article 102 provides a guaranteed remedy for the enforcement of the fundamental rights and this remedial right is itself made a fundamental right by being included in Part III of the Constitution. The Supreme Court is thus constituted, by the Constitution, the protector and guarantor of fundamental rights and so long as the fundamental rights specified under Part III remain in force, it is the constitutional responsibility of the Supreme Court to protect them when the right conferred under clause (1) of Article 44 of the Constitution, is invoked". (Per Muhammad. Abdullah Jabir. J. in Government of Bangladesh vs. Ahmed Nazir, 27 DLR (AD) 41 at para 38).

Article 45, however, modifies fundamental rights in respect of disciplinary law in the following terms :

> "45. Nothing in this Part shall apply to any provision of a disciplinary law relating to members of a disciplined force, being a provision limited to the purpose of ensuring the proper discharge of their duties or the maintenance of discipline in that force."

"Disciplinary law" is defined in Article 150 thus:

> " "disciplinary law" means a law regulating the discipline of any disciplined force;"

"Disciplined force" is defined in Article 150 thus :

> " "disciplined force" means
>
> (a) the army, navy or air force;

(b) the police force;

(c) any other force declared by law to be a disciplined force within the meaning of this definition;"

Article 45 is attracted only when fundamental right is invoked by a member of a disciplined force in an application under Article 102(1) of the Constitution for the enforcement of his fundamental rights. The bar in Article 45, it appears, is not in absolute terms. A member of a disciplined force has no fundamental rights when he is being dealt with by "any provision of a disciplinary law", meaning a "law regulating the discipline of any disciplined force". What provision of a disciplinary law regulate the discipline and what do not, remains a matter of construction of each disciplinary law. Article 45 restricts the bar further. The "provision" must be "limited to the purpose of ensuring the proper discharge of their duties or the maintenance of discipline in that force." It remains therefore a matter of construction of the provisions of a disciplinary law in each case. Whether the applicant invoking fundamental rights falls under the excepted "provisions" or not will be the key issue in each case. As it stands Article 45 has not been noticed in any intricate details so far.

B. Articles 47 and 47A

New laws or amendment of existing laws dealing with clauses (a) to (f) of Article 47(1), enacted by Parliament to give effect to any of the fundamental principles of state policy and expressly so declared in the statute, cannot be declared void on the ground of inconsistency with fundamental rights. No provision of any such law has yet been tested in the Supreme Court. No provision of any laws and their amendments specified in the First Schedule, nor anything done or omitted to be done under the authority of such law, shall be deemed void or unlawful on the ground of inconsistency with or repugnance to, any provision of this

Constitution (Article 47(2)). These laws, excepting one, are the laws promulgated by the Acting President and President before the Constitution came into force on 16-12-72, when legislation was made by Presidential decrees, without any reference to any Parliament. The rationale of Article 47(2) is discussed in A. T. Mridha vs. State, 25 DLR 335 (Judgment by Badrul Haider Chowdhury, J.) in the following terms :

> "Now in the First Schedule as many as 27 laws are included. A cursory glance of the Schedule will show that most of these laws by Presidential Orders were promulgated prior to the promulgation of the Constitution for the purpose of bringing social reform. The laws are on the subject of the Estate Acquisition, taking over of Control and Management of Industrial and Commercial concerns, laws on subject of restoration of Enemy Property, Abandoned Property, Restoration of Bank and Industrial Enterprises, on Insurance, on Jute Export, on regulating of Jute Export, on Hat and Bazars, on the Land Holding Limitations, on Bangladesh Biman, etc. All these laws were passed for establishing the society which had through an armed struggle established the new State. In order to achieve the social reform such laws were promulgated. The framers of the Constitution in their wisdom thought that some of the laws might be challenged on the ground of vires after the promulgation of the Constitution. Therefore the legislature in their wisdom gave a protective umbrella to these laws by placing them under the Schedule and protected by article 47. This was a constitutional device to save those laws from possible challenge ... ... Articles 31-A and 31-B of the Indian Constitution are similar in line with our article 47 with the difference that in the Indian Constitution Article 31-B has been inserted by way of abundant caution to save the particular acts included in the 9th Schedule of the Constitution on the ground that any of the acts is not void for contravention of any fundamental rights, notwithstanding any

decision of a Court, whereas, in our Constitution article 47(2) apparently is not confined only to contravention of fundamental rights."

"The whole object of article 47 is to achieve amongst other socio-economic reforms and President's Order No.50 of 1972 is included in the first Schedule thereby saving it from any challenge in a Court of law on the ground of inconsistency with the Constitution." (para 54)

Article 47(2) gives two kinds of protections to the protected laws : First, the legislative protection to the laws specified in the First Schedule, and the second, to the action taken under those protected laws (Kazi Mokarram Hossain vs. Secretary, Ministry of Cabinet Affairs, 31 DLR (AD) 64). The protection does not relate only to fundamental rights. It provides a protective shield over all the statutes specified in the First Schedule against anything contained otherwise anywhere in the Constitution (Md. Rezaul Haque vs. Bangladesh, 28 DLR 39).

It has not yet been decided, with specific reference to Article 47, whether the protection is available if the action complained of is without jurisdiction, *mala fide* or *coram non judice*.

Articles 47(3) and 47A protect legislation providing for detention, prosecution or punishment of persons accused of genocide, crimes against humanity or war crimes and denies them certain fundamental rights and bars "any of the remedies under this Constitution" to them.

C. Article 102(5)

The scope of operation of fundamental rights is wider in our Constitution than that of judicial review of administrative action and of acts and proceedings of subordinate Courts and tribunals. Article 102(1) empowers the High Court Division to enforce fundamental rights against "any person or authority, including

any person performing any function with the affairs of the Republic", but the judicial review under Article 102(2) applies to "a person performing any function with the affairs of the Republic or of a local authority", not to "any person or authority".

Article 102(5), includes and excludes from the operations of Article 102(1) and 102(2), certain kinds of authorities in the following words :

> "(5). In this article, unless the context otherwise requires, "person" includes a Statutory public authority and any court or tribunal, other than a court or tribunal established under a law relating to the defence services of Bangladesh or any disciplined force or a tribunal to which article 117 applies."

The inclusionary provision brings within the ambit of Article 102(1) and (2) both "a statutory public authority" and "any court or tribunal", not just a court or tribunal subordinate to the High Court Division under Article 109. It enlarges the area of judicial review.

But the exclusionary provision qualifies the words "any court or tribunal". A court or tribunal established under a law relating to the defence services of Bangladesh or any disciplined force or a tribunal to which Article 117 applies will not be amenable to the jurisdiction of the High Court Division under Article 102(1) and (2). This exclusionary provision in Article 102(5) has been noticed in a number of decisions of the High Court Division and Appellate Division.

Thus, Bangladesh Rifles is a disciplined force within the meaning of Article 152 of the Constitution and the Riflemen are governed by the Bangladesh Rifles Order 1972, P.O. No.148 of 1972 and Bangladesh Rifles (Special Provisions) Ordinance, Ordinance No. LXXXV of 1976. If the Riflemen are discharged

from service by an order of an individual officer and not by a court or tribunal constituted by P.O. No.148 of 1972, they can maintain a writ petition and the embargo of Article 102(5) does not apply in their case. (Fazlur Rahman vs. Secretary of Home Affairs, 41 DLR (HCD) 459) (judgment by Mustafa Kamal, J.)

In Bangladesh vs. Md. Abdur Rab (33 DLR (AD) 143, decided on January 31, 1979) an Inspector of Police was dismissed from service on the recommendation of the Second Screening Board, Dhaka, constituted under the Government of Bangladesh (Services Screening) Ordinance, 1972, P.O. No.67 of 1972. The High Court Division declared the order of dismissal to have been passed without lawful authority in a writ petition. On appeal by the Government, the Appellate Division (majority judgment by Fazle Munim, J.) by a majority rejected the respondent officer's contention that as the Screening Board cannot be termed a Court or a tribunal set up under a law relating to any disciplined force, it does not come under the expression 'person' used in Article 102(5). It held, "As the law which has set up the Screening Board permits it to exercise jurisdiction in relation to a member of any disciplined force, it must be considered a court or tribunal under a law in relation to a disciplined force, though such law is not meant exclusively for it."

The majority decision does not rest here. It seems to deny the member of a disciplined force the right to invoke the writ jurisdiction "for the redress of any grievance against the administration." It says :

> "Quite understandably, a member of the disciplined force cannot, for the very reason that he has assumed a kind of responsibility which is not expected of any other person in the service of Bangladesh, hope to have all the rights which the Constitution have conferred on the latter. One of such rights being the power to invoke the special jurisdiction of the High Court Division

under Article 102 for the redress of any grievance against the administration. Needless to say, extension of such right to a member of the defence services of Bangladesh or to a member of any disciplined force would militate against the very essence and reality of the special role which he is called upon to discharge. One of the most elementary assumptions upon which a person proceeded to join the armed or police force is that if he is punished by the authority under whose command he has been placed for any infraction of duty or responsibility, he cannot seek remedy from any ordinary civil authority. Any interference by such authority other than in a case where lack of jurisdiction of the military or police authority is challenged, would undermine its discipline and efficiency. No ordinary court can give protection to a member of the defence services or of any disciplined force in case he challenges the decision of the authority under which he serves." (Para 13)

In Bangladesh vs. Zahangir Hossain, 34 DLR (AD) 173, decided on October 31, 1981, the Appellate Division in the majority appears to have moved away from this somewhat wide formulation. The Full Court held that a member of a disciplined force is debarred invoking the writ jurisdiction if aggrieved by an order of a court or tribunal established under a law relating to the disciplined force, subject to the rule laid down by the Court in the case of Khandker Ehteshamuddin Ahmed @ Iqbal vs. State, 33 DLR (AD) 154, in that the order is *coram non judice* or *mala fide*. But the Court split on the question as to whether the 'authorities' mentioned in the Schedule to the Police Officers (Special Provision) Ordinance, 1976, Ordinance No. LXXXIV of 1976, competent to dismiss, remove, discharge, compulsorily retire or reduce in rank a police officer of the rank of Inspector and below and competent to dispose of appeals thereform, are 'tribunals' as contemplated in Article 102(5). The minority (judgment by K. Hossain, C. J. with whom Fazle Munim, J.

concurred) held that the 'authority' mentioned in the said Ordinance is a tribunal. The reasoning is as follows :

> "A reference to the language of Article 102(5) of our Constitution, will reveal that 'tribunal' has been used first ony with Court, then as Court or tribunal established under a law relating to Defence Services of Bangladesh or any disciplined force and then again as a tribunal under Article 117. The context in which tribunal has been used so far as disciplined force is concerned, has been used in juxtaposition with that of Court or tribunal relating to Defence Services or disciplined force. The word tribunal has been used more in the nature of an administrative tribunal than in the nature of a Court. Looked at from any standpoint, mere absence of the word 'tribunal' in the Police Officers Ordinance, 1976, when basic conditions have been satisfied, namely, it is an authority established by a law to deal with certain officers of police force, the component of disciplined force to punish them for offences after following a procedure prescribed by the Ordinance, and the Ordinance confers no other function on the prescribed authority. It is an Ordinance which is protected under Article 45 of the Constitution." (Para 31)

The majority (judgment by Ruhul Islam, J.) held otherwise. The reasonings are, first, that the said Ordinance was not consciously promulgated with the object of applying the bar against invoking the writ jurisdiction by some categories of the police force, implying thereby that a statute purporting to attract the constitutional bar under Article 102(5) against a persons remedy under the Constitution must be consciously promulgated. Secondly, a member of a police force holds a civil post in the service of the Republic and, if aggrieved by an illegal order of dismissal. discharge etc., has the constitutional right to invoke the writ jurisdiction, clothed as he is with certain constitutional

guarantees under Article 135 of the Constitution. Thirdly. When an administrative tribunal is required to decide a matter in issue after hearing the parties objectively and according to the evidence led by the parties, then it may be said to have exercised the power quasi-judicially. But when an administrative tribunal is not required to hear the parties and decide the case on evidence or objectively on evidence, it cannot be said to decide the matter quasi-judicially. The 'authority' specified in the Schedule practically play the role of prosecutor and merely on consideration of the charge framed and the cause shown by the delinquent police officer imposes penalty. They do not decide the cases objectively, but act in conformity with some administrative policy. The authority exercising the power is very much a party to the proceeding itself. It has not been conferred with the judicial power of the State.

The Appellate Division decided by a majority that the authorities mentioned in the Schedule to the said Ordinance are not 'tribunals' as contemplated in Article 102(5), so as to deny the remedy of writ, to an aggrieved member of the police force. The remedy of a writ in an appropriate case, may be invoked by a member of the said 'disciplined force', if he has been illegally dismissed, removed, discharged, reduced in rank or compulsorily retired.

In Jamil Huq vs. Bangladesh, 34 DLR (AD) 125, the Appellate Division clarified the "true construction of the *ratio decidendi* of the cases of Abdur Rab and Zahangir Hossain (supra)" observing that "the order or action of the excepted authority mentioned in sub-article (5) of Article 102, is immune from challenge in writ jurisdiction, subject to the rule laid down in Khandaker Ehteshamuddin @ Iqbal (supra), in that the order is *coram non judice* or *mala fide*.

As to the function of the Court while exercising jurisdiction with regard to the excepted authorities under Article 102(5), the Appeellate Division says :

> " ... it is for the court to see the character of the authority which is exercising the power, the purpose for which the power is exercised, and also the intention of the legislative authority to grant immunity from judicial review of the action of such authority. Some reasons have been given in the aforesaid two cases, we can gather other reasons from the Constitution." (*Ibid.* para 12)

In Jamil Huq's case (supra), the conviction and sentence of death passed by a court Martial on a charge of mutiny under the Army Act, 1952 was challenged. The Appellate Division observed :

> "When such a question is agitated before the Court, the Court is first to see the provisions of the law as well as the provisions of the Constitution. The nature of the proceeding and the purpose of the Act are to be considered to see the jurisdictional infirmity of the order complained of. When the challenge is from an order of a Court Martial set up under the Army Act to enforce the Military law, the jurisdiction to interfere is more narrow than in the case of other Court or Tribunal. It is consistent not only maintenance of strict discipline demanded from the Defence Force, but also to the Constitutional protection given to the laws relating to the disciplined force, and also their action from any challenge in the Court. The first protection is given under Article 45, and the second in Article 102(5). Under the former, the law is protected, and under the latter the action under the law is protected. Keeping all these factors in view, all that can be said is, the ground on which a decision of a Court Martial set up on the Army Act can be challenged by *habeas corpus* petition will be analogous to one we have already conceded to be available under sub-article (5) of Article 102 of the Constitution and so this point need not be dwelt on any further." (Para 25)

The bar of judicial review is also applicable to "a tribunal to which Article 117 applies". In the case of Mujibur Rahman vs.

Bangladesh, 44 DLR (AD) 111, it has been held that an Administrative Appellate Tribunal is also a tribunal to which Article 117 applies and so no writ petition lies against a judgment of the Administrative Appellate Tribunal. On 22-7-91 the Administrative Tribunals (Amenment) Act, 1991, Act No. XXIII of 1991, introduced section 6A to the Act, providing in effect that a person aggrieved by a decision of the Administrative Appellate Tribunal can prefer a petition for leave to appeal before the Appellate Division.

(ii) Interpretative Limitation

Sometimes, even having jurisdiction, the High Court Division may decline any relief to the aggrieved person in view of the nature of the statute under which he is governed and under which he seeks remedy.

This is exemplified by the case of Major Hafizur Rahman vs. Government of Bangladesh, 29 DLR (HCD) 34, decided on January 21, 1977, in which a Major in the Army officiated as a Judge Advocate General in which capacity he served till his retirement. But after his retirement the order of officiating appointment was cancelled altogether. His vested right to the status and financial benefits of an officiating Judge Advocate General was affected thereby and his representation against the order having borne no fruit he challenged the said order in a writ petition. The High Court Division (judgement by Shahabuddin Ahmed, J.) held that his writ petition was maintainable. The learned Judge says :

> "Under Article 102 of the Constitution this Court got jurisdiction to entertain an application questioning the legality of any orders of Military Authorities other than a Court Martial, provided the orders are not in respect of conditions of service of military personnels. For example, illegal orders of military authorities seizing properties of citizens or arresting or detaining them are

amenable to court's jurisdiction and that is why the absolute bar to the court's jurisdiction under Article 98(3) of the late Constitution has been done away with in the present Constitution." (Para 21)

But, having conceded that the writ petition is maintainable, it was held that "the petitioner got no legal right to be enforced by this Court. In other words, the petitioner got no cause of action. Absence of cause of action in a particular case should not be confused with the absence of the Court's jurisdiction."

The absence of cause of action was attributed to the nature of service of the petitioner in which he was in. Under Article 134 of the Constitution every person in the service of the Republic, whether in a civil or military capacity, holds office "during the pleasure of the President". Whereas a person who holds a civil post in the service of the Republic enjoys certain constitutional protection under Article 135, a person holding a military post shall hold office during the pleasure of the President, not subject to or controlled by any rules or regulations. "They therefore got no right to be enforced by a court in respect of their service". It is public policy that creates a distinction between military service and civil service, maintained also by clause (J) of sub-section (1) of section 60 of the Civil Procedure Code, 1908.

As K. Hossain, C.J. said in the case of Jamil Huq (supra), "... ... our military law is a system of law or jurisprudence which exists separate and apart from the law which governs our Judiciary in its ordinary and general jurisdiction".

Chapter 9

ISSUES KNOCKING AT THE DOOR

1. An overview

Each generation of lawyers and Judges grapple with specific issues confronting them. The entire Constitution is not thrown up for legal dissection all at a time. A Constitution unfolds itself in its beauties and deficiencies as time unfolds. The last twenty-one years (1972-93) have not afforded the Supreme Court an uninterrupted opportunity to examine the Constitution. It was an on again, off again halting inquisition. Within the vagaries of its own existence the range of work done in interpreting the Constitution has not been negligible.

But certain issues are looming large in the legal horizon and one expects that the next generation of lawyers and Judges will probe deep into these issues and leave their contributions towards settling them. The impending issues, as I see them, are the following.

(i) The issue of "standing"

Whenever someone complains of another's action, the first question asked is "what's it to you?" In a pedestrian sense, that is the issue of standing.

Article 102 of the Constitution gives the right to "any person aggrieved" to enforce his fundamental rights or to seek judicial review in the High Court Division. But what is "any person aggrieved ?"

In Bangladesh Sangbadpatra Parisad vs. Bangladesh, 43 DLR (AD) 126, it has been observed (judgment by Mustafa Kamal, J.):

"In England, various tests were applied. Sometimes it was said that a person must be "aggrieved" or he must have "a specific legal right" or he must have a "sufficient interest". Now, after the introduction of the new Rules of the Supreme Court, Order 53, Rule 3, any person can apply for "judicial review" in England under the Supreme Court Act, 1981, if he has a "sufficient interest". (Para 9)

It is further observed,

"In our Constitution the petitioner seeking enforcement of a fundamental right or constitutional remedies must be a "person aggrieved". Our Constitution is not at *pari materia* with the Indian Constitution on this point. The Indian constitution, either in Article 32 or in Article 226, has not mentioned who can apply for enforcement of fundamental rights and constitutional remedies. The Indian Courts only honoured a tradition in requiring that the petitioner must be an "aggrieved person". The emergence in India of *pro bono publico* litigation, that is litigation at the instance of a public-spirited citizen espousing causes of others, has been facilitated by the absence of any constitutional provision as to who can apply for a writ." (Para 9)

... ... "Therefore the decisions of the Indian jurisdiction on public interest litigation are hardly apt in our situation. We must confine ourselves to asking whether the petitioner is an "aggrieved person", a phrase which has received a meaning and a dimension over the years." (Para 10)

Over the years, the Supreme Court of Bangladesh has maintained that the petitioner must have some right in the subjectmatter of the dispute so that he can possibly claim that such right must be determined in accordance with law. There are far too many decisions on this well-known position of the Supreme Court to merit any mention.

But the emerging trend of constitutional litigation is that it is not only the person whose interest is adversely affected by an order of a public official who is coming to the Court to seek a redress, but also other persons, voluntary societies, representative organisations, trade unions etc., which are coming in increasing numbers to test the validity of a law or an action of a public official in which their own direct personal interests are not involved, but in which they have a sufficient interest. It is these groups of new generation of constitutional litigants who are knocking at the door of the Supreme Court to gain entry into the threshold point. Constitutional lawyers, Judges and Courts all over the world are now facing them and providing adequate response to their loudly raised voice for access to justice. It will be interesting to see how the Supreme Court of Bangladesh finds its own answer to this issue.

How the new pressure has been met by the Courts in U.K. dealing with prerogative writs has been graphically presented by Lord Denning in his book "The Discipline of Law", (Butterworths, 1979). He observes :

> "Now I come to a matter of moment. When there is an abuse or misuse of power, who can bring a case before the Court ? Can any member of the public come ? Or must he have some private right of his own ?"
>
> "During the 19th century the Courts were reluctant to let anyone come unless he had a particular grievance of his own. He had usually to show that he had some legal right of his own that had been infringed or some property of his own that had been injuriously affected. It was not enough that he was one of the public who was complaining in company with hundreds or thousands of others. But during the 20th century the position has been much altered. In most cases now the ordinary individual can come to the Courts. He will be heard if he has a "sufficient interest" in the matter in hand." (P. 113)

Lord Denning then describes what is known as The Blackburn cases. He says that Mr. Raymond Blackburn, once a Member of Parliament and a fluent speaker, came to the Court with as many as four cases with issues not of his own but involving the general public. In each of these cases invariably his *locus standi* was challenged and in each of these cases his *locus standi* was upheld. In Blackburn vs. Attorney-General, [1972] 1 WLR 1037, Mr. Blackburn challenged the Government's right to join the Common Market contending that by signing the Treaty of Rome, Her Majesty's Government would be surrendering in part the sovereignty of the Crown in Parliament and that it had no right to do so. The Court of Appeal hearing him in person, rejected the argument but on the question of *locus standi* to claim a declaration the Court did not rule him out on the ground of standing because he said that he felt strongly and that it was a matter in which many people in England are concerned. (*Ibid.* p. 118)

In another case, R vs. Commissioner of Police of the Metropolis, *ex parte* Blackburn, [1968] 2 QB 118, Mr. Blackburn complained that big gambling clubs of London were openly breaking the law and the police were failing to prosecute because of a policy decision issued to them. He applied to the Court as a private citizen for a *mandamus* to compel the Commissioner of Police to do his duty. The Queen's Bench heard him, the policy decision was revoked and the law was enforced. It was held that every responsible citizen has an interest in seeing that the law is enforced and that is sufficient interest in itself to apply for *certiorari* or *mandamus*. (*Ibid.* pp. 119-122).

Mr. Blackburn again came to the Court in person and complained that laws against pornography were not being enforced. He had no interest except that his children might see the publications – just as anyone else's children. In that case, R vs. Police Commissioner, *ex parte* Blackburn [1973] QB 241 it was

held that Mr. Blackburn has served a useful purpose in drawing the matter to the Court's attention but the Court did not think it was a case for *mandamus*. (*Ibid*. pp. 122-125)

Mr. Blackburn complained again in person that pornographic films were being exhibited in London and that the Greater London Council were doing nothing to stop them. He applied for a writ of prohibition and he succeeded. In that case R vs. GLC *ex parte* Blackburn [1976] 1 WLR 550, Lord Denning held that Mr. Blackburn had sufficient interest to bring this proceeding against GLC. He held, "On this point, I would ask: Who then can bring proceedings when a public authority is guilty of misuse of power? Mr. Blackburn is a citizen of London. His wife is a ratepayer. He has children who may be harmed by the exhibition of pornographic film. If he has no sufficient interest no other citizen has'. (*Ibid*. pp. 125-126)

These Blackburn cases extended the scope of *locus standi* in prerogative writs. Finally, Lord Denning says about *locus standi* :

> "The Court will not listen to a busybody who is interfering in things which do not concern him, but it will listen to an ordinary citizen who comes asking that the law should he declared and enforced, even though he is only one of a hundred, or one of a thousand or one of a million who are affected by it." (Ibid. p. 133)

In England new Rules of Court were brought into force in January, 1978. Order 53 introduced a comprehensive system of judicial review. By Rules 1(1) and 1(2) it enables an application to cover, under one umbrella, all the remedies of *certiorari*, *mandamus* and prohibition and also a declaration and injunction. In Order 53, Rule 3(5) it was laid down that the applicant must have "a sufficient interest" in the matter to which the application relates. Section 31 of the Supreme Court Act, 1981 reproduced in statutory form the provisions of Order 53 of the Rules of the Supreme Court which were introduced pursuant to the Law

Commission's Report on Remedies in Administrative Law pubished in 1976.

In India "standing" has been liberalised to a great extent. The jurisprudential mould of this expansion is highlighted by Krishna Ayer, J. in A.B.S.K. Sangh (Rly) vs. Union of India, AIR 1981 (SC) 298, as follows :

> "Our current processual jurisprudence is not of individualistic Anglo-Indian mould. It is broad-based and people-oriented, and envisions access to justice through 'class actions', 'public interest litigation', and 'representative proceedings'. Indeed, little Indians in large numbers seeking remedies in Courts through collective proceedings, instead of being driven to an expensive plurality of litigations, is an affirmation of participative justice in our democracy. We have no hesitation in holding that the narrow concept of 'cause of action' and 'person aggrieved' and individual litigation is becoming obsolescent in some jurisdictions."

A. *The implication of the case of Kazi Mukhlesur Rahman* vs. *Bangladesh, 26 DLR (AD) 44, decided on September 3, 1974*

In Bangladesh, the first such challenge to the old concept of *locus stand,* was thrown in the case of Kazi Mukhlesur Rahman vs. Bangladesh, 26 DLR (AD) 44 in 1974, before public interest litigation gained a foothold in India. The implications of this decision, I am afraid, have not yet been fully grasped, for there has been no follow-up of the decision, either from the Bar or from the Bench, blossoming the decision in varied directions.

The petitioner challenged the Delhi Treaty between the Governments of the People's Republic of Bangladesh and the Republic of India signed on the 16th May, 1974 by the Prime Ministers of the two countries providing in Article I clause 14 thereof that India will retain the southern half of south Berubari

Union No. 12 and the adjacent enclaves and in exchange Bangladesh will retain the Dahagram and Angarpota enclaves. The ground of challenge was that the agreement involved cession of Bangladesh territory and therefore it was entered into without lawful authority and of no legal effect. The High Court Division summarily dismissed the writ petition holding that the petitioner had no *locus standi*.

At the hearing of the certificated appeal before the Appellate Division the question of *locus standi* of the appellant came up for consideration. It is surprising that even though by that time (September 1974) three Blackburn cases had already been decided and reported, only one of them namely, that of Blackburn vs. Attorney-General [1971] 1 W.L.R. 1037 was brought to the notice of the Court. The Appellate Division however (judgment by A.M. Sayem, C.J.) took into consideration a number of American and Indian decisions of the time and a lone Australian decision and held as follows:

> "The fact that the appellant is not a resident of the southern half of South Berubari Union No.12 or of the adjacent enclaves involved in the Delhi Treaty need not stand in the way of his claim to be heard in this case. We heard him in view of the constitutional issue of grave importance raised in the instant case involving an international treaty affecting the territory of Bangladesh and his complaint as to an impending threat to his certain fundamental rights guaranteed by the constitution, namely, to move freely throughout the territory of Bangladesh, to reside and settled in any place therein as well as his right of franchise. Evidently, these rights attached to a citizen are not local. They pervade and extend to every inch of the territory of Bangladesh stretching upto the continental shelf." (Para 18)

The Court further observed :

> "It appears to us that the question of *locus standi* does not involve the Court's jurisdiction to hear a person but of the

competency of the person to claim a hearing, so that the question is one of discretion which the Court exercises upon due consideration of the facts and circumstances of each case. The appellant has complained that he is under an impending threat of deprivation of his fundamental rights under Article 36 of the Constitution and his right of franchise. Because of this as well as of the exceptional and extraordinary constitutional issue raised in this case involving consideration of an international agreement between this country and the friendly Republic of India, we decided to hear the appellant." (Para 17)

It has perhaps been missed by both the Bar and the Bench ever since that the *ratio decidendi* of this case is that "the question of *locus standi* does not involve the Courts' jurisdiction to hear a persons but of the Competency of the person to claim a hearing, so that the question is one of discretion which the Court exercises upon due consideration of the facts and circumstances of each case."

In each case, therefore, it is for the petitioner to establish his competence to claim a hearing and to prevail upon the Court to exercise the discretion in his favour. He cannot establish his competence incompetently. A competent claim can gain recognition only by a competent effort. The granting of standing, discretion as it is, has to be pleaded with all the mastery of facts and law as the facts and circumstances of each case demand. As the Bar expands its horizon of advocacy, so the Bench expands. Ultimately, it is a two-way traffic, never one-way.

(ii) The Issue of Procedure

The Preamble to our Constitution declares "that it shall be a fundamental aim of the State to realise through the democratic process a socialist society, free from exploitation – a society in which the rule of law, fundamental human rights and freedom,

equality and justice, political, economic and social, will be secured for all citizens".

The Fundamental Principles of State Policy contain *inter alia* the principle that the Republic shall be a democracy in which fundamental human rights and freedom and respect for the dignity and worth of human persons shall be guaranteed. The Constitution contains a number of fundamental rights, it ensures the observance of rule of law and it promises political, economic and social equality and justice to all the citizens.

But how to enforce these rights and guarantees ? Article 102 of the Constitution only says that the High Court Division on the application of any person aggrieved may give directions to secure fundamental rights and may issue certain orders and directions in the nature of writs.

What is the procedure to be followed in granting these remedies?

Following the adoption of the Pakistan Constitution of 1956 the erstwhile High Court of East Pakistan framed Rules to govern the procedure in applications for directions, orders and writs under Article 170 of the said Constitution. These Rules still govern the procedure to be followed in filing an application to the High Court Division under Article 102 of the Constitution. Anyone can look up for these Rules in the Rules of the High Court of Judicature for East Pakistan at Vol. I, p. 253.

The High Court Division has stuck to those Rules. any application or affidavit which does not conform to these Rules will not be entertained by it.

Yet all around us, especially in India and Pakistan, the procedural Rules have been informally relaxed so as to be within the reach of the ordinary man and woman to enable him or her to avail of the constitutional remedies. In India there has come to be

developed what is known as "public interest litigation" since the last part of the seventies. The Supreme Court of India started the practice of entertaining telegrams addressed to it, converting them into writ petitions and acting on them. Plenty of legal literature is available on public interest litigation in India and I shall not dwell on them.

In 1993, I attended a conference on "Law as an Instrument of Social Justice" organised by the SAARC Law, Pakistan. The Chief Justice of the High Court of Sindh, Mr. Justice Nasir Aslam Zahid, mentioned a few interesting cases on procedure. All these cases were not from writ jurisdiction proper, but emanated from other proceedings. He told the audience about a gang rape case which was heard and disposed of by him in which a young woman was raped by four men in the satellite town of Mirpur Khas. It was brought for trial on the complaint of an organization called the W.A.R. (War against Rape). SHO, the local police officer, denied any knowledge of the incident although it was the talk of the town. The successor police officer also denied any knowledge although there were four witnesses who appeared in open Court to testify about the incident. The rape victim herself appeared before the Chief Justice with an infant in her arms and denied all charges against the alleged rapists. She had appeared before the Court without any notice being served on her and she told the Court that the local police officers had not prompted her to testify in their favour, but the Chief Justice ordered the transfer of both the local police officers to places 200 miles away from the place of incident so that they should not he able to influence the investigations. The administration went a step forward and suspended them from service. When fresh investigation started, not by the regular police but by the Criminal Investigation Agency, the CIA, the truth and the whole truth came out, not only from the rape victim, but also from the residents and others. The result was that the accused were charged with the offences they had committed.

Surely, I thought, there were some twisting of procedure somewhere to achieve this result.

The Chief Justice also referred to a case in which the complainant calling himself a social worker challenged the chalking and writing off of slogans on the walls of houses, buildings and other places. The Chief Justice called for a detailed report from the Commissioner of Karachi and all the deputy commissioners stating whether there were any such orders or instructions banning such writings on walls.

One more case cited by him was decided by another Bench in which a resident of Karachi challenged the construction of a 13-storied building around his house which he said would choke all his service like water and sewerage and would create conditions in which he will not be free to breathe. The result of the petition was that the building was allowed to be constructed on ground plus one storey and the rest was ordered to be demolished.

The Chief Justice also disclosed that he led a team of all the Judges of his Court for the inspection of the Karachi Central Prison and according to him one Judge reported that there were three prisoners in a two feet space.

In another case he heard, a man spent 10 years in a false case. On a normal conviction on the charges brought against him he could not have been in jail for more than 9 years. When he ordered his release and to send him home to Hyderabad his fetters could not be removed because they were rivetted and they could only be removed in Karachi jail. When the prisoner was asked if he had any money on him to go home he answered in the negative hearing which a person sitting in the Court room took out Rs. 1000/- and gave it to him.

The Chief Justice said that when he narrated this incident to his wife she objected as to why the accused was allowed to go with Rs. 1000/- in the police custody.

The Chief Justice said the Courts took all the actions to preserve and protect the Constitution under which Judges had taken oath to act according to law and he read out the Preamble to the Constitution, which had given the people freedom, equality, protection to minorities, fundamental rights, equality of status, freedom of expression, belief and faith and the State had also ensured to protect the dignity of man.

During the Conference, I found the Chief Justice sorting out numerous telegrams and letters seeking the Court's interference, treating some as regular constitutional petitions and sending others to authorities for redress. He said he received 50 telegrams a day complaining of human rights violations. He planned to institutionalise the handling of such letters and telegrams.

From the procedural point of view the Supreme Court of Bangladesh has not yet developed these informal practices, except for some stray cases. Last year a Division Bench of the High Court Division comprising Md. Mozammel Haque, J. and Mahfuzur Rahman, J. issued a *suo motu* Rule on the basis of a report in a vernacular daily (Daily Ittefaq) concerning a person Nazrul Islan who had been languishing in jail for long 12 years ever since he was 12 years old. As a 5-year old boy he was implicated in a few gang and dacoity cases from which he was acquitted and yet he was kept in wrongful imprisonment. He was put under bar-fetters *(danda-beri)* ever since he was taken to custody and was put under that condition althroughout. The Court was shocked to see him in bar-fetters when he was brought before it. The Court found that the proceedings in the criminal cases were void *ab initio* as he was tried in contravention of the Children Act, 1974. The Court found that the fundamental rights of the boy were violated for many years last past. He was literally in shackles wrongfully and illegally without any cause or case. He was set free and the Court issued various directions to the

Ministry of Home Affairs in respect of other accused or persons like Nazrul Islam who may be in any other jail in Bangladesh.

A somewhat rare almost extinct procedure was followed by the High Court Division in the case of Alam Ara Huq vs. Govt. of Bangladesh, 42 DLR (HCD) 98, decided on July 9, 1989. A detenue was ordered to be released by the High Court Division on two successive *habeas corpus* petitions in the past. But each time fresh orders of detention were served upon the detenue within the jail compound without complying with the Court's orders. Mustafa Kamal, J. and Md. Mozammel Hoque, J. comprising the Division Bench, ordered that the corpus of the detenue be brought before the Court in order to ensure that the Court's order is carried out forthwith if it is decided that the detenue was being detained illegally. On the date of hearing the detenue was brought in person before the Court and after hearing it was held by the Court that the detention was illegal and the Rule was made absolute. The Court ordered that the detenue be released immediately from the Court premises itself. The order was carried out immediately.

Article 107 of our Constitution empowers the Supreme Court to make Rules for regulating the practice and procedure of each division of the Supreme Court and of any court subordinate to it. No doubt the old Rules framed under the Constitution of Pakistan, 1956 are being followed, but some thoughts may now be given as to whether the procedural Rules, of which the Judges are their own masters, can be relaxed and enlarged so that the deprived, backward, illiterate, ignorant and terrorised section of our teeming millions may obtain a fair and meaningful opportunity to approach the Supreme Court for redress of legal and constitutional wrong done to them. If the procedure stands between them and the Court then the Constitution loses its validity to this vast multitude.

I realise the complexity of this problem. Lawyers, especially constitutional lawyers, legal aid societies, Court administration and Judges have all to play a concerted role in this respect and I leave the details advisedly for their consideration.

C. Indemnities galore and unexplored

Our Constitution started with indemnities. Paragraph 3(1) of the Fourth Schedule to the Constitution, an original provision, Provides :

> "3.(1) All laws made or purported to have been made in the period between the 26th day of March, 1971 and the commencement of this Constitution, all powers exercised and all things done during that period, under authority derived or purported to have been derived from the Proclamation of Independence or any law, are hereby ratified and confirmed and are declared to have been duly made, exercised and done according to law."

These are what Article 150 called "the transitional and temporary provisions" which "shall have effect notwithstanding any other provisions of this Constitution".

Article 46 of the Constitution grants powers to Parliament to provide indemnity in the following terms :

> "46. Notwithstanding anything in the foregoing provisions of this Part, Parliament may by law make provision for indemnifying any person in the service of the Republic or any other person in respect of any act done by him in connection with the national liberation struggle or the maintenance or restoration of order in any area in Bangladesh or validate any sentence passed, punishment inflicted, forfeiture ordered, or other act done in any such area."

Since the original Constitution was thus enacted, fresh provisions have joined the rank of indemnities, fattening the

Fourth Schedule. The First Martial Law in Bangladesh indemnified itself in Paragraphs 3A and 18, and the Second in Paragraph 19. The latest entrant in the procession of indemnities has taken refuge in Paragraphs 21 and 22. The Constitution (Eleventh) Amendment Act, 1991 and the Constitution (Twelfth) Amendment Act, 1991 give constitutional cover to the appointment of Chief justice as Vice-President on the 6th December, 1990 and seeks to give the general election that followed validity. Even the Chief Justice needed an indemnity.

Such a steady stream of intermittent indemnities mark out the Constitution of Bangladesh as a unique one, leaving one to wonder whether indemnities are a basic feature of the Constitution or not.

Yet, apart from some bald generalisations, the nature, scope, extent and applicability of these provisions in the Fourth Schedule and in Article 46 have not received an in-depth treatment so far. My own intention is not to provoke a speculative litigation, but to point out that in view of the recurrence of indemnities, the subject merits a searching consideration. As it stands, it remains an unexplored one.

KAMINI KUMAR DUTTA (1879 - 1959) : A PROFILE

Kamini Kumar Dutta, a giant and dedicated lawyer of his time, was born in 1879 (on the 25th Ashar, 1285 B.S.) at Srikail Village, P.S. Muradnagar, Comilla North Sub-Division. His father Krishna Kumar Dutta was an educationist with profound erudition in Sanskrit language, literature and *Shastras*. Krishna Kumar Dutta retired as a teacher of Chittagong High School and lived in his village home and breathed his last at his son's house at Comilla town where he spent his last days. Eldest son of his parents, Kamini Kumar Dutta was brilliant student having passed B.A. Examination with distinction. On obtaining B.L. degree he served as a Munsif in his early career. His next brother Surendra Nath Dutta was also a B.A., B.L. but he did not take to advocacy. He joined the teaching profession, later on became a roving *Sannyasi* and died at Comilla. His next brother Captain Narendra Nath Dutta is a household name in the field of herbal medicine. He established the famous Bengal Immunity Company, a pioneer pharmaceutical industry in herbal medicine with the co-operation of Dr. Bidhan Chandra Roy which remains one of the foremost industries of its kind in India. His youngest brother Debendra Nath Dutta was a high official in the Forest Department but he left the job and established himself in business. All of them are dead and gone now.

Upon the death of his father, Kamini Kumar had to bear the educational expenses of his three brothers in circumstances of privacy and hardship. But his response to the situation was heroic. He left the secure job of Munsif and embraced the glorious uncertainties of the legal profession in which he established himself in no time as a brilliant and towering Advocate, both in civil and criminal cases.

Kamini Kumar was attracted to politics from his early student life when he associated himself with the *Jugantar* revolutionary group. Later he played an active part in the non-cooperation movement of the Indian National Congress and became a devout follower of *Deshbandhu* Chittaranjan Das. He left legal practice for a year on the call of *Deshbandhu* and suffered imprisonment in the cause of freedom movement.

His political life is characterised by three distinctive features. First, he brought to bear a thoroughly liberal and totally non-communal approach to politics which earned him the faith, trust and love of both the Hindu and Muslim communities. Secondly, he was one of the pioneers of peasant movement in Bengal. He helped the peasant workers all over Bengal with money almost lavishly and his house was an open house for them. Thirdly, he maintained his earlier link with revolutionary politics and politicians and helped them during their periods of distress financially and by rendering legal assistence. His Ford car was used during the Chittagong Armoury Raid for which he was arrested but on release he spumed the displeasure and threats of the authorities and defended the accused in the Chittagong Armoury Raid case and helped them financially. He even sheltered Anant Singh, one of the accused in that case, in his own house at Comilla and spirited him away to Calcutta where the fugitive stayed in the house of his younger brother Captain Narendra Nath Dutta for a long time

Whatever be the political persuasions of political workers Kamini Kumar was broad-hearted enough to shelter and finance them and appear as their defender in political cases. Wealth came to him in abundance as a legal practitioner and his practice extended to the whole of Bengal, Bihar and Assam. Very few lawyers of his time became a legend in the profession that he was in his own lifetime. People used to engage Akhil Dutta, another

giant lawyer, for cross-examination and Kamini Kumar Dutta for argument and advocacy. Mr. Simpson an I.C.S. District Judge of the then Tipperah District once said of him :

> "If I would have ever been made an accused in a murder case I would have felt like engaging Kamini Babu in defending me properly. If I was ever impleaded in a civil suit with a complicated question of civil law I would have felt engaging Kamini Babu to represent me."

Kamini Kumar was a member of the Bengal Legislative Council and upon partition of India refused to leave his motherland for India and decided to dedicate his life to the service of his people at home. His son, late Ajit Kumar Dutta, also an Advocate, built up a huge practice in Calcutta and later became the Advocate-General of West Bengal and a Judge of the West Bengal High Court, but Kamini Kumar clung to his motherland and dedicated himself to the service of the country upto the last.

Legislators and Constitutionalists will recall the immense contribution that Kamini Kumar made in the framing of the Pakistan Constitution of 1956 as a member of the Constituent Assembly. Upon the adoption of that Constitution he addressed a meeting at Comilla Town Hall and analysed, Article by Article, for long three hours the Pakistan Constitution of 1956 and the Indian Constitution of 1950 to bring home his contention that the Pakistan Constitution of 1956 was immeasurably superior to the Indian Constitution in all aspects. Kamini Kumar led the dissident Congress group in the Assembly, while Basanta Kumar Das and Monoranjan Dhar led the Congress group. Later Kamini Kumar was appointed Health Minister in the Pakistan Cabinet of Chowdhury Mohammad Ali. He was universally respected for his ability, quality and honesty.

Kamini Kumar was the President of the Comilla District Bar Association in 1955. His end came on the 19th Poush, 1365

B.S. corresponding to the 4th January, 1959. He was so well-loved and respected by all that his *Sradh* ceremony became a meeting ground for Hindus and Muslims of all ages. Even Ayub Khan, the then President of Pakistan, gave him an award posthumously and presented a medal to his widow Mrinalini Dutta in recognition of his dedicated and honest service to the country at a *Durbar* held at Dhaka.

A prolific earner, Kamini Kumar led a simple and unostentatious life himself, giving away his huge income to charities and making his home at Comilla a veritable *Ashram* for the helpless. He extended his total support, moral and financial, to the noble founders of Comilla *Abhoy Ashram* with whom he maintained a close connection till his death.

As in life, so in death, Kamini Kumar remains charity personified. Following his wishes, his entire moveable and immoveable properties, those of his brother Capt. Narendra Nath Dutta and those of his ancestors were dedicated after his death to the cause of education and welfare of the people of the then East Bengal irrespective of caste, creed or religion under a Deed of Trust executed by his widow Mrinalini Dutta and their children. The Dutta Family established Srikail School and College at their ancestral village which are still functioning. The ancestral home is being used for education. The residential house of Kamini Kumar Dutta at Comilla town is being used as Mrinalini Dutta Hostel for School and College girls. Kamini Kumar Dutta Memorial Law Lecture is also a part of that Trust Scheme. *

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* For information on Kamini Kumar Dutta, my thanks are due to Mr. Mujibur Rahman, Senior Advocate and one-time colleague of Kamini Kumar Dutta in the legal profession, and to Syed Mahmud Hossain, Advocate.